

TENDER DOCUMENT FOR

“Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)”

Tender No: TCIL/C/PD(UP)/NVS/2026/08
Issued on: 16.05.2026

Volume I: Technical Bid

Issued By:

PROJECT DIRECTOR (UP)
K-703, Yamuna Apartments, Sector-4,
Gomti Nagar Extension, Lucknow,
Uttar Pradesh- 226010

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SECTION-1NOTICE INVITING TENDER

- 1.1** Electronic tenders are invited from eligible bidders for “Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)”

Submission of Online Bids is mandatory for this Tender. Detailed instructions are given in Section-2 of this Tender Document.

- 1.1.1 Name of the Work : Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)
- 1.1.2 Estimated cost : **Rs. 307.51 Lacs** (Including GST as applicable, other taxes, cess, EPF & ESIC, levies and any other statutory provision etc.)
- 1.1.3 Cost of Tender Document (non-refundable) : **Rs. NIL**
- 1.1.4 Earnest Money Deposit (EMD) : **Rs. 6,15,020/-** (Six lakh fifteen thousand and twenty rupees only).
Refer Note (ii) below.
- 1.1.5 Completion Period : **09 (Nine) months** from the 7th day of the date of issuance of Letter of Intent. The contractor shall ensure to complete all the works in the provided time period as time is the essence of this contract.
- 1.1.6 Validity of Bid : 120 Days from the rate of opening of technical bids
- 1.1.7 Start Date & Time of Publishing Tender : 16.05.2026; 1700 Hrs.
- 1.1.8 Start Date & Time of Procurement of Tender Document : 16.05.2026; 1700 Hrs.
- 1.1.9 Last Date & Time of : 23.05.2026; 1100 Hrs.
a) raising/ Seeking (No query after this date shall be entertained).
information in
writing, if any
- b) Pre-Bid Meeting : NA
Date & Time of Pre-bid meeting

- 1.1.10 Last Date & Time : 30.05.2026; 1700 Hrs.
for submission of bid
- 1.1.12 Online opening of : 01.06.2026; 1700 Hrs.
Technical bid
- 1.1.13 Online opening of : To be notified later to Techno-commercially
Financial bid qualified bidders.

NOTE regarding Tender Fee and EMD:

(i) The payment of tender fee (if applicable) shall be made through digital transfer by NEFT/IMPS/RTGS. **The tender fee is Non-refundable.**

(ii) EMD amount (refundable) can be submitted in the form of: -

- ☑ Demand Draft (DD) drawn in favour of “Telecommunications Consultants India Limited” payable at New Delhi, or
- ☑ Fixed Deposit Receipt (FDR), or
- ☑ Bankers Cheque, or
- ☑ Electronic transfer (details given below), or
- ☑ Bank Guarantee (BG)/ e-BG in the prescribed format from a SFMS enabled Scheduled Commercial Bank through SFMS Platform, or
- ☑ Insurance Surety Bond in the prescribed format.
(BG and Insurance Surety Bond formats given).

The validity period of Bid Security / EMD (in any form) should be 120 days.

Details of beneficiary for issue of BG under SFMS Platform is as below:

Name of Beneficiary and its Details	Name	Telecommunications Consultants India Limited
	Address	TCIL Bhawan, Greater Kailash-1, New Delhi-110048
Name of Beneficiary Bank and its Details	Name	ICICI Bank Limited
	Account No	000705005880
	Address	9-A PHELPS Building, Connaught Place, New Delhi- 110001
	Unique Identifier Code	TC503394486 (UID to be mentioned in field 7037 of the BG advising message code)
	IFS Code	ICIC0000007

Tender Fees/ EMD can also be paid through the following prescribed electronic modes of payment **(UTR No. is to be provided by bidder in the technical online bid):**

- a. Debit card powered by RuPay
- b. Unified Payment Interface (UPI) (BHIM-UPI) – TCIL VPA ID – **tcil80@ICICI**
- c. Unified Payment Interface (UPI) Quick Response Code: As below.



d. Bank details for NEFT:

Name of Beneficiary	Name	Telecommunications Consultants India Limited
	Account No.	TCIL58INFRA
Name of Beneficiary Bank and its Details	Name	ICICI Bank Limited
	Address	9-A PHELPS Building, Connaught Place, New Delhi- 110001
	IFS Code	ICIC0000106

- The bidders shall note that in case the payment of EMD is done through DD /BGmodes, then the original Hard Copy of the same shall be submitted to TCIL Lucknow Office, (K-703, Yamuna Apartments, Sector-4, Gomti Nagar Extension, Lucknow, Uttar Pradesh- 226010) (address mentioned in the tender document) before the last date and time for submission of the bid, failing to which, the bid of such bidders shall be rejected summarily and shall not be considered for any further evaluation.
- In case, the payment of Tender Fee and/or EMD is done through digital modes (i.e. NEFT/RTGS/IMPS/UPI Modes), the bidders shall submit the details of successful transaction clearly mentioning the UTR no., in its online bid, failing to which, the bid of such bidders shall be rejected summarily and shall not be considered for any further evaluation.

Further,

- a) Start-up Enterprises are exempted from the payment of EMD & Tender Fees.
- b) To avail benefits prescribed in the tender for **Start-up Enterprises**, the bidder shall submit their registration certificate issued by DIPP/DPIIT. Non-submission of requisite proof shall be treated as non-Start-up Enterprise bid.
- c) The bids submitted without bid security/tender fees or inadequate bid security/tender fees will be rejected. No interest shall be payable on bid security amount.
- d) The EMD/Bid Security of unsuccessful bidder shall be returned as promptly as possible but not later than 30 days after expiry of the bid validity period.
- e) The EMD/Bid Security may be forfeited if:
 - i. If the Bidder withdraws his bid during the period of bid validity specified by the Bidder on the Bid form or
 - ii. fails or refuses to execute the Contract, if required; or

- iii. The successful bidder fails to submit performance security within the prescribed time. or

The proceeds of EMD shall be payable to TCIL in case of breach of any of the terms and conditions of the contract/PO/tender by the vendor.

Bidders are advised to visit the TCIL website and CPP Portal regularly for updates/ amendments, if any.

1.1.14 Tenders received without the requisite Tender Fee (if applicable) and/ or EMD shall be summarily rejected.

1.1.15 Since this is a WORKS Contract, **benefits to MSME shall not be applicable.**

1.1.16 Bids shall be submitted on GePNIC Portal (<http://etenders.gov.in>). Bidders are advised to visit GePNIC portal (<http://etenders.gov.in>) regularly for updates/amendments, if any. Bidders can contact NIC for Telephonic Help Support / Help Desk Number- 1800 3070 2232, 0120- 4200462 for requisite queries regarding registration, training, demonstration etc. of Government e-Procurement System of NIC (GePNIC).

Bidders are advised to visit the TCIL website and CPP Portal regularly for updates/ amendments, if any.

1.1.17 Site Visit: -

- (i) The Bidder is encouraged to visit and examine the site of works and its surroundings, go through the site of works and its surroundings, go through the plans/drawings/detail connected to the work, if/as available and obtain all information that may be necessary for preparing the bid and entering into a contract for execution of the works. The costs of visiting the site shall be at the bidder's own expense, risk and cost.
- (ii) It shall be deemed that the bidder has visited the site/area and got fully acquainted with the working conditions and other prevalent conditions and fluctuations thereto whether he actually visits the site/area or not and has taken all the factors into account while quoting his rates.
- (iii) It shall be deemed that the bidder has got himself acquainted with the conditions and geological details available for the proposed work site.

ELIGIBILITY CRITERION:

1.2 Technical & Financial Eligibility Criteria:

NOTE: -*"Since this is a WORKS Contract, benefits to MSME shall not be applicable."*

A. Technical Eligibility Criteria:

- i. Experience of having successfully completed similar works during the last 7 (seven) years from the date of bid submission, either of the following:-

Three similar completed works, each costing not less than 40%(35% for Startups) of estimated cost put to tender (excluding Taxes)

OR

Two similar completed works, each costing not less than 50%(45% for Startups) of the estimated cost put to tender (excluding Taxes)

OR

One similar completed work costing not less than 70%(65% for Startups) of the estimated cost put to tender (excluding Taxes)

NOTE: Similar work would mean successfully completed “**Construction of Buildings**” in the last 7 years for the Government/ Semi Government / Govt. Autonomous Bodies / Private Sector.

-Bidder to submit copies of Completion certificates along with LOA/ Agreement from client clearly mentioning the nature of work, value of work, date of start, time period & actual date of completion. The certificates shall be considered only if it is issued / counter signed by an officer not below the rank of EXECUTIVE ENGINEER OR equivalent.

-In case the work experience is of Private Sector, the completion certificate shall be supported with copies of the Letter of Award/ Contract Agreement and corresponding TDS certificates. Value of work will be considered commensurate with the value of corresponding TDS Certificate. The corresponding TDS certificate to be duly certified by the Statutory Auditor. If the requisite TDS certificate is not provided by the bidder, the related work experience will not be considered for any further evaluation.

- ii) The contractors registered with CPWD, MES, Railways, P&T, State PWDs, Central & State Govt. Undertakings are eligible to participate in the tender subject to fulfilling the Eligibility Criteria.
- iii) All existing working contractors of TCIL in any project shall submit a certificate of satisfactory work execution from their project director.

B. Financial Eligibility Criteria:

- a) **Turnover:** The Average Annual Financial Turnover during the last 3 financial years, ending 31st March 2025 (i.e. FY 2022-23, 2023-24 & 2024-25) should be at least 30%(25% for Startups) of the estimated cost of purchase (excluding GST).

- Bidder shall submit audited Balance Sheets and Profit & Loss account statements for the last three financial years ending on 31.03.2025 i.e. for Financial Years of 2022-23, 2023-24 & 2024-25.
- Bidders to provide a certificate from Statutory Auditors clearly mentioning the figures of **turnover from Construction works only** during the immediate last three consecutive Financial Years i.e. 2022-23, 2023-24 & 2024-25. The above certificate should be duly certified by Statutory Auditor/ Chartered Accountant on their letter head with details of Membership No, Contact (email and phone number) and UDIN number. If certificate submitted by the Bidder without above mentioned thereon shall not be considered as part of bid and shall not be taken into account during evaluation of documents.

b) Profit/ Loss: The bidder should have Profit Before Tax (PBT) in two out of the last three financial years ending on 31.03.2025.

c) **Net worth:** Net worth should be positive as on 31st March, 2025.

d) **Bidding Capacity:**

The bidders will be qualified for opening of their Price Bids only if their available Bid Capacity is equal or more than the estimated cost of work put to Tender. The bid capacity Shall be worked out on the following formula:

$$\text{Bid capacity} = \{[A \times N \times 1.5] - B\}$$

Where,

A = Maximum turnover in construction works executed in any one year during the last seven years taking into account the completed as well as works in progress. The value of completed works shall be brought to current costing level by enhancing at a simple rate of 7% per annum.

N = Numbers of years prescribed for completion of work for which bids has been invited;

B = Value of existing commitments of ongoing works during the period of execution of work for which bids have been invited.

Note: The bidders to submit the following documents in respect of Bidding Capacity: -

*(i) Bid Capacity as mentioned above along with the calculations and supporting documents (copy of letter of award and last bill payment from client for each work) should be duly certified by Statutory Auditor/ Chartered Accountant on their letter head with details of **Membership No, Contact (email and phone number) and UDIN number.***

- Bidder has to submit the Financial data for latest last Seven financial years ending with FY 2024-25, in Annexure-15 along with audited financial statements. The financial data in the prescribed format shall be certified by the Statutory Auditor/ Chartered Accountant.

- Value of existing commitments and ongoing works to be completed during the period of completion of work for which bids have been invited, has to be submitted by the bidder in Annexure-16, which shall be certified by the Statutory Auditor/ Chartered Accountant along with all the supporting documents considered for arriving at the value of works in hand.

Any such certified document submitted by the Bidder without UDIN number mentioned thereon shall not be considered as part of bid and shall not be taken into account during evaluation of documents.

(ii) In the case of a group, the above formula will be applied to each member to the extent of his proposed participation in the execution of the work. If the proposed % participation is not mentioned, then 100% participation will be assumed.

NOTE in respect of Eligibility Criteria:

- i. In procurement of all goods, services or works in respect of which the nodal ministry/department has communicated that there is a sufficient local capacity and local competition, only Class-I local supplier as defined under the order shall be eligible to bid respective purchase value.
- ii. Only Class-I and Class-II local supplier, as defined under the order shall be eligible to bid in procurement undertaken by procuring entity, except when global tender enquiry has been issued.

(Mandatory Undertaking for Purchase Preference to MAKE In INDIA to be submitted along with this Tender. The bidder needs to submit calculation of local content as per format attached in Annexure-21 The detailed clause is mentioned in the tender and the documents required for verification of local content needs to be submitted as per this Clause. Bidder also needs to submit an undertaking attached as Annexure-22.)

1.3 GST & PAN Registration:

The Bidder must be registered for GST and PAN no (Submit copy of GST Registration Certificate and PAN Card).

GST registration certificate of the state in which the work is to be taken up, if already obtained by the bidder. If the bidder has not obtained GST registration in the state in which the work is to be taken up, or as required by GST authorities, then in such a case the bidder shall scan and upload following undertaking along with other documents: -

“If work is awarded to me/us, I / We shall obtain GST registration certificate of the state in which work is to be taken up within one month from the date of receipt of award letter or before release of any payment by the Employer, whichever is earlier, failing which, I/We shall be responsible for any delay in payments which will be due towards me/ us on a/c of the work executed and/ or for any action taken by the Employer or GST Department in this regard.”

1.4 Registration:-The bidder should be an Indian Registered Company under Companies Act 1956 or 2013/ Proprietorship / Partnership Firm / Government Societies. Copy of Certificate of Incorporation/ Registration/ Partnership Deed or any other relevant document, as applicable, should be submitted.

1.5 The bidder needs to submit un-priced BOQ along with their technical bid.

1.6 Labour License:

The contractor shall obtain a valid license under the Contract Labour (R&A) Act, 1970, and the Contract Labour (Regulation and Abolition) Central Rules, 1971, before the commencement of the work, and continue to have a valid license until the completion of the work.

The contractor shall also comply with provisions of the Inter-State Migrant Workmen(Regulation of Employment and Conditions of Service) Act, 1979.

The contractor shall also abide by the provisions of the Child Labour (Prohibition and Regulation) Act, 1986.

The contractor shall also comply with the provisions of the building and other Construction Workers (Regulation of Employment & Conditions of Service) Act, 1996 and the building another Construction Workers Welfare Cess Act, 1996.

Any failure to fulfill these requirements shall attract the penal provisions of this contract arising out of the resultant non-execution of the work.

Further,

The Bidder should comply with all applicable Indian Labour laws, Payment of Minimum Wages Act, Workman's Compensation Act, EPF/ESI provisions and any such statutory provisions. In case the bidder is found to be not complying to any of the relevant statutory requirement, action as deemed fit may be initiated by TCIL at its sole discretion.

It is a mandatory requirement that the bidder shall provide formally certified skilled workforce or commitment to the effect that they would ensure that all their workers would be skilled through Recognition of Prior Learning (RPL) within two months from the date of commencement of work under the project, at the cost of the bidder. This is in compliance to Ministry of Skill Development and Entrepreneurship (MSDE) D.O dated 12.09.2022.

The Bidder shall provide undertaking to this effect as per the Annexure-12 of this tender document.

1.7 EPF&ESIC: Proof of PF registration & ESIC registration to be submitted by the bidder.

The ESI and EPF contributions on the part of Employer in respect of this contract shall be paid by the contractor and inclusive in the cost put to tender.

1.8 JV/ Consortium: Participation through JV/ Consortium is not permitted in this tender.

1.9 Certification of Genuineness:-

The bidder should give an undertaking on the company's letter head that all the documents/ certificates/ information submitted by them against this tender are genuine.

In case any of the documents/certificates/information submitted by the bidder is found to be false or forged, TCIL shall immediately reject the bid of such bidder(s) or cancel/terminate the contract and forfeit bid security / Performance Security submitted by the bidder and debar them from participation in future EOIs/tenders of TCIL for a period up to 2 years.

1.10 The bidder needs to submit an Undertaking stating that: Vendors, whose Purchase Order(s)/ Work Order(s)/LOI(s)/LOA(s) for any project of TCIL, was/ were cancelled on risk & cost basis for non-performance or non-submission of performance guarantee in last 2 years, are not eligible to participate in this tender.

1.11 No Conviction Certificate: The Bidder should not be blacklisted/debarred/banned/restricted by any Union Govt./State Govt. /PSU as on date of submission of the Bid. "No-Conviction Certificate" duly signed by authorized signatory signing the bid, should be submitted in the prescribed format attached at Annexure-11 of this tender document.

1.12 Clause by Clause compliance: Bidder should submit a statement showing Clause-by-Clause compliance to all Terms & Conditions of all the Sections of the tender on the Letter Head of their Organization duly signed and stamped along with its Bid. The bidder shall submit No-Deviation Certificate along with above.

1.13 The bidder should not be insolvent, in receivership, bankrupt or being wound up, not have had their business activities suspended and not be the subject of legal proceedings for any of the foregoing. An undertaking by the bidder should be submitted.

1.14 The bidder should have a local office where work is to be executed. Else, he should give an undertaking that he will open a local office after award of work.

1.15 Integrity Pact: -

The tenders of value more than Rs. 4.00 Cr are covered under Integrity Pact.

The bidder shall submit duly filled and signed copy of Integrity Pact along with its technical bid.

1.16 The bidder shall submit an undertaking on their letter-head stating that:

“In reference to the Government of India, Ministry of Finance, Department of Expenditure, Office Memorandum No. F.No. 6/18/2019-PPD, Dated 23-07-2020, I hereby submit that:

“We have read the Clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; We certify that we (in case of Consortium all the Consortium Partners) are not from such a country or their beneficial owner is not from such a country or we will not sub-contract any work to a contractor from such countries, if from such a country, have been registered with the Competent Authority.

We hereby certify that we (in case of Consortium all the Consortium Partners) fulfill all requirements in this regard and are eligible to be considered. [*Where applicable, evidence of valid registration by the Competent Authority shall be attached.*].”

1.17 PURCHASE PREFERENCE: MAKE IN INDIA (Purchase Preference to Make IN India shall be given as per GOI guidelines applicable from time to time.)

- a. Minimum local content: (to be specified)
- b. Margin of purchase preference: 20%
- c. Subject to the provisions of this order and to any specific instructions issued by the Nodal Ministry or in pursuance of this Order. Purchase preference shall be given to Class –I local supplier in procurements undertaken by procuring entities in the manner specified here under
- d. In the procurements of goods or works, which are covered by above section (v) and which are **divisible in nature** ‘Class –I local supplier’ shall get purchase preference over Class –II local supplier as well as ‘Non-local supplier’ as per following procedure :
 - i. Among all qualified bids, the lowest bid will be termed as L1, if L1 is Class –I local supplier the contract for full quantity will be awarded to L1.
 - ii. If L1 bid is not a Class-I local supplier, 50% of the order quantity shall be awarded to L1. Thereafter, the lowest bidder among the Class –I local supplier will be invited to match the L1 price for the remaining 50% quantity subject to the Class –I local supplier’s quoted price falling within the margin of Purchase preference and contract for that quantity shall be awarded to such Class –I local supplier subject to matching the L1 Price. In case such lowest eligible Class –I local supplier fails to match the L1 price or accepts less than the offered quantity the next higher ‘Class –I local supplier’ within the margin of purchase preference shall be invited to match the L1 price for remaining quantity and so on and contract shall be awarded accordingly. In case some quantity is still left uncovered on Class-I local suppliers, then such balance quantity may also be ordered on the L1 bidder.

e. In the procurements of goods or works, which are covered by para 3(b) above and which are **not divisible in nature** and in procurement of services where the bid is evaluated on price alone, the 'Class-I local suppliers' shall get purchase preference over 'Class-II local supplier' as well as 'Non- local supplier' as per following procedure.

- i) Among as qualified bids, the lowest bid will be termed as L1. If L1 is Class-I local supplier, the contract will be awarded to L1.
- ii) If L1 is not 'Class-I local supplier' the lowest bidder among the Class-I local supplier will be invited to match the L1 price subject to Class-I local supplier's quoted price falling within the margin of purchase preference and the contract shall be awarded to such 'Class-I local supplier' subject to matching the L1 price.
- iii) In case such lowest eligible 'Class-I local supplier' fails to match the L1 price, the 'Class-I local supplier' with the next higher bid within the margin of purchase preference shall be invited to match the L1 price and so on and contract shall be awarded accordingly. In case none of the Class-I local supplier within the margin of purchase preference matches the L1 price, the contract may be awarded to the L1 bidder.

f. 'Class-II local supplier' will not get purchase preference in any procurement, under taken by procuring entities.

g. Verification of local content:

- i. In cases of procurement for a value less than Rs. 10 crores, the local supplier(Class-I and Class-II), at the time of bidding, shall submit a self-certification that the item offered meets the minimum local content and shall give details of the location(s) at which the local value addition is made.
- ii. In cases of procurement for a value in excess of Rs. 10 crores, the local supplier(Class-I & Class-II) shall be required to provide a certificate from statutory auditor or cost auditor of company (in case of companies) or from practicing cost accountant or chartered accountant (in respect of suppliers other than companies) giving percentage of local content in addition to self-certification at point (i)

Note: Bidder must provide necessary supporting documents as proof in respectof the eligibility criteria mentionedabove.

The bidder must officially procure / download the tender documents before the last date and time of sale of tender document in order to bid for thistender.

The price offers of only those parties who are techno-commercially qualified shall be opened at time and date to be notifiedseparately.

All the bidders must ensure that their bid is complete in all respects and conforms to tender terms and conditions, tender specifications etc. failing which the bids are liable to be rejected without seeking any clarifications on any exception/deviation taken by the bidder in theirbid.

TCIL reserves the right to accept or reject any or all the tenders without assigning any reason.

Contacts:

TCIL Contact-1- Mr. Rajesh Jain, Project Director (UP)

E-mail ID: rajesh.jain2@tcil.net.in (Mobile : 9868393731)

TCIL Contact-2- Mr. Rohit Tiwari, Deputy General Manager (Civil)-
Lucknow(UP)

E-mail ID: rohit.tiwari@tcil.net.in (Mob.: 7987498456)

GePNIC - Toll Free Telephone No.: 1800 3070 2232 Helpdesk; 011-26202601

(Project Director (UP))

END OF SECTION-1

Schedule-I

S. No.	Description	Values/Description to be Applicable for Relevant Clause(s)
1.	Name of the Work	Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)
2.	Client/ Owner	Navodaya Vidyalaya Samiti (NVS), Noida, Govt. of India
3.	EMD	Rs. 6,15,020/ (Six lakh fifteen thousand and twenty rupees only).The payment of EMD fee shall be made through Demand Draft (DD) in favour of “Telecommunications Consultants India Limited” payable at New Delhi along with the bid, or in the form of a Bank Guarantee (BG)/e-BG in the prescribed format from a SFMS enabled Scheduled Commercial Bank through SFMS Platform OR as an Insurance Surety Bond as per prescribed format OR Fixed Deposit Receipt (FDR) OR Bankers Cheque OR Online Payment. The validity period of Bid Security / EMD (in any form) should be 120 days.
4.	Estimated Cost of Construction	Rs. 307.51 Lacs (Including GST at prevailing rates, other taxes, cess, EPF & ESIC, levies any other statutory provision etc.)
5.	Time allowed for Completion of Work	09 (Nine) months from 07 th day of the date of issue of Letter of Intent (LOI).
6.	Mobilization Advance	Max. 10% of the tendered value.
7.	Interest Rate of Mobilization Advance	Simple Interest at the rate of 10% per annum.
8.	Schedule of Rates applicable	DSR- 2023 & DSR - 2025 for schedule items & Market rates for non-schedule items.
9.	Validity of Tender	120 days from the date of opening of technical bids
10.	Performance Guarantee	5% of the awarded value of contract within 10 days from the issuance of LOI.
11.	Security Deposit / Retention Money	2.5% (Two point five Percent only) of this gross value of each running/Final bill.
12.	Compensation for delay of work (L.D)	With maximum rate @ 1% (one percent) per month of delay to be computed on per day basis based on quantum of damage suffered due to stated delay on the part of Contractor. Provided always that the total amount of compensation for delay to be paid under this condition shall not exceed

		10 % (ten percent) of the accepted Tendered Value of work.		
13. a)	Deviation limit beyond which Variation Clause (Clause 3.20.2) shall apply for all works except foundation.	<table><tr><td>FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT</td></tr><tr><td>50%</td></tr></table>	FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT	50%
FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT				
50%				
13. b)	Deviation limit beyond which Variation Clause (Clause 3.20.2) shall apply for foundation work	<table><tr><td>FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT</td></tr><tr><td>100%</td></tr></table>	FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT	100%
FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT				
100%				
13. c)	Total Deviation:	Up to 10% of the tendered amount; subject to the approval from the Client.		
14.	Escalation	Rates are fixed during the contract period. No escalation in rates shall be admissible in any case during the validity of contract. No claim in this regard shall be entertained what so ever.		
15.	Defect Liability Period	The Defects Liability & Maintenance Period shall be 12 (Twelve) months from the date of handing over the project to the Employer/Owner.		

SECTION- 2**INSTRUCTIONSTOBIDDERS****2.1 BIDDER TO BEAR COST OF PURCHASE OF TENDER**

The Bidder shall bear all costs associated with the preparation and submission of the bid. The Employer in any case will not be responsible or liable for these costs regardless of the conduct of the bidding process.

2.2 BID DOCUMENTS**2.2.1 Bid Documents includes: -****VOLUME –I**

Section1	Notice InvitingTender
Section2	Instructions toBidders
Section3	General (Commercial) Conditions of the Contract
Section4	Special Conditions of theContract
Section5	Scope ofwork
Section6	Annexures

VOLUME–II FinancialBid**2.2.2 Any clarification or communications obtained from theEmployer****2.3 AMENDMENT TO BID DOCUMENTS**

- a) At any time, prior to the date of submission of bids, TCIL may for any reason, whether at its own initiative or in response to a clarification requested by a prospective bidder, modify the bid documents by amendments, which shall be available on TCIL Website and the e-tendering portal.
- b) In order to give required time to the prospective bidders, in which to take the amendments into action in preparing their bid, TCIL may at its discretion extend the deadline for submission of bid suitably.

2.4 EXTENSION OF TIME FOR SUBMISSION OF BID

In order to give prospective bidders required time in which to take the amendments into action in preparing their bid, the Employer may at its discretion extend the deadline (Minimum 3 days) for submission of bid or as suitably.

2.5 BIDDERS ELIGIBILITY AND QUALIFICATIONS

Bidder shall furnish as a part of bid documents, establishing the bidder's eligibility to successfully complete the required works. The bidder shall also

submit documentary evidence in the form of literature, drawing, data on the services offered, wherever required.

2.6 VALIDITY PERIOD OF BID

Bid submitted by the bidders shall remain valid for acceptance for a period of 120 days from the date of opening the Technical Bid. The bidders shall not be entitled during the period of 120 days, to revoke or cancel Bid or vary any term thereof without written consent of the owner. In case of bidder revoking or canceling his Bid or varying any term in regard thereof, the bidder's Earnest Money Deposit shall be forfeited by the Employer.

The bid valid for a shorter period shall be rejected by the Employer as non-responsive.

In exceptional circumstances, the Employer may request the consent of the bidder for an extension to the period of bid validity. The bid security provided shall also be suitably extended. A bidder accepting the request and granting extension will not be permitted to modify his bid.

2.7 CLARIFICATION OF BIDS

During evaluation of bids, TCIL may at its discretion ask the Bidder for clarifications/ confirmations/ deficient documents of its bid. The request for clarification and the response shall be in writing and no change in the price of substance of the bid shall be sought or permitted.

2.8 POST BID CLARIFICATIONS

No post bid clarification at the initiative of the bidders shall be entertained and any effort by the bidders to influence the Employer in the Employer's bid evaluation, bid comparison or award of the contract shall result in rejection of the bid.

2.9 BID SECURITY/ EMD: -

- i. The Bidder shall submit, as part of bid security as mentioned in the NIT (Notice Inviting Tender, Section-1).
- ii. The bid not secured in accordance with the above shall be rejected by the Employer and shall be considered as non-responsive.
- iii. The bid security of the unsuccessful bidder will be discharged/ returned as promptly as possible as but not later than 30 days after expiry of the bid validity period prescribed by the Employer.
- iv. The successful bidder's bid security will be discharged upon the bidder's submission of the Performance Guarantee.
- v. The bid security may be forfeited under the following circumstances: -
 - a. If a bidder withdraws his bid during the period of bid validity specified by the bidder on the bid form.
 - b. In case of a successful bidder, if he fails to submit the Performance Guarantee within the time prescribed or
 - c. If he fails to supply the material in terms of the project.
- vi. No interest is payable on EMD.

In case of inadequacy or non-submission of prescribed EMD, the tenderer shall be deemed to be disqualified, and its bid shall be summarily rejected and shall not be considered for further evaluation.

2.10 OPENING OF PRICE OFFER

Price offers of only those bidders whose Techno-Commercial offers are found to be responsive and acceptable to TCIL will qualify to be opened. The qualified parties shall be notified with the date and time of the opening of the Price Offer in advance. Representative(s) of the qualified parties may attend the Price Bid opening.

In case of any conflict in any of the terms mentioned at Section-4, the same shall prevail over the terms mentioned in other sections.

2.11 INSTRUCTIONS REGARDING BID SUBMISSION

Participation in this tender shall be through Online submission only. The bidders can contact NIC for Telephonic Help Support on Toll Free Help Desk Number- 1800 3070 2232 for requisite queries regarding registration, training, demonstration etc of Government e-Procurement System of NIC (GePNIC). Bidders may further note that on-line bid submission can be quite time-consuming. They are advised to start their uploading of bid sufficiently in advance to ensure complete uploading of bid within stipulated time.

2.11.1 Bidding Methodology:

Single-stage Two-Bid System (Technical Part and Financial Part to be submitted at the same time) shall be followed.

Digital Certificates

- For integrity of data and its authenticity/ non-repudiation of electronic records, and to become compliant with IT Act 2000, Digital Signature Certificate (Signing & Encryption Certificates) of type Class 3 issued by any Certifying Authority (CA) under Controller of Certifying Authorities (CCA) of India.

Minimum Requirements at Bidder's Desktop/Laptop:

The bidders can contact NIC on Toll Free Help Desk Number- 1800 3070 2232 regarding desktop/laptop requirements for submission of bids on GePNIC portal.

a. Online Submission: -

The On Line Submission will have the following activities:

i) Submission of Technical Part as under:

Technical Part must contain the following which is required to be submitted in the Main Bid/Bid Annexure:

- a) Submission of requisite tender fee and EMD (as mentioned in Section-1)
- b) Duly filled in Annexures as per Section – 6.
- c) Scanned copy of Documentary Evidence of Eligibility Criteria and other documents as required in this tender
- d) A statement showing Clause-by-Clause compliance to all Terms & Conditions of all the Section of the tender on the Letter Head of their Organization.
- e) Duly filled in 'No-Conviction Certificate'.
- f) Any other supporting documents the bidder wishes to submit as a part of Technical Offer.

g) AUTHORIZATION LETTER/ BOARD RESOLUTION :

The bidders need to submit board resolution along with authorization Letter in Online mode authorizing the signatory to act on behalf of the bidder. The Authorized person should be either authorized by Board or a employee authorized by one of the following person who has the Board Resolution to delegate authorization to other :

1. Managing director
2. The Chief Executive Officer
3. The Manager;
4. The Company Secretary
5. The Whole-time director
6. The Chief Financial Officer

The bidder should ensure that the Digital Signature used for uploading the tender document in e-tender portal should be of the authorized signatory.

- ii) Submission of Financial Part:** - Financial Part must contain the Price Bid Schedule as per Volume-II.

NOTE: For more details for Online Submission of the bid, please go through Appendix (A) of Section-2 namely 'Detailed instructions for Online Bid Submission'

b. Offline Submission: -

The bidders shall note that in case the payment of Tender Fee and/or EMD is done through DD/ BG modes, then the original Hard Copy of the same shall be submitted to TCIL Office, New Delhi (address mentioned below) before the last date and time for submission of the bid, failing to which, the bid of such bidders shall be rejected summarily and shall not be considered for any further evaluation.

Address: Project Director (UP), TCIL
K-703, Yamuna Apartments,
Sector-4, Gomti Nagar Extension, Lucknow,
Uttar Pradesh- 226010

2.12 ONE BID PER BIDDER

Each bidder shall submit only one (1) bid either as individual or as a JV, if permitted. The bidder who submits or participates in more than one bid, will cause all the proposals with the bidder's participation to be disqualified. *However, participation through JV/ Consortium is not permitted in this tender.*

2.13 Deleted**2.14 LANGUAGE OF BID**

All documents relating to the bid shall be in the ENGLISH language.

2.15 SIGNING OF THE BID

2.15.1 Each page of the bid document shall be signed by the bidder or a person duly authorized by him. The letter of authorization in the form of power of attorney shall be attached to the bid.

2.15.2 The bid shall not have any overwriting. In case of mistake, the matter is to be re-written afresh after cutting the earlier one and it should be signed by the bidder.

2.16 LATE BIDS

Bidders are advised in their own interest to ensure that bids may be submitted well before the closing date and time. Any bid received after deadline for bid submission will be rejected and will not be considered.

2.17 MODIFICATION AND WITHDRAWAL OF BIDS

- a) Bid withdrawal/modification shall not be allowed after end date and time of bid submission.
- b) Withdrawal of a bid between the deadline for submission of bids and the expiration of the period of bid validity specified in the tender or as extended, may result in the forfeiture of the bid security. Such defaulting vendor is liable to be debarred from participating in future bids for a period of upto 5 years.

2.18 EMPLOYER'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY OR ALL BIDS

The Employer does not bind himself to accept lowest or any other tender/bid and has the right to cancel the bidding process and reject all bids at any time prior to award of the contract without assigning any reasons whatsoever and without thereby incurring any liability to the affected bidder on the grounds for the Employer's action.

2.19 STANDARDS

The work done under the contract shall conform to the standard mentioned in the Technical Specifications of the tender document.

2.20 SUB-LETTING

The contractor cannot assign or transfer and sub-contract its interest / obligations under the contract without prior written approval of Engineer-in-Charge.

If the contractor assigns (excluding part(s) of work assigned to other agency(s) by the contractor as per terms of contract), transfers, sublets (engagement of labour on a piece-work basis or of labour with materials not to be incorporated in the work, shall not be deemed to be subletting) or otherwise parts with or attempts to assign, transfer, sublet or otherwise parts with the entire works or any portion thereof without the prior written approval of the Engineer-in-Charge. When the contractor has made himself liable for action under any of the cases aforesaid, the Engineer-in-Charge on behalf of the TCIL / Client shall have powers:

(a) To determine the contract as aforesaid so far as performance of work by the Contractor is concerned (of which determination notice in writing to the contractor under the hand of the Engineer-in-Charge shall be conclusive evidence). Upon such determination, Security Deposit already recovered, Security Deposit payable and Performance Guarantee under the contract shall be liable to be forfeited and shall be absolutely at the disposal of the Government

(b) After giving notice to the contractor to measure up the work of the contractor and to take such whole, or the balance or part thereof, as shall be un-executed out of his hands and to give it to another contractor to complete the work. The contractor, whose contract is determined as above, shall not be allowed to participate in the tendering process for the balance work including any new items needed to complete the work. In the event of above courses being adopted by the Engineer-in-Charge, the contractor shall have no claim to compensation for any loss sustained by him by reasons of his having purchased or procured any materials or entered into any engagements or made any advances on account or with a view to the execution of the work or the performance of the contract. And in case action is taken under any of the provision aforesaid, the contractor shall not be entitled to recover or be paid any sum for any work thereof or actually performed under this contract unless and until the Engineer-in-Charge has certified in writing the performance of such work and the value payable in respect thereof and he shall only be entitled to be paid the value so certified.

2.21 INTEGRITY PACT PROGRAMME

2.21.1 As a part of implementation of Integrity Pact Programme (IPP) in TCIL, all tenders with the estimate value equal to or exceeding the threshold value 4 crores will be covered under the Integrity Pact Programme (IPP). Vendor in case of tenders with the estimated value less than the threshold value, the vendors would be required to sign the IP document if the total value of the Purchase Orders (POs) exceeds the threshold value in respect of:

Multiple / repeat POs on the single vendors against a tender PO's placed on multiple vendors against a tender.

.21.2 Only those vendors who have purchased the tender document and signed the IP document can send their grievances, if any, to the Independent External Monitors (IEMs) through the nodal officer, i.e. Chief Vigilance Officer (CVO), TCIL in the prescribed proforma.

NAME OF IEMs WITH THEIR CONTACT DETAILS:

i) Shri Anil Kumar Shrivastava, Independent External Monitor
Email ID: anilifs@gmail.com

ii) Shri Harishwar Dayal, Independent External Monitor
E mail ID: dayalagra@gmail.com

2.22 NAME & CONTACT DETAILS OF NODAL OFFICER (IP) IN TCIL:

Shri PRAMOD KUMAR CHOUDHARY, IRSS
Chief Vigilance Officer
E mail ID: cvotcil@tcil.net.in

2.22.1 If the order, with total value equal to or more than the threshold value, is split to more than one vendor and even if the value of PO placed on any / each vendor(s) is less than the threshold value, IP document having been signed by the vendors at bid stage itself, the Pact shall continue to be applicable.

2.22.2 In respect of tenders for Pre-bid tie up / Expression of Interest (EOI): In case of TCIL getting the order from the client, before placement of Purchase Order / Work Order on technically & commercially qualified vendor, the selected vendor is required to sign the IP document.

2.22.3 IP document shall be in plain white sheet and to be signed by the vendor and TCIL with two witnesses from each party. The name, designation, company etc. of the persons signing the IP document and the project / tender name shall be clearly mentioned. All pages of the IP document shall be initiated by both parties along with company seal.

2.22.4 Tender received without signed & stamped copy of the Integrity Pact document, if applicable, will be liable to be rejected, and the bidder himself will be responsible for that.

2.22.5 In case of Joint Venture, all partners of the joint venture should sign the Integrity Pact. In case of sub-contracting, the Principal Contractor shall take the responsibility of the adoption of IP by sub-contractor. It is to be ensured that all sub-contractors also sign the IP.

2.22.6 Mediation Clause: -

In the event of any dispute between management and the contractor relating to those contracts where integrity pact is applicable, in case, both the parties are agreeable, the dispute may be settled through mediation before the panel of IEMs in a time bound manner. If required, the organizations may adopt any mediation

rules for this purpose.

In case the dispute remains unresolved even after mediation by panel of IEMs, the organization may take further action as per terms and conditions of the contract.

2.23 ADVICE TO BIDDERS FOR AVOIDING REJECTION OF THEIR OFFERS

The Employer has to finalize its purchase / contract within a limited time schedule. Therefore, it may not be feasible for the bidder to seek clarifications for a long time in respect of incomplete offers. The bidders are advised to ensure that their bids are complete in all respects and conform to the terms, conditions and bid evaluation criteria of the tender. Bidders not complying with tender requirements may cause rejection of their bids.

2.24 SUBMISSION OF FORGED DOCUMENTS

Bidders should note that TCIL may verify authenticity of all the documents / certificate / information submitted by them against the Tender / EOI. In case at any stage of this process, if it is established that bidder has submitted forged documents / certificates / information towards fulfillment of any of the Tender / EOI / contract conditions, TCIL shall immediately reject the bid of such bidder(s) or cancel / terminate the contract and forfeit bid security / Performance Security submitted by the bidder and debar them from participation in future tenders of TCIL for a period upto 2 years.

2.25 EVALUATION OF TENDERS

- b) TCIL shall evaluate bids in respect to substantive responsiveness of the bid or otherwise. TCIL shall carry out detailed evaluation of the substantially responsive bids only.
- c) A bid determined as substantially non-responsive technically/financially shall be rejected, even after opening the price bid.
- d) TCIL may waive any minor infirmity or non-conformity or irregularity in the bid which does not constitute a material deviation.
- e) Among all technically qualified bids, the lowest bid will be termed as L1 (excluding taxes) derived from Price Bid Schedule. The Purchase Preference needs to be given as per Purchase Preference for "MAKE IN INDIA".
- f) If there is a discrepancy between the unit price and total price that is obtained multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected.

2.25.2 Arithmetical error shall be rectified on the following basis: -

- a) If there is a discrepancy between the unit price and total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected by the Employer.

b) In case of discrepancy between words and figures, the amount in words shall prevail.

2.26.1 The evaluation of the ranking shall be carried out on the landed price of goods/ services offered inclusive of 1% Labourcess, GST and all taxes as applicable.

2.26.2 BID PRICE:-The prices quoted by the bidder shall remain firm during the entire period of the contract and shall not be subject to variation (unless asked by TCIL). Clauses such as “at actual”, “extra”, “to be given later” etc. shall also be treated as non-responsive & are liable for rejection.

2.27 EVALUATION OF TECHNICAL BID:

2.27.1 The details given by the bidders in the Technical Bid documents will be evaluated, and price bids of only technically qualified bidders shall be opened at a later date duly notified. Even though bidder may satisfy the requirements in technical bid, they are subject to be disqualified if they have:

a) Made misleading or false representation in the Annexure statements and enclosures required in the ‘Technical Bid.’

b) Records of poor performance such as abandoning work, not properly completing the contract, or financial failures/weaknesses.

2.27.2 The bidders are required to submit the documents strictly as per Annexures in the Technical Bid.

2.27.3 The decision of TCIL in the evaluation of Technical Bids shall be final.

2.28 OPENING OF PRICE OFFER

Price offers of only those bidders whose Techno-Commercial offers are found to be responsive and acceptable to TCIL will qualify to be opened. The qualified parties shall be notified with the date and time of the opening of the Price Offer in advance. Representative of the qualified parties may attend the Price Bid opening.

2.29 EVALUATION OF FINANCIAL BID:

2.29.1 The FINANCIAL BID should be submitted in accordance of Volume -2 of the bid document with duly filled in Schedule of Financial Quote at Financial Bid.

2.29.2 To be quoted in accordance to price bid format. The Construction Cost shall be inclusive of all taxes including GST, and all expenditures incurred by the contractor on all activities required for commencement/ completion/ occupation of the building/ works as per the stated scope of work as of this bid document. Nothing shall be paid extra and contractor is required to quote its rates inclusive of all applicable taxes, levies, charges including

GST.

2.29.3 Nothing extra over the construction cost / fee shall be payable.

2.29.4 The decision of the Committee of the TCIL in evaluating and assessing the bid shall be final.

2.30 NOTIFICATION OF SUCCESSFUL BIDDER

2.30.1 Prior to the expiration of the bid validity period, the Employer will notify the successful bidder in writing, by registered letter/mail or fax, to be confirmed in writing by registered letter, that its bid has been accepted.

2.30.2 Upon successful bidder furnishing of Performance Guarantee, the Employer will notify each unsuccessful bidder and will discharge its bid bond.

2.31 ISSUE OF LETTER OF INTENT

2.31.1 The issue of Letter of Intent shall constitute the intention of the Employer to place the Purchase Order with the successful bidder.

2.31.2 The bidder shall within 10 days of issue of Letter of Intent, give its acceptance along with Performance Guarantee in conformity with the bid documents.

2.32 CANCELLATION OF LETTER OF INTENT

Failure of the successful bidder to comply with the requirement of submission of the Performance Guarantee within the stipulated time shall constitute sufficient grounds for cancellation of the acceptance of the bid and forfeiture of the bid bond, in which case the Employer may, at its discretion, make the offer to any other bidder or call for new bids.

2.33 BANNING OF NON-PERFORMING VENDOR

In case any of the vendor's work/PO/agreement is cancelled/terminated by TCIL after award, due to non-performance, the vendor may be banned/blacklisted upto 2 years or action as deemed fit may be taken by TCIL.

2.34 At any time, in case it comes to the knowledge of TCIL any of wrong information related with eligibility of the bidder or non-compliance to any terms and conditions of tender, then TCIL reserves the right to cancel or reject the bid of such bidder, cancel the tender or take any other action as deemed fit in accordance with tender terms and conditions.

APPENDIX (A) FOR SECTION-2**Detailed Instructions for Online Bid Submission**

The bidders are required to submit soft copies of their bids electronically on the CPP Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the bidders in registering on the CPP Portal, prepare their bids in accordance with the requirements and submitting their bids online on the CPP Portal.

More information useful for submitting online bids on the CPP Portal may be obtained at: <https://etenders.gov.in/eprocure/app>.

REGISTRATION:

- 1) Bidders are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: <https://etenders.gov.in/eprocure/app>) by clicking on the link “**Online bidder Enrollment**” on the CPP Portal which is free of charge.
- 2) As part of the enrolment process, the bidders will be required to choose a unique username and assign a password for their accounts.
- 3) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the CPP Portal.
- 4) Upon enrolment, the bidders will be required to register their valid Digital Signature Certificate (Class III Certificates with signing key usage) issued by any Certifying Authority recognized by CCA India (e.g. Sify / nCode / eMudhra etc.), with their profile.
- 5) Only one valid DSC should be registered by a bidder. Please note that the bidders are responsible to ensure that they do not lend their DSC's to others which may lead to misuse.
- 6) Bidder then logs in to the site through the secured log-in by entering their user ID / password and the password of the DSC / e-Token.

SEARCHING FOR TENDER DOCUMENTS:

- 1) There are various search options built in the CPP Portal, to facilitate bidders to search active tenders by several parameters. These parameters could include Tender ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for tenders, wherein the bidders may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, Other keywords etc. to search for a tender published on the CPP Portal.
- 2) Once the bidders have selected the tenders they are interested in, they may download the required documents / tender schedules. These tenders can be moved to the respective ‘My Tenders’ folder. This would enable the CPP Portal to intimate the bidders through SMS / e-mail in case there is any corrigendum issued to the tender document.

- 3) The bidder should make a note of the unique Tender ID assigned to each tender, in case they want to obtain any clarification / help from the Helpdesk.

PREPARATION OF BIDS:

- 1) Bidder should take into account any corrigendum published on the tender document before submitting their bids.
- 2) Please go through the tender advertisement and the tender document carefully to understand the documents required to be submitted as part of the bid. Please note the number of covers in which the bid documents have to be submitted, the number of documents - including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.
- 3) Bidder, in advance, should get ready the bid documents to be submitted as indicated in the tender document / schedule and generally, they can be in PDF / XLS / RAR / DWF/JPG formats. Bid documents may be scanned with 90 dpi with black and white option which helps in reducing size of the scanned document.
- 4) To avoid the time and effort required in uploading the same set of standard documents which are required to be submitted as a part of every bid, a provision of uploading such standard documents (e.g. PAN card copy, annual reports, auditor certificates etc.) has been provided to the bidders. Bidders can use “My Space” or “Other Important Documents” area available to them to upload such documents. These documents may be directly submitted from the “My Space” area while submitting a bid, and need not be uploaded again and again. This will lead to a reduction in the time required for bid submission process.

Note: *My Documents space is only a repository given to the Bidders to ease the uploading process. If Bidder has uploaded his Documents in My Documents space, this does not automatically ensure these Documents being part of Technical Bid.*

SUBMISSION OF BIDS:

- 1) Bidder should log into the site well in advance for bid submission so that they can upload the bid in time i.e. on or before the bid submission time. Bidder will be responsible for any delay due to other issues.
- 2) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the tender document.
- 3) Bidder has to select the payment option as “offline” to pay the tender fee / EMD as applicable and enter details of the instrument.
- 4) Bidder should prepare the EMD as per the instructions specified in the tender document. The original should be posted/couriered/given in person to the concerned official, latest by the last date of bid submission or as specified in the tender documents. The details of the DD/any other accepted instrument, physically sent, should tally with the details available in the scanned copy and the data entered during bid submission time. Otherwise the uploaded bid will be rejected.

5) Bidders are requested to note that they should necessarily submit their financial bids in the format provided and no other format is acceptable. If the price bid has been given as a standard BoQ format with the tender document, then the same is to be downloaded and to be filled by all the bidders. Bidders are required to download the BoQ file, open it and complete the white coloured (unprotected) cells with their respective financial quotes and other details (such as name of the bidder). No other cells should be changed. Once the details have been completed, the bidder should save it and submit it online, without changing the filename. If the BoQ file is found to be modified by the bidder, the bid will be rejected.

6) The server time (which is displayed on the bidders' dashboard) will be considered as the standard time for referencing the deadlines for submission of the bids by the bidders, opening of bids etc. The bidders should follow this time during bid submission.

7) All the documents being submitted by the bidders would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128 bit encryption technology. Data storage encryption of sensitive fields is done. Any bid document that is uploaded to the server is subjected to symmetric encryption using a system generated symmetric key. Further this key is subjected to asymmetric encryption using buyers/bid opener's public keys. Overall, the uploaded tender documents become readable only after the tender opening by the authorized bid openers.

8) The uploaded tender documents become readable only after the tender opening by the authorized bid openers.

9) Upon the successful and timely submission of bids (i.e. after Clicking "Freeze Bid Submission" in the portal), the portal will give a successful bid submission message & a bid summary will be displayed with the bid no. and the date & time of submission of the bid with all other relevant details.

9) The bid summary has to be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry pass for any bid opening meetings.

ASSISTANCE TO BIDDERS:

1) Any queries relating to the tender document and the terms and conditions contained therein should be addressed to the Tender Inviting Authority for a tender or the relevant contact person indicated in the tender.

2) Any queries relating to the process of online bid submission or queries relating to CPP Portal in general may be directed to the 24x7 CPP Portal Helpdesk.

-ENDOFSECTION-2-

SECTION- 3**GENERAL (COMMERCIAL) CONDITIONS OF THE CONTRACT****3.1 DEFINITIONS AND INTERPRETATIONS****3.1.1 Definitions**

In the **Contract** (as hereinafter defined), the following words and expressions shall have the meanings hereby assigned to them, except where the Contract otherwise requires:

a) “Works”

Means the Permanent Works and the Temporary Works, or either of them as appropriate. The expression “*works*” or “*work*” shall, unless there be something either in the subject or context repugnant to such construction, be construed and taken to mean the works by or by virtue of the contract contracted to be executed, whether temporary or permanent, and whether original, altered, substituted, or additional.

b) “Site”

Shall mean the land, places on, into, or over which the work is to be executed under the contract, or any adjacent land, path, or street which may be temporarily allotted or used for the purpose of carrying out the contract.

c) “Owner / Client”

Shall be the **Navodaya Vidyalaya Samiti (NVS)** (an Autonomous Organization under the Ministry of Education), Department of School Education & Literacy, Government of India, through MPLAD & MLA Fund.

d) “Employer / PMC / Construction Agency (CA) / Executing Agency (EA)”

Shall mean **Telecommunications Consultants India Limited (TCIL)**.

e) “Project Director / Engineer-in-Charge / Engineer”

Shall mean the officer appointed by the Employer (i.e. TCIL) for the purpose.

f) “Contractor / Agency”

Shall mean the individual, firm, or company, whether incorporated or not, undertaking the works, and shall include the legal personal representative of such individual, the persons composing such firm or company, or the successors of such firm or company, and the permitted assignees of such individual, firm, or company.

g) “Contract”

Means the documents forming the tender and acceptance thereof and the formal agreement executed between the competent authority on behalf of the Engineer-in-Charge and the Contractor, together with the documents referred to therein, including these conditions, the specifications, designs, drawings, and instructions issued from time to time by the Engineer-in-Charge. All these documents taken together shall be deemed to form one contract and shall be complementary to one another.

h) “Specifications”

Means the relevant specifications of the Works included in the Contract and any modification thereof or addition thereto as approved by the Employer on behalf of the Owner.

i) “Drawings”

Means all drawings, calculations, and technical information provided by the Employer to the Contractor under the Contract, and all drawings, calculations, samples, patterns, models, operation and maintenance manuals, and other technical information of a like nature submitted by the Contractor and approved by the Employer on behalf of the Owner.

j) “SOR / Price Bid”

Means the Schedule of Rates as mentioned in and falling under the Detailed Notice Inviting Tender of the main contract.

Market Rate shall be the rate as decided by the Engineer-in-Charge on the basis of the cost of materials and labour at the site where the work is to be executed, plus the percentage mentioned in Schedule ‘F’ to cover all overheads and profits.

Provided that no extra overheads and profits shall be payable on the part(s) of work assigned to other agency(s) by the Contractor as per the terms of the contract.

Schedule(s) referred to in these conditions shall mean the relevant schedule(s) annexed to the tender documents or the standard Schedule of Rates of the Government mentioned in Schedule ‘F’ hereunder, with amendments thereto issued up to the date of receipt of the tender.

k) “Tender / Bid”

Means the Contractor’s priced offer to the Employer for the performance and completion of the Works and remedying of any defects therein in accordance with the provisions of the Contract, as accepted by the Letter of Acceptance.

The word “*Tender*” is synonymous with “*Bid*” and the words “*Tender Documents*” with “*Bidding Documents*”.

l) “Letter of Intent”

Shall mean intimation by a letter / fax of intent that the tender has been accepted in accordance with the provisions contained in the said letter / fax.

m) “Letter of Acceptance”

Means the formal acceptance by the Employer.

n) “Contract Price”

Means the sum stated in the Letter of Acceptance as payable to the Contractor for performance and completion of the Works and remedying of any defects therein in accordance with the provisions of the Contract.

o) “Cost”

Means all expenditure properly incurred or to be incurred, whether on or off the Site, including overheads and other charges properly allowable thereon, but does not include any allowance for profit.

p) “Day”

Means a day of 24 hours from midnight to midnight, irrespective of the number of hours worked in that day.

q) “Working Day”

Means any day which is not declared to be a holiday or rest day by the Employer.

r) “Week”

Means a period of any consecutive seven days.

s) “Writing”

Means any handwritten, printed, or typed communication, including fax.

t) “Headings”

In the clauses / conditions of the tender document are for convenience only and shall not be used for interpretation of the clause / condition.

u) “Excepted Risks”

Are risks due to riots (other than those on account of Contractor’s employees), war (whether declared or not), invasion, act of foreign enemies, hostilities, civil war, rebellion, revolution, insurrection, military or usurped power, any acts of Government, damage from aircraft, acts of God such as earthquake, lightning, and unprecedented floods, and other causes over which the Contractor has no control and accepted as such by the Accepting Authority, or causes solely due to use or occupation by Government of the part of the Works in respect of which a certificate of completion has been issued, or causes solely due to Government’s faulty design of Works.

3.1.2 Language for all the Drawings, titles, notes, communications, instructions, dimensions etc. shall be English only.

3.2 Headings and Marginal Notes

The headings and marginal notes in these conditions are indicative only and shall not be deemed part thereof or be taken into consideration in the interpretation or construction thereof or of the Contract.

3.3 Interpretation

Words imparting persons or parties shall include firms and corporations and any organization having legal capacity.

3.4 Singular and Plural

Words imparting the singular only also include the plural and vice versa where the context so requires.

- i) Where the context so requires, words imparting the singular only also include the plural and vice versa. Any reference to masculine gender shall whenever required include feminine gender and viceversa.

ii) Headings and Marginal notes to these General Conditions of Contract shall not be

deemed to form part thereof or be taken into consideration in the interpretation or construction thereof of the contract.

3.5 Notices, Consents, Approvals, Certificates and Determinations

Wherever in the Contract, provision is made for giving or issue of any notice, consent, certificate or determination by any person, unless otherwise specified such notice, consent, approval, certificate or determination shall be in writing and the words 'notify', 'certify' or 'determine' shall be construed accordingly.

3.6 Discrepancies and Adjustment of Errors- The several documents forming the Contract are to be taken as mutually explanatory of one another, detailed drawings being followed in preference to small scale drawing and figured dimensions in preference to scale and special conditions in preference to General Conditions

3.7 Project Directors and Project Director's Representative

3.7.1 Project Director's Duties and Authority

Project Director appointed by TCIL reserves the right in checking/ tests checking of the operation of the contract in respect of quality, testing, and measurement of Works either directly or through a separate agency or both.

(a) The Project Director may exercise the authority specified in or necessarily to be implied from the Contract and is not required to obtain the specific approval of the Employer before exercising any such authority. Provided further that any requisite approval shall be deemed to have been given by the Employer for any such authority exercised by the Project Director.

3.7.2 Project Director's Representative

The Project Director's Representative shall be appointed by and be responsible to the Project Director and shall carry out such duties and exercise such authority as may be delegated to him by the Project Director under Sub-Clause 3.8.3.

3.7.3 Project Director's Authority to Delegate

The Project Director may from time to time delegate to his Representative any / all of the duties and authorities vested in the Project Director and he may at any time revoke such delegation. Any such delegation or revocation shall be in writing and shall not take effect until a copy thereof has been delivered to the Contractor.

Any communication given by Project Director's Representative to the Contractor in accordance with such delegation shall have the same effect as though it had been given by the Project Director, provided that;

(a) any failure of the Project Director's Representative to disapprove any work, materials or Plant shall not prejudice the authority of the Project Director to disapprove such work, materials or Plant and to give instructions for the rectification thereof; and

(b) if the Contractor questions any communication of the Project Director's Representative he may refer the matter to the Project Director who shall confirm, reverse or vary the contents of such communication.

3.7.4 Appointment of Assistants

The Project Director or his Representative may appoint any number of persons to assist him in carrying out of his duties. He shall notify to the Contractor the names and duties of such persons. Such assistants shall have no authority to issue any instructions to the Contractor save in so far as such instructions may be necessary to enable them to carry out their duties and to secure their acceptance of materials, Plant or workmanship as being in accordance with the Contract, and any instructions given by any of them for those purposes shall be deemed to have been given by the Project Director's Representative.

3.7.5 Instructions in Writing

Instructions given by the Project Director shall be in writing, provided that if for any reason the Project Director considers it necessary to give any such instruction orally, the Contractor shall comply with such instruction. Confirmation in writing of such oral instruction given by the Project Director, whether before or after carrying out of the instruction shall be deemed to be an instruction within the meaning of this Sub-Clause. Provided further that if the Contractor, within 5 days, confirms in writing to the Project Director any oral instruction of the Project Director and such confirmation is not contradicted in writing within 7 days by the Project Director, it shall be deemed to be an instruction of the Project Director.

The provisions of this sub-clause shall equally apply to instructions given by the Project Director's Representative and any Assistant of the Project Director or the Project Director's Representative appointed pursuant to Sub-Clause 3.8.4

3.7.6 Project Director to Act Impartially

Wherever, under the Contract, the Project Director is required to exercise his discretion by;

- (a) giving his decision, opinion or consent, or
- (b) expressing his satisfaction or approval, or
- (c) determining value, or
- (d) otherwise taking action, which may affect the rights and obligations of the Employer or the Contractor,

He shall exercise such discretion impartially within the terms of the Contract and having regard to all the circumstances. Any such decision, opinion, consent, expression of

satisfaction, approval, determination of value or action may be opened up, reviewed or revised as provided in Clause 3.8.

3.8 CONTRACT DOCUMENTS

3.8.1 Language and Law

(a) The language in which the Contract documents shall be drawn up is English.

(b) The country, the law of which shall apply to the Contract and according to which the Contract shall be construed is India. For any dispute the jurisdiction of the court shall be the High Court of Delhi.

Priority of Contract Documents

The several documents forming the Contract are to be taken as mutually explanatory of one another, but in case of ambiguities or discrepancies the same shall be explained and adjusted by the Project Director who shall thereupon issue to the Contractor instructions thereon and in such event, unless otherwise provided in the Contract, the priority of the documents forming the Contract shall be as follows:

- (a) The Contract Agreement
- (b) The Letter of Acceptance
- (c) The Tender
- (d) Priced Bill of Quantities
- (e) General Conditions
- (f) Special Conditions
- (g) Drawings
- (h) Any other document forming part of the Contract
- (i) Specifications

3.8.2 Custody and Supply of Drawings and Documents

The Drawings shall remain in the sole custody of the Project Director, but two copies thereof shall be provided to the Contractor free of charge. The Contractor shall make at his own cost any further copies required by him. Unless it is strictly necessary for the purpose of the Contract, the Drawings, Specifications and other documents provided by the Employer or the Project Director shall not, without the consent of the Project Director, be used or communicated to a third party by the Contractor. Upon issue of Defects Liability Completion Certificate, the Contractor shall return to the Project Director all Drawings, Specifications, and other documents provided under the Contract.

One copy of the specifications provided to the Contractor shall be kept by the Contractor on the Site and the same shall at all reasonable times be available for inspection and use by the Project Director and any other person authorized by the Project Director in writing.

3.8.3 Disruption of Progress

The Contractor shall give notice to the Project Director, whenever works is likely to be delayed or disrupted unless any further instruction is issued by the Project Director within a reasonable time. The notice shall include details of the instruction required and of why and by when it is required and of any delay or disruption likely to be suffered if it is late.

If, by reason of any failure or inability of the Project Director to issue, within a time reasonable under the circumstances, any instruction for which notice has been given by the Contractor in accordance with this Sub-Clause, the Contractor suffers delay, then the Project Director shall determine any extension of time to which the Contractor is entitled.

If the failure or inability of the Project Director to issue instructions is caused in whole or in part by the failure of the Contractor to execute the works which he is required to execute under the Contract, the Project Director shall take such failure by the Contractor into account when making his determination for extension of time.

3.8.4 Supplementary Instructions

The Project Director shall have the authority to issue to the Contractor, from time to time, such supplementary instructions as shall be necessary for the purpose of proper and adequate performance and completion of the Works and remedying of any defects therein. The Contractor shall carry out and be bound by the same.

GENEROBLIGATIONS

3.8.5 Contractor's General Responsibilities

The Contractor shall, with due care and diligence (to the extent provided for by the Contract), perform and complete the Works and remedy any defects therein in accordance with the provisions of the Contract. The Contractor shall provide all superintendence, labor, materials, Equipment and all other things, whether of temporary or permanent nature, required in and for such remedying of any defects, so far as the necessity for providing the same is specified in or is reasonably to be inferred from the Contract. The Contractor shall promptly notify the Project Director of any error, omission, fault or any other defect in the specifications for the Works which he discovers when reviewing the Contract documents or in the process of performance of the Works.

The Contractor shall take the full responsibility for the adequacy, stability and safety of all Site operations and methods of survey, provided that the Contractor shall not be responsible (except as stated hereunder or as may be otherwise agreed) for the design or specification of Works, not prepared by the Contractor. Where the Contract expressly provides that part of the Works shall be designed by the Contractor, he shall be fully responsible for that part of Works, notwithstanding any approval by the Owner / Project Director.

In the event the Contractor defaults in any of the obligations mentioned in the Contract, the Project Director / Employer reserves the right to fulfill the same at the risk and cost of the Contractor.

3.8.6 Contract Agreement

The Contract Agreement shall be prepared and completed in the form annexed to these Conditions with such modifications as may be necessary.

3.8.7 Inspection of Site

The Contractor shall be deemed to have inspected and examined the Site and its surroundings and collected information available in connection therewith and to have satisfied himself (so far as is practicable, having regard to considerations of cost and time) before submitting his Bid, as to:

- (a) the form and nature thereof, including the sub-surface conditions,
- (b) the hydrological and climatic conditions,
- (c) the extent and nature of work and materials necessary for the performance and completion of the Works and remedying of any defects therein, and
- (d) the means of access to the Site and the accommodation he may require and in general, shall be deemed to have obtained all necessary information as abovementioned, as to risks, contingencies and all other circumstances which may influence or affect his Bid.

3.8.8 Sufficiency of Tender

The Contractor shall be deemed to have satisfied himself as to the correctness and sufficiency of the tender and of the rates and prices stated in the Bill of Quantities, all of which shall, except in so far as it is otherwise provided in the Contract, cover all his obligations under the Contract (including those in respect of the supply of goods, materials, Plant or services) and all matters and things necessary for the proper performance and completion of the Works and remedying of any defects therein.

The rate quoted against each item of work shall be for the complete finished item of work and shall be inclusive of all other taxes including, duties, levies and all costs and expenses including GST which may be required in and for performance and full protection of the work as described together with all general risks / liabilities and obligations set forth or implied in the documents.

The rates quoted against each item in the Schedule of Quantities shall be deemed to cater for all minor constructional details which are not specifically mentioned, but are fairly and obviously intended and are essential for the full and final completion of the Works and the Contractor is not entitled to make any extra claim on this account.

The Contractor shall be deemed to have satisfied himself before tendering as to the correctness and sufficiency of his tender for the works and of the rates and prices quoted in the Schedule of Quantities, which rates and prices shall, except as otherwise provided, cover

all his obligations under the Contract and all matters and things necessary for the proper completion and maintenance of the works.

3.8.9 Work to be in Accordance with Contract

Unless it is legally or physically impossible, the Contractor shall perform and complete the Works and remedy any defects therein in strict accordance with the Contract to the satisfaction of the Owner / Project Director. The Contractor shall comply with and adhere strictly to the Project Director's instructions on any matter, whether mentioned in the Contract or not, touching or concerning the Works. The Contractor shall take instruction only from the Project Director, or from the Project Director's representative.

3.8.10 Program to be submitted

A) Within the time stated in the Contract Data, the Contractor shall submit to the Engineer for approval a Program showing the general methods, arrangements, order, and timing for all the activities in the Works, along with monthly cash flow forecasts for the construction of works.

B) The Contractor shall submit the list of equipment and machinery being brought to site, the list of key personnel being deployed, the list of machinery / equipments being placed in field laboratory and the location of field laboratory along with the Program. The Engineer shall cause these details to be verified at each appropriate stage of the program.

C) An update of the Program shall be a program showing the actual progress achieved on each activity and the effect of the progress achieved on the timing of the remaining Works, including any changes to the sequence of the activities.

D) The Contractor shall submit to the Engineer for approval an updated Program at intervals no longer than the period stated in the Contract Data. If the Contractor does not submit an updated Program within this period, the Engineer may withhold the amount stated in the Contract Data from the next payment Certificate and continue to withhold this amount until the next payment after the date on which the overdue Program has been submitted.

E) The Engineer's approval of the Program shall not alter the Contractor's obligations. The Contractor may revise the Program and submit it to the Engineer again at any time. A revised Program shall show the effect of Variations and Compensation Events.

F) The Contractor shall submit to the Engineer Weekly / monthly progress report in prescribed format.

(In case, the contractor fails to submit the completion plan as aforesaid, he shall be liable to pay a sum of 0.1% (zero point one percent) of accepted Tendered Value or limit prescribed in Schedule F whichever is more as may be fixed by the authority as mentioned in Schedule F and in this respect the decision of that authority shall be final and binding on the contractor.)

3.8.11 Project Director at Liberty to Object

The Project Director shall be at liberty to object to and require the Contractor to remove forthwith from the Works any person provided by the Contractor who, in the opinion of the Employer / Project Director, misconducts or is incompetent or negligent in the proper performance of his duties, or whose presence on Site is otherwise considered by the Project Director to be undesirable, and such person shall not be again allowed upon the Works without the consent of the Project Director. Any persons so removed from the Works shall be replaced as soon as possible and no claim whatsoever shall be entertained on this account.

3.8.12 Setting Out

The Contractor shall be responsible for:

- (a) the accurate setting-out of the Works in relation to original points, lines and levels of reference given by the Project Director in writing,
- (b) the correctness of the position, levels, dimensions and alignment of all parts of the Works, and
- (c) the provision of all necessary instruments, appliances and labor in connection with the foregoing responsibilities.

If, at any time during the performance of the Works, any error appears in the position, levels, dimensions or alignment of any part of the Works, the Contractor, on being required to do so by the Project Director, shall at his own cost rectify such error to the satisfaction of Project Director, unless such error is based on incorrect data supplied in writing by the Project Director.

The checking of any setting-out or of any line or level by the Project Director shall not in any way relieve the Contractor of his responsibility for the accuracy thereof and the Contractor shall carefully protect and preserve all bench-marks, sight-rails, pegs and other things used in setting-out of the Works.

3.8.13 Safety, Security and Protection of the Environment

The Contractor shall, throughout the performance and completion of the Works and the remedying of any defect therein:

- (a) have full regard for the safety of all persons entitled to be upon the Site and keep the Site (so far as the same is under his control) and the Works (so far as the same are not completed or occupied by the Employer) in an orderly state appropriate to the avoidance of danger to such persons, and
- (b) provide and maintain at his own cost all lights, guards, fencing, warning signs and watching, when and where necessary or required by the Project Director or by any duly constituted authority, for the protection of the Works or for the safety and convenience of the public or others, and

(c) take all reasonable steps to protect the environment on and off the Site and to avoid damage or nuisance to persons or to property of the public or others resulting from pollution, noise or other causes arising as a consequence of his methods or operation.

(d) In respect of all labour directly or indirectly employed in the work for the performance of the contractor's part of this contract, the contractor shall at his own expense arrange for the safety provisions as per C.P.W.D. Safety Code framed from time to time and shall at his own expense provide for all facilities in connection therewith. In case the contractor fails to make arrangement and provide necessary facilities as aforesaid, he shall be liable to pay a penalty as decided by the Client / Engineer-in-Charge for each default and in addition, the Engineer-in-Charge shall be at liberty to make arrangement and provide facilities as aforesaid and recover the costs incurred in that behalf from the contractor.

3.8.14 Responsibility to Rectify Loss or Damage

If any loss or damage happens to the Works, or any part thereof, or materials or Plant for incorporation therein, during the period for which the Contractor is responsible for the care thereof, from any cause whatsoever, other than the risks as defined, the Contractor shall at his own cost rectify such loss or damage so that the Works conform in every respect with the provision of the Contract to the satisfaction of the Project Director. The Contractor shall also be liable for any loss or damage to the Works occurred by him in the course of any operation carried out by him for the purpose of complying with his obligations under referenced Clauses.

3.8.15 Force Majeure

The Contractor shall not be considered in default if delay in completion of the work occurs due to cause beyond its control such as acts of God, natural calamities, civil wars, fire, strike, frost, floods, riots and acts of unsurpassed power. The Executing Agency shall notify Employer in writing within 72 hours from the date of such occurrence not exceeding 03 months. In the event of delay due to such causes, the completion schedule will be extended for a length of time equal to the period of force majeure. Any expenditure incurred by the Contractor during the period of force majeure shall be reimbursed by the Employer. In case of closure of work due to the force majeure, any liabilities towards contractor and / or expenditure of the Executing Agency shall be payable by the Employer.

Likewise, it must proceed to inform the end of such fact. As soon as the facts constituting a force majeure cease in their effects, the contractor shall restart or continue the fulfillment of its obligations agreed upon. Should suspension of work as explained above exceed three months, the contract shall be violable at the option of either party without penalty on either side.

Contractor Agency shall not be held responsible for the delay / stoppage of work due to force majeure conditions like natural calamities, civil disturbance, war, etc. and for losses suffered, if any, by the Employer on this account. The Executing Agency shall also not be able in any way to bear such losses and no compensation of any kind whatsoever will be payable by the Executing Agency to the Employer.

3.8.16 Fossils

All fossils, coins, articles of value or antiquities and structures and other remains or things of geological or archaeological interest discovered on the Site of the Works shall be deemed to be absolute property of the Employer and the Contractor shall take reasonable precautions to prevent his workmen or any other person from removing or damaging any such article or thing and shall, immediately upon discovery thereof and before removal, acquaint the Project Director or Project Director's Representative of such discovery and carry out the Project Director's instructions for dealing with the same.

During excavation if any underground services are noticed and the same is needed to be removed / relocated, the cost of removal / relocation shall be determined by the Project Director and reimbursed to the Contractor after getting approval of the Employer.

3.8.17 Patent Rights

The Contractor shall indemnify the Employer from and against all claims and proceedings for or on account of infringement of any patent rights, design, trademark or name or other protected right in respect of any Contractor's Equipment, materials or Plant used for or in connection with or for incorporation in the Works and from and against all damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto, except where such infringement results from the compliance with the design or specification provided by the Project Director.

3.8.18 Contractor to Keep Site Clear

During the performance of the Works, the Contractor shall keep the Site reasonably free from all unnecessary obstructions and shall store or dispose of any Contractor's equipment and surplus materials and clear away and remove from the Site any wreckage, rubbish or temporary Works no longer required.

3.8.19 Clearance of Site on Completion

Before the issue of any Taking-Over Certificate, the Contractor shall clear away and remove from that part of the Site to which such Taking-Over Certificate relates all Contractor's equipment, surplus material, rubbish and temporary Works of every kind, and leave such part of the Site and Works clean and in a workmanlike condition to the satisfaction of the Owner / Project Director, provided that the Contractor shall be entitled to retain on Site, until the end of the Defects Liability Period, such materials, Contractor's Equipment, and temporary Works as are required by him for the purpose of fulfilling his obligations during the Defects Liability Period.

3.8.20 Labour

The Contractor shall make his own arrangements for the engagement of all labour, local or other.

The Contractor shall, if required by the Project Director, deliver to the Project Director's representative, or at his office, a return in detail in such form and at such intervals as the Project Director may prescribe showing the supervisory staff and the number of the several classes of labour from time to time employed by the Contractor on the Site and such information respecting constructional Plant as the Project Director's Representative may require.

The Contractor shall file all labour returns in detail to the respective authorities / statutory bodies as prescribed under law applicable at the work Site and inform the Employer / Project Director with copies of such returns directly filed.

The Contractor shall abide by the local laws and regulations governing labour applicable from time to time. During continuance of the Contract, the Contractor shall abide at all times by all existing labour enactments and rules made thereunder, regulations, notifications and by-laws of State or Central Government or local authority, and any other labour law (including rules), regulations, by-laws that may be passed or notification that may be issued under any labour law in future either by the State or the Central Government or the local authority.

Salient features of some of the major labour laws that are applicable to construction industry are given hereafter. The Contractor shall keep the Employer indemnified in case any action is taken against the Employer by the competent authority on account of the contravention of any of the provisions of any Act or rules made thereunder, regulations or notifications including amendments. If the Employer is caused to pay or reimburse such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated in the notifications / amendments / by-laws / acts / rules / regulations, including amendments, if any, on the part of the Contractor, the Project Director / Employer shall have the right to deduct any amount due to the Contractor. The Employer / Project Director shall also have the right to recover from the Contractor any sum required or estimated to be required for making good the loss or damage suffered / likely to be suffered by the Employer.

The employees of the Contractor and the Sub-Contractors in no case shall be treated as the employees of the Employer at any point of time.

Salient features of some of the major labour laws applicable to establishments engaged in building and other construction works are as given below. The bidder / contractor will be required to comply with these laws as per their workforce / establishments. For these Acts, as mentioned below, the agency will also act as employer wherever applicable in accordance with these laws / Acts.

(a) Workmen Compensation Act, 1923

The Act provides for compensation in case of injury by accident arising out of and during the course of employment.

(b) Payment of Gratuity Act, 1972

Gratuity is payable to the employee under the Act on satisfaction of certain conditions on separation if an employee has completed 5 years service or more or on death at the rate of 15 days wages for every completed year of service. The Act is applicable to all establishments employing 9 or more employees.

(c) Employees P.F. and Miscellaneous Provisions Act, 1952

The Act provides for monthly contributions by the employer plus workers @ 9% or 8.33%.
The benefits payable under the Act are:

- (i) Pension or family pension on retirement or death as the case may be.
- (ii) Deposit linked insurance on the death in harness of the worker.
- (iii) Payment of P.F. accumulation on retirement / death etc.

(d) Maternity Benefit Act, 1951

The Act provides for leave and some other benefits to women employees in case of confinement or miscarriage etc.

(e) Contract Labour (Regulation & Abolition) Act, 1970

The Act provides for certain welfare measures to be provided by the Contractor to contract labour and in case the Contractor fails to provide the same, the same are required to be provided by the Principal Employer by law. The Principal Employer is required to take certificate of registration, and the Contractor is required to take a license from the designated Officer. The Act is applicable to establishments or Contractors of Principal Employer if the employer employs 20 or more contract labour.

(f) Minimum Wages Act, 1948

The Employer is supposed to pay not less than the Minimum Wages fixed by appropriate Government as per provision of the Act if the employment is a scheduled employment. Construction of Buildings, Roads and Runways are scheduled employment.

(g) Payment of Wages Act, 1936

It lays down as to what date the wages are to be paid, when it will be paid, and what deductions can be made from the wages of the workers.

(h) Equal Remuneration Act, 1979

The Act provides for payment of equal wages for work of equal nature to male and female workers and for not making discrimination against female employees in matters of transfers, training and promotions etc.

(i) Payment of Bonus Act, 1965

The Act is applicable to all establishments employing 20 or more workmen. It provides for payment of annual bonus subject to a minimum of 8.33% of wages and maximum of 20% of wages to employees as amended from time to time. The Act does not apply to certain establishments. Newly set up establishments are exempt for five years in certain circumstances. Some State Governments have reduced the employment size from 20 to 9 for applicability of the Act.

(j) Industrial Disputes Act, 1947

The Act lays down machinery and procedure for resolution of industrial disputes, situations where strike or lockout becomes illegal, and requirements for layoff, retrenchment or closure of establishment.

(k) Industrial Employment (Standing Orders) Act, 1946

It is applicable to all establishments employing 90 or more workmen (employment size reduced by some States and Central Government to 50). The Act provides for laying down

rules governing conditions of employment by the Employer and certification by designated authority.

(l) Trade Unions Act, 1926

The Act lays down the procedure for registration of trade unions of workmen and employers. Registered trade unions are given certain immunities from civil and criminal liabilities.

(m) Child Labour (Prohibition & Regulation) Act, 1986

The Act prohibits employment of children below 14 years of age in certain occupations and processes and regulates employment in others. Employment of child labour is prohibited in building and construction industry.

(n) Inter-State Migrant Workmen (Regulation of Employment & Conditions of Service) Act, 1979

Applicable to establishments employing 5 or more inter-state migrant workmen through an intermediary. Such workmen are entitled to housing, medical aid, travelling expenses etc.

(o) Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 and Cess Act, 1996

Establishments employing 10 or more workers are covered. Cess up to 2% of construction cost is applicable. Safety measures, canteen, first aid, ambulance, housing etc. are required. Registration certificate is mandatory.

However, the Contractor shall follow all Acts with latest amendments.

(p) Recovery of Compensation paid to Workmen

In case Government pays compensation under Section 12(1) of the Workmen's Compensation Act, 1923, such amount shall be recovered from the Contractor from security deposit or any sums due. Government shall not be bound to contest such claims except on written request of the Contractor with full security for costs.

3.8 Details to be Confidential

The Contractor shall treat the details of the Contract as private and confidential, save insofar as may be necessary for the purposes thereof, and shall not publish or disclose the same or any particulars thereof in any trade or technical paper or elsewhere without the previous consent in writing of the Employer or the Project Director. If any dispute arises as to the necessity of any publication or disclosure for the purpose of the Contract, the same shall be referred to the decision of the Employer whose award shall be final.

3.9 Drawings and Photographs of the Works

The Contractor shall not disclose details of Drawings furnished to him and Works on which he is engaged without the prior approval of the Project Director in writing. No photograph of the Works or any part thereof for Plant employed thereon shall be taken or permitted by the Contractor to be taken by any of his employees without the prior approval of the Project Director in writing and no such photograph shall be published or otherwise circulated

without the approval of the Project Director in writing.

3.10 The Apprentices Act, 1961

The Contractor shall duly comply with the provisions of the latest Apprentices Act, the rules made thereunder and the orders that may be issued from time to time under the said Act and the said rules and on his failure or neglect to do so, he shall be subject to all liabilities and penalties provided by the said Act and the said rules.

3.11 Inspection of Operations

The Employer/Project Director, and any person authorized by him, shall at all reasonable times have access to the Site and to all Workshops and places where materials or Plant are being manufactured, fabricated or prepared for the Works and the Contractor shall afford every facility for and every assistance in obtaining the right to such access.

3.12 SUSPENSION OF WORK

3.12.11 Suspension of Work

The Contractor shall, on the instruction of Project Director suspend the progress of the Works or any part thereof for such time and in such manner as the Project Director may consider necessary and shall, during such suspension, properly protect and secure the Works or such part thereof so far as is necessary in the opinion of the Project Director. Unless such suspension is:

- (a) Otherwise provided for in the Contract, or
- (b) necessary by reason of some default of or breach of Contract by the Contractor for which he is responsible, or
- (c) Necessary for the proper performance of the Works or for the safety of the Works or any part thereof save to the extent that such necessity arises from any act or default by the Project Director or the Employer or from any of the risks defined in referenced clause will apply.

3.12.12 Project Director's Determination Following Suspension

Where, pursuant to Clause 3.15.1, the Project Director shall, after due consultation with the owner and the Contractor, determine any extension of time to which the Contractor is entitled under Clause 3.16.

3.13 COMMENCEMENT AND DELAYS

3.13.11 Commencement of Works

The Contractor shall commence the Works within the period specified in the tender after the receipt by him of an order in writing to this effect from the Project Director and shall proceed with the Works with due expedition and without delay except as may be expressly sanctioned or ordered by the

Project Director or be wholly beyond the Contractor's control.

Possession of Site

The Project Director will give to the Contractor possession of so much of the Site as may be required to enable the Contractor to commence and proceed with the construction of the Works in accordance with the programme if any, and otherwise in accordance with such reasonable proposal of the Contractor as he shall by giving notice in writing to the Project Director. The Project Director will from time to time as the Works proceed, give to the Contractor possession of such further portions of the Site as may be required to enable the Contractor to proceed with the performance of the Works with due dispatch in accordance with the said programme or proposals, as the case may be.

If the Contractor suffers delay from failure on the part of the Employer to give possession in accordance with the terms of this Clause the Project Director shall on the request of the Contractor grant an extension of time for the completion of the Works after taking due approval from the Employer.

3.13.12 Time for Completion

The whole of the Works and, if applicable, any Section required to be completed within time period as stated in the Bid, shall be completed within the time stated for completion of the whole of the Works or the Section, calculated from the Commencement Date, or such extended time as may be allowed.

3.14 Time and Extension for Delay-

The Extension of Time for delay shall be given to the contractor only after approval from the Client.

The time allowed for execution of the Works as specified in the Schedule-I or the extended time in accordance with these conditions shall be the essence of the Contract. The execution of the work shall commence from such time period as mentioned in Schedule-I or from the date of handing over of the site, notified by the Engineer-in-Charge, whichever is later. If the Contractor commits default in commencing the execution of the work as aforesaid, the performance guarantee shall be forfeited by the Engineer in Charge and shall be absolutely at the disposal of the TCIL without prejudice to any other right or remedy available in law.

3.16.1 As soon as possible but within 10 (ten) days of award of work and in consideration of

- (a) Schedule of handing over of site
- (b) Schedule of issue of designs/ drawings
- (i) The Contractor shall submit a Time and Progress Chart for each mile stone. The Engineer-in-Charge may within 10 (Ten) days thereafter, if required modify, and communicate the program approved to the contractor failing which the program submitted by the contractor shall be deemed to be approved by the Engineer-in-Charge. The work programme shall include all details of balance drawings and

decisions required to complete the contract with specific dates by which these details are required by contractor without causing any delay in execution of the work. The Chart shall be prepared in direct relation to the time stated in the Contract documents for completion of items of the works. It shall indicate the forecast of the dates of commencement and completion of various trades of sections of the work and may be amended as necessary by agreement between the Engineer-in-Charge and the Contractor within the limitations of time imposed in the Contract documents

- (ii) In case of non- submission of construction programme by the contractor, the program approved by the Engineer-in-Charge shall be deemed to be final.
- (iii) The approval by the Engineer-in-Charge of such programme shall not relieve the contractor of any of the obligations under the contract.
- (iv) The contractor shall submit the Time and Progress Chart and progress report using the mutually agreed software or in other format decided by Engineer-in-Charge for the work done during previous month to the Engineer-in-charge on or before 5th day of each month.

3.16.2 If the work(s) be delayed by:-

- (i) force majeure, or
- (ii) abnormally bad weather, or
- (iii) serious loss or damage by fire, or
- (iv) civil commotion, local commotion of workmen, strike or lockout, affecting any of the trades employed on the work, or
- (v) delay on the part of other contractors or tradesmen engaged by Engineer in-Charge in executing work not forming part of the Contract, or
- (vi) any other cause like above which, in the reasoned opinion of the Engineer-in-Charge is beyond the Contractor's control.

then upon the happening of any such event causing delay, the Contractor shall immediately give notice thereof in writing to the Engineer-in-Charge but shall nevertheless use constantly his best endeavours to prevent or make good the delay and shall do all that may be reasonably required to the satisfaction of the Engineer-in-Charge to proceed with the works.

The contractor shall have no claim of damages for extension of time granted or rescheduling of milestone/s for events listed in *sub clause 3.16.2*.

3.16.3 In case the work is hindered by TCIL/ Client or for any reason/ event, for which TCIL/ Client is responsible, TCIL shall, if justified, give a fair and reasonable extension of time and reschedule the milestones for completion of work. Such extension of time or rescheduling of milestone(s) shall be without prejudice to any other right or remedy of the parties in contract or in law; provided further that for concurrent delays under this sub clause and sub clause 3.16.2 to the extent the delay is covered under sub clause 3.16.2, the contractor shall be entitled to only extension of time and no damages.

3.16.4 Request for rescheduling of Mile stones or extension of time, to be eligible for consideration, shall be made by the Contractor in writing within fourteen days of the happening of the event causing delay on the prescribed forms to Engineer-in-charge. The Contractor shall indicate in such a request the period by which rescheduling of milestone/s or extension of time is desired. With every request for rescheduling of

milestones, or if at any time the actual progress of work falls behind the approved programme by more than 10% of the stipulated period of completion of contract, the contractor shall produce a revised programme which shall include all details of pending drawings and decisions required to complete the contract and also the target dates by which these details should be available without causing any delay in execution of the work.

3.16.4.1 In any such case TCIL may give a fair and reasonable extension of time for completion of work or reschedule the milestones. Engineer -in- Charge shall finalize/ reschedule a particular milestone before taking an action against subsequent mile stone. Such extension or rescheduling of the milestones shall be communicated to the Contractor by Engineer-in-Charge in writing. In event of non application by the contractor for extension of time, Engineer-in-Charge after affording opportunity to the contractor, may give, supported with a programme, a fair and reasonable provisional extension within a reasonable period of occurrence of the event; with the right to levy LD.

3.16.5 In case the work is delayed by any reasons, in the opinion of the Engineer-in-Charge, by the contractor for reasons beyond the events mentioned in 3.16.2 or clause 3.16.3 or clause 3.16.4 and beyond the justified extended date; without prejudice to right to take action under Clause 4.41, the Engineer-in-Charge may grant extension of time required for completion of work without rescheduling of milestones. The contractor shall be liable for levy of compensation for delay for such extension of time.

3.15 Penalty for Delay (Liquidated Damages)-

If the contractor fails to maintain the required progress in terms of clause 3.16 or to complete the work and clear the site on or before the contract or justified extended date of completion as per clause 3.16 (excluding any extension under Clause 3.16.5) as well as any extension granted under clauses 3.20 and 3.14, he shall, without prejudice to any other right or remedy available under the law to the Government on account of such breach, pay as compensation the amount calculated at the rates stipulated below TCIL may decide on the amount of accepted Tendered Value of the work for every completed day/ month (as determined) that the progress remains less than that specified in Clause 3.16 or that the work remains incomplete.

- (i) Compensation for delay of work:- With maximum rate @ 1% (one percent) per month of delay to be computed on per day basis based on quantum of damage suffered due to stated delay on the part of Contractor

Provided always that the total amount of compensation for delay to be paid under this condition shall not exceed 10 % (ten percent) of the accepted Tendered Value of work.

-In case no compensation has been decided during the progress of work, this shall be no waiver of right to levy compensation by the said authority if the work remains incomplete on final justified extended date of completion. If the Engineer in Charge decides to give further extension of time allowing performance of work beyond the justified extended date, the contractor shall be liable to pay compensation for such extended period.

In case action under clause 3.17 has not been finalized and the work has been determined under clause 4.41 (when the contract can be determined), the right of action under this clause shall remain post determination of contract but levy of compensation shall be for days the progress is behind the schedule on date of determination, as assessed by TCIL, after due consideration of

justified extension. The compensation for delay, if not decided before the determination of contract, shall be decided after of determination of contract.

The amount of compensation may be adjusted or set-off against any sum payable to the Contractor under this or any other contract with the TCIL. In case, the contractor does not achieve a particular milestone mentioned in the tender document, or the re-scheduled milestone(s), the amount shown against that milestone shall be withheld, to be adjusted against the compensation levied as above. With-holding of this amount on failure to achieve a milestone, shall be automatic without any notice to the contractor. However, if the contractor catches up with the progress of work on the subsequent milestone(s), the withheld amount shall be released. In case the contractor fails to make up for the delay in subsequent milestone(s), amount mentioned against each milestone missed subsequently also shall be withheld. However, no interest, whatsoever, shall be payable on such withheld amount.

MILESTONES:-

S. No.	Financial Progress (Work Done)	Time allowed in days (From the day of start)	Amount to be withheld in case of non-achievement of milestone
1	$\frac{1}{4}$	1/4 of the whole time	1.25% of the accepted value of project
2	$\frac{1}{2}$	Half of the whole time	2.5% of the accepted value of project
3	$\frac{3}{4}$	3/4 of the whole time	3.75% of the accepted value of project
4	Full	Full	10% of the accepted value of project (-) amount already withheld

However, total LD shall be limiting to 10% of the accepted value of the project.

3.16 Defects Liability Period:

The Defects Liability & Maintenance Period shall be 12 (Twelve) months from the date of handing over the project to the Employer/ Owner. During the entire Defect Liability Period, the Contractor is required to maintain the minimum work force to be determined by the Engineer-in-charge. The Contractor shall be responsible for satisfactory rectification of all notified defects. If contractor fails to rectify the defects within 7 days from the date of written information to him then in that case, the defects shall be rectified at the risk and cost of contractor.

If the contractor or his working people or servants shall break, deface, injure or destroy any part of building in which they may be working, or any building, road, road kerb, fence, enclosure, water pipe, cables, drains, electric or telephone post or wires, trees, grass or grassland, or cultivated ground contiguous to the premises on which the work or any part is being executed, or if any damage shall happen to the work while in progress, from any cause whatever or if any defect, shrinkage or other faults appear in the work within twelve months after a certificate final or otherwise of its completion shall have been given by the Engineer in- Charge as aforesaid arising out of defect or improper materials or workmanship, the contractor shall upon receipt of a notice in writing on that behalf make the same good at his own expense or in default the Engineer-in-Charge cause the same to be made good by other workmen and deduct the expense from any sums that may be due or at any time thereafter may become due to the contractor, or from his security deposit or the proceeds of sale thereof or of a sufficient portion thereof. The security deposit of the contractor shall not be refunded before the expiry of twelve months after the issue of the certificate final or otherwise, of completion of work, or till the final bill has been prepared and passed whichever is later.

3.17 CONTRACTOR TO SEARCH

If any defects, shrinkage or other fault in the Works appears at any time prior to the end of the Defects Liability Period, the Project Director may instruct the Contractor, to search under the directions of the Project Director for the cause thereof. If such defect, shrinkage or other fault is one for which the Contractor is liable, the cost of the work carried out in searching as aforesaid shall be borne by the Contractor and he shall in such case remedy such defect, shrinkage or other fault at his own cost in accordance with the provisions of referenced clause.

3.18 ALTERATIONS, ADDITIONS AND OMISSIONS

3.18.11 Variations

(a) For deposit works and works on letter of authorization, revised estimate will be submitted for the works having expenditure in excess of 10% of A/A & E/S amount. No excess expenditure over the A/A & E/S amount is permissible without approval of the client and therefore incurring the excess expenditure the client will be informed and approval will be taken for the same.

(b) Variation in individual BOQ and extra items to be dealt with as per CPWD work manual.

(c) The Engineer-in-Charge shall have power:-

- (i) to make alteration in, omissions from, additions to, or substitutions for the original specifications, drawings, designs and instructions that may appear to him to be necessary or advisable during the progress of the work, and
- (ii) to omit a part of the works in case of non-availability of a portion of the site or for any other reasons and the contractor shall be bound to carry out the works in accordance with any instructions given to him in writing signed by the Engineer-in-Charge and such alterations, omissions, additions or substitutions shall form part of the contract as

if originally provided therein and any altered, additional or substituted work which the contractor may be directed to do in the manner specified above as part of the works, shall be carried out by the contractor on the same conditions in all respects including price on which he agreed to do the main work except as hereafter provided.

(d) Subject to the approval from the Client, the time for completion of the works shall, in the event of any deviations resulting in additional cost over the tendered value sum being ordered, be extended, if requested by the contractor, as follows:

- (i) In the proportion which the additional cost of the altered, additional or substituted work, bears to the original tendered value plus
- (ii) 25% of the time calculated in (i) above or such further additional time as may be considered reasonable by the Engineer-in-Charge.

(e) The Employer reserves the right to place add-on/repeat order for additional quantity up to 100% of the original quantity at the same rate and terms & conditions of the purchase/work order within six months from the date of issue of purchase/works order. No revision of rates is admissible due to decrease or increase in quantities.

3.18.12 Valuation of Variations:

Deviation, Extra Items and Pricing:

In the case of extra item(s) (items which are not available in the contract), the contractor may within fifteen days of receipt of order or occurrence of the item(s) submit claim for market rates supported with proper analysis of rate and Manufacturer's specification for the work, invoices, vouchers, etc,(as applicable) failing which the rate(s) approved later by the Engineer- in- charge shall be final and binding. Where the contractor submits claim for market rates in the manner prescribed above, the Engineer-in-Charge shall within 45 days of the receipt the of claims, after giving consideration to the analysis of the rates and other documents submitted by the contractor, determine the rates on the basis of the market rates and the contractor shall be paid in accordance with the rates so determined. **The rates of extra items so determined by the Engineer in charge shall be final and binding on the contractor, and shall not be arbitrable.**

Deviation, deviated Quantities, Pricing:-

- (i) the case of contract items, which exceed the limit laid down in Schedule-I, the contractor may within fifteen days of receipt of order or occurrence of the excess, claim revision of the rates, supported with proper analysis of the rates and invoices, vouchers, etc, (as applicable) for the quantity in excess of the above mentioned limit. The Engineer-in-Charge shall within 45 days of receipt of the claims, after giving consideration to the analysis of the rates and other documents submitted by the contractor, determine the rates on the basis of the market rates and the contractor shall be paid in accordance with the rates so determined. **The rates so determined by the Engineer in charge shall be final and binding on the contractor, and shall not be arbitrable.**
- (ii) In the case of contract items, which exceed the limits laid down in Schedule-I, the Engineer-in-Charge shall after giving notice to the contractor within 30 days of submission of that bill occurrence of the excess and after taking into consideration any reply received from him within fifteen days of the issue of such notice, reduce the rate for quantity in excess of the above mentioned limit on the basis of the market rates , within 30 days of the expiry of the said period of 15 days and the contractor shall be paid in

accordance with the rates so determined. **The rates so determined by the Engineer in charge shall be final and binding on the contractor and shall not be arbitrable.**

- (iii) The cost of any operation necessarily in contemplation of tenderer while quoting tender or necessary or incidental to proper execution of an item of work included in the Schedule of quantities or in the schedule of rates mentioned in Schedule-I, whether or not, specifically indicated in the description of the item and the relevant specifications, shall be deemed to be included in the rates quoted by the tenderer or the rate given in the said schedule of rates, as the case may be. Nothing extra shall be admissible for such operations.

A. Deviation limit beyond which Variation Clause (clause 3.20.2) shall apply for all works except foundation:-

FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT
50%

B. Deviation limit beyond which Variation Clause (clause 3.20.2) shall apply for foundation work:-

FOR BUILDING & ASSOCIATED WORKS WITHIN THE CONTRACT
100%

3.20.3 Escalation: No claim on account of any escalation on whatsoever ground shall be entertained at any stage of works. All rates as per Bill of Quantities (BOQ) quoted by contractor shall be firm and fixed for entire contract period as well as extended period for completion of the works. No escalation shall be applicable on this contract.

3.19 MEASUREMENT:

3.21.1 Measurements of Work Done

The Project Director shall , except as otherwise provided , ascertain and determine by measurement the value of work done in accordance with the Contract .

The measurement of all items having financial value shall be entered in Measurement Books and / or Level Field book so that a complete record is obtained of all Works performed under the Contract .

All measurements and levels shall be taken by the Project Director or his authorized representative along with Contractor from time to time during the progress of the work and such measurements shall be signed and dated by the Project Director and countersigned by the Contractor or their representatives in token of their acceptance . If the Contractor objects to any of the measurements recorded , a note shall be made to that effect with reason and signed by both the parties .

If for any reason , the Contractor or his representative is not available and the work of recording measurements is suspended by the Project Director or his representative , the Project Director shall not entertain any claim from the Contractor for any loss or damages on this account . If the Contractor or his authorized representative does not remain present at the time of such measurements after the Contractor or his authorized representative has been given notice in writing three (3) days in advance or fails to countersign or to record objection within a week from the date of the measurement , then such measurements recorded in his absence by the Project Director or his representative shall be deemed to be accepted by the Contractor .

The Contractor shall , without extra charge , provide all assistance with every appliance , labour and other things necessary for measurements and recording levels .

Except where any general or detailed description of the work expressly shows to the contrary , measurements shall be taken in accordance with the procedure set forth in the specifications notwithstanding any provisions in the relevant Indian Standard Method of measurement or any general or local custom . In the case of items which are not covered by specifications , measurement shall be taken in accordance with relevant standard method of measurement issued by the Bureau of Indian Standards and if for any item no such standard is available then a mutually agreed method shall be followed .

The Contractor shall give not less than seven days notice to the Project Director or his authorized representative in charge of the work before covering up or otherwise placing beyond the reach of measurement any work in order that the same may be measured and correct dimensions thereof be taken before the same is covered up or placed beyond the reach of measurement and shall not cover up and place beyond the reach of measurement any work without consent in writing of the Project Director or his authorized representative in charge of the work who shall within the aforesaid period of seven days inspect the work , and if any work shall be covered up or placed beyond the reach of measurements without such notice having been given or the Project Director's consent being obtained in writing the same shall be uncovered at the Contractor's expense , or in default thereof no payment or allowance shall be made for such work or the materials with which the same was performed .

Project Director or his authorized representative may cause either themselves or through another officer of the TCIL to check the measurements recorded jointly or otherwise as aforesaid and all provisions stipulated herein above shall be applicable to such checking of measurements or levels . In case of any dispute , decision of Engineer-in-charge shall be final .

It is also a term of this Contract that recording of measurements of any items of work in the Measurement Book and / or its payment in the interim , on account or final bill shall not be considered as conclusive evidence as to the sufficiency of any work or material to which it relates nor shall it relieve the Contractor from liabilities from any over measurement or defects noticed till completion of the Defects Liability Period .

3.21.2 Computerized Measurement Book

Engineer - in - Charge shall , except as otherwise provided , ascertain and determine by measurement the value of work done in accordance with the contract .

All measurements of all items having financial values shall be entered by the contractor and compiled in the shape of the Computerized Measurement Book having pages of A - 4 size as per the format of the department so that a complete record is obtained of all the items of works performed under the contract .

All such measurements and levels recorded by the contractor or his authorized representative from time to time , during the progress of the work , shall be got checked by the contractor from the Engineer - in - Charge or his authorized representative as per interval or program fixed in consultation with Engineer - in - Charge or his authorized representative . After the necessary corrections made by the Engineer - in - Charge , the measurement sheets shall be returned to the contractor for incorporating the corrections and for resubmission to the Engineer - in - Charge for the dated signatures by the Engineer - in - Charge and the contractor or their representatives in token of their acceptance .

Whenever bill is due for payment , the contractor would initially submit draft computerized measurement sheets and these measurements would be got checked / test checked from the Engineer - in - Charge and / or his authorized representative . The contractor will , thereafter , incorporate such changes as may be done during these checks / test checks in his draft computerized measurements , and submit to the department a computerized measurement book , duly bound , and with its pages machine numbered . The Engineer - in - Charge and / or his authorized representative would thereafter check this MB , and record the necessary certificates for their checks / test checks .

The final , fair , computerized measurement book given by the contractor , duly bound , with its pages machine numbered , should be 100 % correct , and no cutting or over - writing in the measurements would thereafter be allowed . If at all any error is noticed , the contractor shall have to submit a fresh computerized MB with its pages duly machine numbered and bound , after getting the earlier MB cancelled by the department .

The contractor shall also submit to the department separately his computerized Abstract of Cost and the bill based on these measurements , duly bound , and its pages machine numbered along with two spare copies of the bill .

The contractor shall , without extra charge , provide all assistance with every appliance , labour and other things necessary for checking of measurements / levels by the Engineer - in - Charge or his representative .

Except where any general or detailed description of the work expressly shows to the contrary , measurements shall be taken in accordance with the procedure set forth in the specifications notwithstanding any provision in the relevant Standard Method of measurement or any general or local custom . In the case of items which are not covered by specifications , measurements shall be taken in accordance with the relevant standard method of measurement issued by the Bureau of Indian Standards and if for any item no such standard is available then a mutually agreed method shall be followed .

The contractor shall give not less than seven days notice to the Engineer - in - Charge or his authorized representative in charge of the work before covering up or otherwise placing beyond the reach of checking and / or test checking the measurement of any work in order that the same may be checked and / or test checked and correct dimensions thereof be taken before the same is covered up or placed beyond the reach of checking and / or test checking measurement and shall not cover up and place beyond reach of measurement any work without consent in writing of the Engineer - in - Charge or his authorized representative in charge of the work who shall within the aforesaid period of seven days inspect the work , and if any work shall be covered up or placed beyond the reach of checking and / or test checking measurements without such notice having been given or the Engineer - in - Charge's consent being obtained in writing the same shall be uncovered at the Contractor's expense , or in default thereof no payment or allowance shall be made for such work or the materials with which the same was executed .

Engineer - in - Charge or his authorized representative may cause either themselves or through another officer of the department to check the measurements recorded by contractor and all provisions stipulated herein above shall be applicable to such checking of measurements or levels .

It is also a term of this contract that checking and / or test checking the measurements of any item of work in the measurement book and / or its payment in the interim , on account or final bill shall not be considered as conclusive evidence as to the sufficiency of any work or material to which it relates nor shall it relieve the contractor from liabilities from any over measurement or defects noticed till completion of the defects liability period .

3.21.3 Failure to Comply with Project Director's Decision

Where neither the Employer nor the Contractor has given notice of intention to commence arbitration of a dispute within the period stated in relevant clause and the related decision has become final and binding , either party may , if the other party fails to comply with such decision , and without prejudice to any other rights it may have , refer the failure to arbitration in accordance with the referenced clause .

3.20 NOTICES

Notice to Contractor

All the certificates , notices or instructions to be given to the Contractor by the Project Director under the terms of the Contract shall be sent by post or facsimile transmission to or left at the Contractor's principal place of business or such other address as the Contractor shall nominate for that purpose .

Notice to Project Director

Any notice to be given to the Employer or to the Project Director under the terms of the Contract shall be sent by post or facsimile transmission to or left at the respective address nominated for that .

Change of Address

Both parties may change a nominated address to another address in the country where the Works are being performed by prior notice to the other party , with a copy to the Project Director , and the Project Director may do so by prior notice to both parties .

3.21 CHANGES IN COST AND LEGISLATION

3.23.1 Subsequent Legislation

If during the concurrency of the contract there occur changes to any National or State Statue, Ordinance, Decree or other Law or any regulation or bye-law of any local or other duly constituted authority, or the introduction of any such State Statue, Ordinance, Decree, Law, regulation or bye-law which causes reduced cost to the Contractor, in the performance of the Contract, such reduction in cost shall, be determined by the Project Director and shall be deducted from the Contract Price and the Project Director shall notify the Contractor accordingly, with a copy to the Employer.

3.23.2 Other Changes in Cost

To the extent that full compensation for any rise or fall in cost to the Contractor is not covered by the provisions of this or other 'Clauses in the Contract, the unit rates and prices included in the Contract shall be deemed to include amounts to cover the contingency of such other rise or fall of costs.

3.22 HEALTH AND SANITARY ARRANGEMENT FOR WORKERS

In respect of all labour directly or indirectly employed in the Works for the performance of the Contractor's part of this Agreement, the Contractor shall comply with or cause to be complied with all the rules and regulations of the local sanitary and other authorities or as framed by the Owner from time to time for the protection of health and sanitary arrangements for all workers.

The Contractor shall provide in the labour colony all amenities such as electricity, water and other sanitary and health arrangements. The Contractor shall also provide necessary surface transportation to the place of work and back to the colony for their personnel accommodated in the labour colony.

3.23 Dispute Resolution/ ARBITRATION

- 1) The parties to this agreement/contract agree that they shall resolve all disputes or differences whatsoever arising between them under and/or in connection with and/or in respect of this Tender/EOI/Agreement/Purchase Order/MoU through a "Conciliation and Settlement Mechanism (CSM)" and the detailed guidelines/procedure for such CSM is annexed hereto as **Annexure-23** in Section-6 of this Tender. That it is understood and agreed between the parties that the CSM annexed as **Annexure-23** with the present agreement forms and shall be treated as part and parcel of the present agreement.

- 2) If the parties fail to resolve such disputes through the conciliation proceedings, then and only then, a party shall refer the dispute to arbitration as mentioned in the following manner:
 - a. All disputes or differences whatsoever arising among the parties under and/or in connection with and/or in respect of this Tender/EOI/Agreement/Purchase Order/MoU shall be referred to and decided by a sole arbitrator, who shall be appointed by the CMD, TCIL only. The arbitration shall be conducted in accordance with Arbitration and Conciliation Act of 1996, as amended from time to time, and the venue of the arbitration shall be in New Delhi.
 - b. Notwithstanding the generality of the above, it is a term of this contract that no person other than a person appointed by CMD, TCIL as aforesaid, should act as arbitrator and if for any reason that is not possible or any party does not agree to such appointment of Arbitrator by CMD, TCIL for whatsoever reason, then the matter is not to be referred to arbitration at all and such disputes shall be resolved under the mechanism provided by the state in form of Courts of Law/Ordinary Civil Courts for resolution of such disputes under applicable Laws.
- 3) The courts at New Delhi shall have exclusive jurisdiction in respect to any dispute pertaining to this agreement.
- 4) The parties shall continue to perform their respective obligations as per the Agreement during the pendency of proceedings under this clause.

For Public Sector Undertaking / Government Departments:

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Enterprise (CPSEs)/Port Trusts inter se and also between CPSEs and Govt. Depts/ organizations (excluding disputes relating to Railways, Income Tax, Customs & Excise Dept), such dispute or difference shall be taken up by either party for its resolution through AMRCD as mentioned in DPE OM No. 05/003/2019-FTS-10937 dated 14th December 2022 and the decision of AMRCD on the said dispute will be binding on both the parties.

- ☐ The contractor fully understands and is aware that the Project is being executed for the ultimate benefit of the client/owner, who is the Principal Employer and that TCIL has awarded the works/Project on back to back basis or as PMC/ Executing Agency/ Construction Agency at terms & conditions as per MOU/agreement with the client. The contractor agrees and understands that the contractor is executing the works of the Client as per terms & conditions of the tender floated by TCIL on behalf of the client. The contractor fully understands and agrees that role of TCIL is of PMC/Executing Agency/ Construction Agency only or to supervise the execution of contract only whereas the actual execution to be done by the contractor.

- ☐ The contractor expressly agrees that the client is ultimately liable for timely payments or releasing funds timely and it shall not make TCIL responsible or liable for any default of the Client in this regard. TCIL shall only endeavour its level best to request the Client to release the payments of the contractor or make funds available for such payments in time as per agreement.
- ☐ Any delay or default on the part of the client in making timely payments or releasing funds timely or any omission or commission of any action by the Client shall not make TCIL liable for either the payment of the principal amount, wholly or in part, as the case may be, or towards any payment of interest or other amounts, whatsoever, which shall otherwise be payable by TCIL to the contractor in its normal liability to pay to the contractor for the execution of the contract.
- ☐ In case of any dispute between the parties, the parties expressly agree that the Award passed by the Arbitral Tribunal/Sole Arbitrator shall not carry any Interest on the awarded amount from the date of cause of action till the date of the Award.
- ☐ The contractor agrees that whole cost of arbitration would be borne by the contractor since the contractor agrees that TCIL is not responsible for the payment of the dues of the contractor, if the corresponding payment has not been made by the client or funds for payment of their dues are not received from the Client.

3.24 SAFETY CODE

3.26.1 General

Contractor shall adhere to the safe construction practice and guard against hazardous and unsafe working conditions and shall comply with Employer's safety rules as set forth herein.

3.26.2 Safety Regulations

- (a) In respect of all labour, directly or indirectly employed in the work for the performance of Contractor's part of this Agreement, the Contractor shall at his own expenses arrange for all the safety provisions as per safety codes of Indian Standards Institution, the Electricity Act and such other acts as applicable.
- (b) The Contractor shall observe and abide by all fire and safety regulations.

3.26.3 First Aid

- (a) Contractor shall maintain adequate First Aid facilities for its employees and labour. Suitable medical assistance should be available throughout the tendency of the Contract.
- (b) Contractor shall make out arrangements for Ambulance service and for the treatment of injuries. Names of those providing these services shall be furnished to Employer and their telephone numbers shall be prominently posted in Contractor's field office.

- (c) All critical industrial injuries shall be reported promptly to the Employer, and a copy of the Contractor's report covering each personal injury requiring the attention of a physician shall be furnished to the Employer.

3.26.4 General Safety

All necessary personal safety equipment as considered adequate by the Project Director should be kept available for the use of the person employed on the Site and maintained in conditions suitable for immediate use, and the Contractor shall take adequate steps to ensure proper use of equipment by those concerned.

3.26.5 Preservation of Peace

The Contractor shall take requisite precautions and use his best endeavors to prevent any riotous or unlawful behavior by or amongst his workmen and others employed on the Works and for the preservation of peace and protection of the inhabitants and security of property in the neighborhood of the Work.

In the event of the Employer requiring the maintenance of a Special Police Force or in the vicinity of the Site during the tenure of Works, the expenses thereof shall be borne by the Contractor and if paid by the Employer shall be recoverable from the Contractor.

3.25 Contractor's All Risk policy

The contractor is required to take CAR (Contractor's All Risk policy) from Government/ Govt. approved insurance agency in the joint name with first name of TCIL and bear all costs towards the same for the full period of execution of works including the defect liability period for the full amount of contract against all loss of damage from whatever cause arising for which he is responsible under the terms of the contract and in such manner that the TCIL and the contractor are covered during the period of construction of works and/or also covered during the period of defect liability for loss or damage.

The contractor is required to submit the aforesaid original CAR Policy and Workmen's Compensation Policy to TCIL in accordance with Client's requirement and prevailing statutory laws before the start of work for the full period of execution of works including the defect liability period. In case of delay in work, the contractor shall arrange to get the policies extended time to time at its own cost and submit the same to TCIL. Failing which, TCIL shall obtain these policies and recover such amount plus applicable TCIL charges as decided by TCIL, from RA bills of the contractor. The contractor shall be solely responsible for all consequences, losses etc. due to their non-compliance in this regard.

3.26 Settlement of claims for compensation on accidents of casual and contractual workers

In case of any accident occurred during the course of construction to casual and contractual employees of contractor which leads to death, permanent disability, injury to such employees, any compensation paid to these suffered workers by TCIL shall be recovered from the contractor. The compensation shall be given

in accordance to the guidelines for settlement of claims for compensation on accidents applicable to the department of Telecommunications and public sector undertakings under its administrative control. In no case, a claim for appointment of any of the dependent on the compensate grounds would be entertained by TCIL.

The contractor is advised to go through the guidelines for settlement of claims for compensation on accidents applicable to the department of Telecommunications and public sector undertakings under its administrative control and a set of guidelines can also be obtained from the office of tender issuing authority of TCIL for this work.

3.27 PRICE BASIS

- (a) Price indicated in the schedule shall be for site of works as mentioned in the tender document.
- (b) Price quoted should be in Indian rupees, inclusive of all costs and charges as applicable, required for proper completion of works. The contractor shall give the total price in Indian Rupees as per the VOLUME – II, Financial Bid.
- (c) The offers shall be firm in Indian Rupees and detailed pricing should also be given as per the price schedule given in the VOLUME – II, Financial Bid. Price is to be quoted for the complete works.
- (d) A bid submitted with an adjustable price quotation will be treated as non-responsive and rejected.
- (e) Price shall be inclusive of all costs, charges, taxes, duties & levies etc including GST as applicable and price shall remain firm during the currency of project.
- (f) Any reduction in taxes has to be passed on to the Employer.
- (g) The contractor shall submit its cost as per financial bid format.
- (h) Evaluation of bid will be made based on total price inclusive of all taxes, stated in the tender.

NOTE:

- (i) All tendered rates shall be inclusive of any tax. Levy or cess applicable on last stipulated date of receipt of tender including extension if any. No adjustment i.e. increases or decrease shall be made for any variation in the rate of GST. Building and other construction workers welfare cess or any tax, levy or cess applicable on inputs. However, effect of variation in rates of GST or building and other construction workers welfare cess or imposition or repeal of any other tax, levy or cess applicable on output of the works contract shall be adjusted on either side, increase or decrease; subject to approval from the Client. Provided further that of building and other construction workers welfare cess or any tax (other than GST), levy or cess varied or imposed after the last date of receipt of tender including extension if any increase shall be reimbursed to the contractor only if the contractor necessarily and properly pays such increased amount of taxes /levies/cess.

Provided further that such increase including GST shall not be made in the extended period of contract for which the contractor alone is responsible for delay as determined by authority for extension of time under the contract.

- (ii) The contractor shall keep necessary books of accounts and other documents for the purpose of this condition as may be necessary and shall allow inspection of the same by a duly authorized representative of the government and/or the Engineer - in- charge and shall also furnish such other information/document as the Engineer – in-charge may require from time to time.
- (iii) The contractor shall, within a period of 30 days of the imposition of any such further tax or levy or cess, or variation or repeal of such tax or levy or cess given a written notice thereof to the Engineer-in-charge that the same is given pursuant to this condition, together with all necessary information relating thereto.

3.28 GENERAL LIEN/ SET-OFF:

- a) Whenever under this contract, any sum of money is recoverable from and payable by the supplier, the purchaser shall be entitled to recover such sum by appropriating in part or in whole the security deposit of the supplier, if a security is taken from the supplier. In the event of the security being insufficient or if no security has been taken from the supplier, the balance or the total sum recoverable, as the case may be, shall be deducted from any sum due to the supplier or which at any time thereafter may become due to the supplier under this or any other contract with the purchaser. Should this sum not be sufficient to cover the full amount recoverable, the supplier, shall pay to the purchaser on demand the remaining balance due.
- b) Any sum of money (including refundable security deposit) due and payable to the supplier, under this contract or any other contract entered between the parties herein whether continuing or completed may be appropriated by TCIL and set off against any claim of TCIL of any nature whatsoever, arising under this contract or any other contract entered into between the parties, herein whether continuing or completed.

3.29 GST&EPFREGISTRATION

The bidder must have a valid GST registration certificate of the state in which the work is to be taken up, if already obtained by the bidder.

The bidder whose bid is accepted will also be required to furnish either copy of applicable licenses/ registrations or proof of applying for obtaining labour licenses, registration with EPFO, ESIC and BOCW Welfare Board including Provident fund code No. if any engaged by the contractor for the said work within the period specified.

3.30 DISCIPLINE

The contractor shall carry out operations hereunder with due diligence and in a safe and workmanlike manner according to good practice. The contractor shall maintain strict discipline and good contract among its employees and its labor, and shall abide by and conform to all rules and regulations.

3.31 SAFETY AND LABOUR LAWS

The contractor shall be registered in Labour Department and other concerned department as required to carry out such works. The contractor shall comply with the provision of all laws including Labour Laws, labour cess registration (so that desired amount can be paid to the concerned department), labour rules, regulations and notifications issued thereunder from time to time. All safety and labour laws enforced by statutory agencies shall be applicable in the performance of this contract and the contractor shall abide by these laws. Any failure to fulfil this requirement shall attract the penal provision of the contract arising out of the resultant non-execution of work.

The contractor shall be fully responsible for observation for and compliance with all labour and laws applicable & all existing labour enactments and rules made thereunder, regulations, notifications and by-laws of State or Central Government or local authority, and any other labour law (including rules), regulations, by-laws that may be passed or notification that may be issued under any labour law in future either by the State or the Central Government or the local authority as per CPWD works manual and shall indemnify and keep indemnified the "OWNER"/ Employer against effect of non observance of and non compliance with any such laws. The Contractor shall abide by the local laws and regulations governing labour applicable from time to time during continuance of the Contract.

In case of accident arising out of and in the course of this contract, the Employer/client will not be responsible for payment of any compensation or under any other law. It will be the sole responsibility of the contractor for payment towards loss or compensation whatsoever.

Safety, Security and Protection:- In respect of all labour directly or indirectly employed in the work for the performance of the contractor's part of this contract, the contractor shall at his own expense arrange for the safety provisions as per C.P.W.D. Safety Code framed from time to time and shall at his own expense provide for all facilities in connection therewith. In case the contractor fails to make arrangement and provide necessary facilities as aforesaid, he shall be liable to pay a penalty as decided by the Client/ Engineer-in- Charge for each default and in addition, the Engineer-in- Charge shall be at liberty to make arrangement and provide facilities as aforesaid and recover the costs incurred in that behalf from the contractor

3.32 APPLICABLE LAWS

This contract shall be interpreted, construed and governed by the laws of the Republic of India and the parties hereby submit to the exclusive jurisdiction of the Court at Delhi and to all Courts at Delhi having jurisdiction in appeal therefrom. Any dispute, in relation to the contract, shall be submitted to the appropriate court of the Republic of India for determination. The parties to the contract shall continue to fulfil their respective obligations under the contract during the currency of the contract pending the final decision of the court.

3.33 Termination of Contract on death of contractor

Without prejudice to any of the rights or remedies under this contract, if the contractor dies, TCIL shall have the option of terminating the contract without levy of compensation to the contractor.

3.34 Water and electricity for Works

The contractor(s) shall make his/their own arrangements for water and electricity required for the work and nothing extra will be paid for the same. This will be subject to the following conditions.

- (i) That the water used by the contractor(s) shall be fit for construction purposes to the satisfaction of the Engineer-in-Charge.
- (ii) The Engineer-in-Charge shall make alternative arrangements for supply of water at the risk and cost of contractor(s) if the arrangements made by the contractor(s) for procurement of water are in the opinion of the Engineer-in-Charge, unsatisfactory.

Alternate water Arrangements

The contractor shall be allowed to construct temporary wells in Government land for taking water for construction purposes only (if local laws allow for the same) after he has got permission of the Engineer-in-Charge in writing. No charges shall be recovered from the contractor on this account, but the contractor shall be required to provide necessary safety arrangements to avoid any accidents or damage to adjacent buildings, roads and service lines. He shall be responsible for any accidents or damage caused due to construction and subsequent maintenance of the wells and shall restore the ground to its original condition after the wells are dismantled on completion of the work.

3.35 Dismantled Material Govt/ Client. Property

The contractor shall treat all materials obtained during dismantling of a structure, excavation of the site for a work, etc. as TCIL/ Client's property and such materials shall be disposed off to the best advantage of TCIL/ Client according to the instructions in writing issued by the Engineer-in-Charge.

3.36 Changes in firm's Constitution to be Intimated

Where the contractor is a partnership firm, the previous approval in writing of the Engineer-in-Charge shall be obtained before any change is made in the constitution of the firm. Where the contractor is an individual or a Hindu undivided family business concern, such approval as aforesaid shall likewise be obtained before the contractor enters into any partnership agreement where under the partnership firm would have the right to carry out the works hereby undertaken by the contractor. If previous approval as aforesaid is not obtained, the contract shall be deemed to have been assigned in contravention of the contract and the same action may be taken, and the same consequences shall ensue as provided in the contract in this regard.

3.37 Deleted

3.38 Contractor to Indemnify TCIL/ Client against Patent Rights

The contractor shall fully indemnify and keep indemnified TCIL/ Client against any action, claim or proceeding relating to infringement or use of any patent or design or any alleged

patent or design rights and shall pay any royalties which may be payable in respect of any article or part thereof included in the contract. In the event of any claims made under or action brought against TCIL/ Client in respect of any such matters as aforesaid, the contractor shall be immediately notified thereof and the contractor shall be at liberty, at his own expense, to settle any dispute or to conduct any litigation that may arise therefrom, provided that the contractor shall not be liable to indemnify TCIL/ Client if the infringement of the patent or design or any alleged patent or design right is the direct result of an order passed by the Engineer-in-Charge in this behalf.

3.39 Abnormally Low Bids:

“TCIL may seek written clarifications from the Bidder, including detailed price analyses of its Bid price in relation to scope, schedule, resource mobilization, allocation of risks and responsibilities, and any other requirements of the bid document. If, after evaluating the price analyses, TCIL determines that the Bidder has substantially failed to demonstrate its capability to deliver the contract at the offered price, the Procuring Entity may reject the Bid/ Proposal.”

3.40 Taxes (GST):

GST invoice / Debit Note / Credit Note:

- a. It shall be the responsibility of Bidder/ Supplier / Contractor / Vendor to raise Tax Invoice (e-invoice wherever applicable) as per the provisions of GST Laws and send to TCIL promptly.
- b. The Bidder/ Supplier / Contractor / Vendor shall ensure that Tax Invoice contains all the requirements as per GST Law from time to time, for eg. E-Way bill along with transportation details etc, wherever applicable. TCIL GST Number to be mentioned on the Invoices as advised by TCIL, etc.
- c. The Bidder/ Supplier / Contractor / Vendor shall ensure to issue Debit / Credit Note (wherever applicable) as prescribed under GST Act and send to TCIL within the prescribed time limit. All documents should be received well in advance so as to enable TCIL to claim eligible credit.

GST Compliances:

- d. The Bidder / Supplier / Contractor / Vendor shall ensure
 - To issue Tax Invoice / Debit Notes / Credit Notes to enable TCIL to claim tax benefit on or before the stipulated time period provided by the GST law.
 - To file its GST Returns (GSTR – 1 and GSTR – 3B) within the time limits prescribed in GST Laws with all Debit and Credit Note details, so as to ensure availing ITC Credit of GST by TCIL.
 - To declare correct information on invoice and GSTN viz. the amount, the place of supply, rate of tax etc.
 - To issue all Tax Invoices / Debit Notes / Credit Notes to the registered premise of TCIL for availing of credit and ensure that the place of supply as per GST law is same as registered premise of TCIL.
- e. The Bidder / Supplier / Contractor / Vendor shall ensure to keep its GST Numbers active at all times and in case the same is blacklisted, cancelled or

blocked etc by GST Authorities, the same needs to be promptly intimated to TCIL.

Tax Indemnity:

- f. There should not be any loss of ITC of GST to TCIL due to default of bidder. In case of any financial loss including interest, same will be recovered from the Bidder / Supplier / Contractor / Vendor for delay / non compliance on the part of the Bidder / Supplier / Contractor / Vendor.
- g. In case, the eligibility of ITC of GST is questioned or denied to TCIL on account of default by the Bidder, the same would be recovered by TCIL from the Bidder/ Supplier / Contractor / Vendor.
- h. No payment shall be made by TCIL against Performa Invoice issued by Bidder / Supplier / Contractor / Vendor. Payment will be made only against Valid Tax Invoice as per GST Laws.
- i. In case of delay in deposit of Tax & filling GSTR-1 by the Bidder / Supplier / Contractor / Vendor, the input tax credit will not be available to TCIL and as a result TCIL to pay the total output tax without availing input tax credit and in such case the financial loss including interest shall be recovered from the Bidder / Supplier / Contractor / Vendor.

Documents :

- j. Self declarationalongwith evidence that the Bidder / Supplier / Contractor / Vendor is not blacklisted.
- k. An undertaking from the Bidder / Supplier / Contractor / Vendor that information provided by him is correct and in case of any loss, the Bidder / Supplier / Contractor / Vendor is fully responsible.

Release of GST Payment along with payment of RA Bill

- a) In all projects, where running bill continue to be raised periodically, GST shall be paid along with running bill but amount equivalent to GST of previous RA bill as well as current RA shall be withheld if GST of previous bill is not paid/reflecting at time of payment of next (current) RA bill.
- b) At the time of final bill of the project, GST shall be paid only if payment of all GST dues of the project by vendor is visible in GST portal.
- c) The above shall be applicable for all projects involving payment in multiple trenches (Running bill).

Note: As payment of GST dues in statutory requirementhence no undertaking is required separately for this from vendor.

3.41 ADDITIONAL CLAUSES FOR DEBARMENT: -

- A. A bidder or any of its successor, shall be debarred from participating in any procurement process undertaken by TCIL for a period not exceeding **three (3) years** if he has been convicted of an offence as under:
 - a) under the Prevention of Corruption Act, 1988; or
 - b) the Indian Penal Code or any other law for the time being in force, for causing any loss of life or property or causing a threat to public health as part of execution of a public procurement contract.

- B. A bidder or any of its successor, shall be debarred from participating in any procurement process undertaken by TCIL for a period not exceeding **two (2) years** if the following code of integrity as per rule 175 of GFRs 2017, is breached:
1. prohibition of
 - a) making offer, solicitation or acceptance of bribe, reward or gift or any material benefit, either directly or indirectly, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process.
 - b) any omission, or misrepresentation that may mislead or attempt to mislead so that financial or other benefit may be obtained or an obligation avoided.
 - c) any collusion, bid rigging or anticompetitive behaviour that may impair the transparency, fairness and the progress of the procurement process.
 - d) improper use of information provided by the procuring entity to the bidder with an intent to gain unfair advantage in the procurement process or for personal gain.
 - e) any financial or business transactions between the bidder and any official of the procuring entity related to tender or execution process of contract; which can affect the decision of the procuring entity directly or indirectly.
 - f) any coercion or any threat to impair or harm, directly or indirectly, any party or its property to influence the procurement process.
 - g) Obstruction of any investigation or auditing of a procurement process.
 - h) ***making false declaration or providing false information*** for participation in a tender process or to secure a contract;
 2. disclosure of conflict of interest.
 3. Disclosure by the bidder of any previous transgressions made in respect of the provisions of sub-clause (i) with any entity in any country during the last three years or of being debarred by any other procuring entity.
- C. A bidder or any of its successor, shall be debarred from participating in any procurement process undertaken by TCIL for a period not exceeding **two (2) years** if the following is breached:
- (i) If a Bidder withdraws the proposal or increases the quoted prices after opening of the Proposal and during the period of Bid validity period or its extended period, if any.
 - (ii) In case of a successful Bidder, if the Bidder fails to sign the Agreement in accordance with the terms and conditions (including timelines for execution of the Agreement) of this tender or fails to furnish the Performance Bank Guarantee in accordance with the terms and conditions (including timelines for furnishing PBG) of this tender.

- (iii) During the Bid process, if a Bidder indulges in any act as would jeopardize or unnecessarily delay the process of bid evaluation and finalization.

D. The debarment in all cases shall be automatically extended to all its allied firms. In case of Joint ventures/Consortium is debarred all partners shall also stands debarred for a period specified in debarment order. The names of partners should be clearly specified in the debarment order.

3.42 FALL CLAUSE:

- a) The prices once fixed will remain valid during the scheduled contract period. Further, if at any time during the contract

- I. It comes to the notice of purchaser regarding reduction of price for the same or similar equipment/ service;

And/or

- II. The prices received in a new tender for the same or similar equipment/service are less than the prices chargeable under the contract.

The purchaser, for the purpose of delivery period extension/during rate contract, if any, will determine and intimate the new price, taking into account various related aspects such as quantity, geographical location etc., and the date of its effect for the balance quantity/ service to the vendor. In case the vendor does not accept the new price to be made applicable during the extended delivery period and the date of its effect, the purchaser shall have the right to terminate the contract without accepting any further supplies. This termination of the contract shall be at the risk and responsibility of the supplier and the purchaser reserves the right to purchase the balance unsupplied quantity/ service at the risk and cost of the defaulting vendor besides considering the forfeiture of his performance security.

- b) The vendor while applying for extension of time for delivery of equipment/services, if any, shall have to provide an undertaking as “We have not reduced the sale price, and/ or offered to sell the same or similar equipment/ service to any person/organization including Department of central/state Government or any central/state PSU at a price lower than the price chargeable under the contract for scheduled delivery period.”

In case under taking as in (b) above is not applicable, the vendor will give the details of prices, the name(s) of purchaser, quantity etc. to the purchaser, while applying extension of delivery period.

Appendix-1 to General Conditions of Contract

These conditions vary and add to the Conditions of Contract set out in General and Special Conditions of contracts including appendices:

- 1.(a) The use of privately owned or privately hired machinery on contractor work can only be permitted after approval of Engineer-in-charge PD TCIL. Only those private machineries either owned or privately hired will be used on works which have been approved by the Engineer-in-charge. For this purpose i.e. machineries will be registered and approved for particular use by the Engineer-in-charge.
- (b) Each private machinery will have an authorized log book issued by the concerned Project Director along with issue certificate of machinery by the Engineer-in-charge.
- (c) The maintenance and upkeep of hire machinery and tools and plant shall be responsibility of the contractor.
- (d) The Engineer-in-charge or his representative is empowered to check all privately hired/owned machinery & report direct to this office if any under specifications machinery is being used by the contractor.
2. The contractor shall follow the contract labour (regulation) Act and rules.
3. The Government shall have right to cause an audit and the technical examination of the work and the final bills of the contractor including all supporting vouchers abstract etc. to be made available within Three Years after payment of the final bill and if as a result of such audit and technical examination any sum is found to have been overpaid in respect of any work done by the contractor under the contract any work claimed by him under the contract and found not to be have executed the contractor shall be liable to refund the amount of overpayment. Besides, it shall be lawful for the department to recover the sum from him in the manner prescribed legally permissible and if it is found that the contractor, in respect of any work executed by him has not been paid the amount of such underpayments shall be duly by Government to the contractor.
4. Any material not conforming to the specification collected at sites shall have to be removed by the contractor within a period of three days of the instructions issued by the Engineer-in-Charge in writing, failing which, such material shall be removed by the department at risk and cost of the contractor after expiry of three days period.
5. The material collected at site and paid provisionally shall remain under the watch and ward of the contractor till it is consumed fully on the work.
6. The contractor shall arrange his own land for the erection of plants, storage and parking of Machinery, stacking of material etc.
7. It shall be responsibility of the contractor himself to procure earth required for construction of project at his cost.
8. The work should be got executed with the equipments, as per C.P.W.D.

specifications. Wherein the details of the type of equipments are given for various specifications and or policy circulars on the subject issued from time to time.

9. Guidelines prescribed by Indian Standards will be applicable for Q.C. System.
 - a. Action should be taken in respect of every work and every item of work inspected, wherein an observation is made.
 - b. The work or the item of work which has been reported as 'Poor' should be got re-done whereas the work or item of work which has been reported as 'Average' should be rectified.
 - c. In case of works under progress all works should be of a quality which should be graded as 'Good' and in case of completed works all works should be of quality which should be graded as 'Very Good'.
 - d. As per the Revised Guidelines, The works in progress which has been graded as 'Poor' or will be re-inspected to see that the necessary rectification has been carried out. Action will be taken to black list the Contractor in respect of works found 'Poor' or 'Average' on completion. Action for making the works as 'Very Good' shall also be taken in respect of works classified only as 'Good' on completion.
 - e. Decision given by Engineer will be binding on contractor.
9. The Contractor will procure cement required for the execution of work from authorized plant at this level and furnish the cement testing certificate from Government agency/Regional Laboratory/Engineering College.
11. Testing of cement shall be done as per norms, for which equipment shall be made available at site by contractor in a laboratory, to be established at plant site by the contractor.
12. The contractor will establish a field testing laboratory at the site of work & will provide all the equipment to the field staff required for various quality control tests. He will also ensure that the quality control tests as conducted are conducted and entered in the register as per the norms fixed by CPWD/Quality Control Manual.

- END OF SECTION 3 -

SECTION-4SPECIALCONDITIONSOFCONTRACT**4.1 SOURCEOFFUNDS**

NAVODAYA VIDYALAYA SAMITI (NVS) (An Autonomous Organization under Ministry of Education) Dept. of School Education & Literacy, Government of India has decided to undertake the works of **“Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)”** through funds arranged by them. The project/ referred work will be executed by TCIL as construction agency appointed by NAVODAYA VIDYALAYA SAMITI (An Autonomous Organization under Ministry of Education) Dept. of School Education & Literacy Government of India on behalf of the owner.

4.2 MOBILIZATION PERIOD AND PERIOD OF COMPLETION

A mobilization period of 7(Seven)days shall be given for the mobilization of men, machinery/ equipments and materials at site. The date of start of work to be reckoned from the 10th day from the date of issue of Letter of Intent (LOI) to start the work.

The time period for completion of aforesaid work shall be 09 (Nine) months from the 10th day of the date of issuance of Letter of Intent. The contractor shall ensure to complete all the works in the provided time period as time is the essence of this contract.

4.3 PERFORMANCE GUARANTEE (PBG)

- a) The successful bidder is required to submit a Performance Guarantee/e-PBG, Fixed Deposit Receipts (FDR), Insurance Surety Bond (in prescribed format), Bankers Cheque of **5% of the awarded value** of contract in prescribed format within 10 days from the issuance of LOI, before the signing of agreement. The Performance Guarantee shall be initially valid upto 60 days beyond the stipulated completion date which shall be further extended by the contractor from time to time upto the date of 60 days beyond the issuing of the Handing Over Certificate or Completion Certificate, whichever is later.

Further, retention equivalent to 2.5% of the gross amount of each running and final bill shall be deducted.

- b) The Bank Guarantee to be submitted in the prescribed format from a SFMS enabled Scheduled Commercial Bank through SFMS platform as per details below:

Name of Beneficiary and its Details	Name	Telecommunications Consultants India Limited
	Address	TCIL Bhawan, Greater Kailash-1, New Delhi-110048
Name of Beneficiary Bank and its Details	Name	ICICI Bank Limited
	Account No	000705005880
	Address	9-A PHELPS Building, Connaught Place, New Delhi- 110001
	Unique Identifier Code	TC503394486 (UID to be mentioned in field 7037 of the BG advising message code)
	IFS Code	ICIC0000007

- c) In the event of the contract being determined or rescinded under provision of any clause / condition of the agreement or the performance of the contractor judged to be poor, the performance guarantee amount shall stand forfeited and the amount such received shall be absolutely at the disposal of employer.
- d) The proceed of performance security shall be payable to TCIL in case of breach of any of the terms & conditions of the contract/LOI/ Tender by the vendor. Recovery/ adjustment due to LD or any other loss to TCIL shall be in addition to point (f) below.
- e) The Performance Bank Guarantee shall be returned after 60 days to date of issuing of the Handing/ Taking Over Certificate or Completion Certificate, whichever is later. The refund of Security Deposit/ Retention shall be after successful completion of defect liability period and submission of Bank Guarantee & Guarantee Bond for waterproofing works as mentioned under Clause 1.17 of Section-1.
- f) Failure of the successful bidder to submit the above mentioned performance security or bidder's failure to complete its obligations under the contract shall constitute sufficient ground for the annulment of the award/cancellation of the award of work and forfeiture of the bid security/ performance security.
- g) Additionally, TCIL reserves the right to debar such defaulting bidder from participating in future bids for a period up to 2 years.

4.4 RELEASE OF PERFORMANCE AND SECURITY DEPOSIT

The Performance Bank Guarantee shall be returned after 60 days to date of issuing of the Handing/ Taking Over Certificate or Completion Certificate, whichever is later. The refund of Security Deposit/Retention shall be after successful completion of defect liability period and submission of Bank Guarantee & Guarantee Bond for waterproofing works as mentioned under Clause 1.17 of Section-1.

Contractor shall be bound to rectify any defects in their performed Works during a defect liability period . In case the Contractor fails to remedy the defects to the full satisfaction of the Project Director / Employer , the Employer shall be at liberty to forfeit the available Security amount and get the defects remedied at the risk and cost of the Contractor .

4.5 MOBILIZATION OF RESOURCES

The contractor shall provide all labour , machinery , equipments / machineries , tools & plants and any other equipment to carry out the work in workmanlike manner and complete the same . No expenses for mobilization and de - mobilization at the completion of work in all respects shall be paid and are deemed to be included in the rates quoted .

It shall be Contractor's responsibility to get the approvals sanctioned prior to performance from TCIL / local authority for any modification / revision . Nothing extra shall be paid for getting them sanctioned and for carrying out the same .

4.6 Mobilization Advance:

(i) Mobilization advance not exceeding 10% of the tendered value may be given, if requested by the contractor in writing within one month of the order to commence the work; subject to the availability of funds with TCIL from the mobilization advance received from the Client. Such advance shall be in two instalments. The first instalment of such advance shall be released by TCIL to the contractor on a request made by the contractor to TCIL in this behalf. The second instalment shall be released by TCIL only after the contractor furnishes a proof of the satisfactory utilization of the earlier instalment to the entire satisfaction of TCIL.

Before the mobilization advance is released, the contractor shall submit a Bank Guarantee Bond in the prescribed format from Scheduled Commercial Bank for the amount equal to 110% of the amount of advance and valid for the period till recovery of advance. This (Bank Guarantee from Scheduled commercial Bank for the amount equal to 110% of the balance amount of advance) shall be kept renewed from time to time by the contractor at his own cost to cover the balance amount and likely period of complete recovery. This Bank Guarantee should be issued by a Delhi Branch only from an SFMS enabled Scheduled Commercial Bank through SFMS Platform. Alternatively, this BG can also be submitted in physical form from a Scheduled Commercial Bank through its Delhi Branch only.

The advance so paid to the Contractor shall only be used in execution of the works of this Contract including setting up of site office and site laboratory, mobilization of plant and machinery, scaffolding & shuttering materials etc.

Interest & Recovery:-

(ii) The mobilization advance as mentioned above bear simple interest at the rate of 8 percent per annum and shall be calculated from the date of payment to the date of recovery, both days inclusive, on the outstanding amount of advance. The recovery of mobilization advance shall be @ 25% of the work done in corresponding running bills, together with interest due on the entire outstanding amount up to the date of recovery of the installment.

- (iii) If the circumstances are considered reasonable by the Engineer-in-Charge, the period mentioned in (i) and (ii) for request by the contractor in writing for grant of mobilization advance may be extended at the discretion of the Engineer-in-Charge.

4.7 SITE MEETING

Weekly Site meeting , to be attended by representatives of the Project Director and Contractor shall be held every Wednesday for progress monitoring and other issues . In the event of Wednesday being a holiday , the meeting will be held on the next working day .

4.8 LIST OF DOCUMENTS TO BE MAINTAINED AT SITE BY THE CONTRACTOR

- (i) Daily Works Register
- (ii) Level Book
- (iii) Measurement Book
- (iv) Site Instruction Book
- (v) BOQ with approved drawings
- (vi) Any other documents required by Project Directors to check progress of work etc. shall be maintained by Contractor at Site.

4.9 Deleted

4.10 INTERIM PAYMENT

All interim payments shall be treated as payments by way of advances against final payments and not as payments for the work done or be considered as an admission of the due performance of the Contract .

TCIL is acting as Employer on behalf of the owner . The funds for this work be provided by owner and the payments to the contractor shall be on back to back basis i.e . payments towards the running and final bills shall be paid to the contractor by TCIL only after the receipt of the same from the owner .

4.11 RISK AND COST CLAUSE:

If contractor:

- (i) At any time makes default during currency of work or does not execute any part of the work with due diligence and continues to do so even after a notice in writing of 7 working days in this respect from the Engineer-in-Charge; or

- (ii) Commits default in complying with any of the terms and conditions of the contract and does not remedy it or takes effective steps to remedy it within 7 working days even after a notice in writing is given in that behalf by the Engineer-in-Charge; or Fails to complete the work(s) or items of work with individual dates of completion, on or before the date(s) so determined, and does not complete them within the period specified in the notice given in writing in that behalf by the Engineer-in-Charge.
- (iii) The Engineer- in-Charge without invoking action under Clause 4.41 may, without prejudice to any other right or remedy against the contractor which have either accrued or accrue thereafter to TCIL, by a notice in writing to take the part work / part incomplete work of any item(s) out of his hands and shall have powers to:
 - (a) Take possession of the site and any materials, constructional plant, implements, stores, etc., thereon; and/or
 - (b) Carry out the part work / part incomplete work of any item(s) by any means at the risk and cost of the contractor

The Engineer-in-Charge shall determine the amount, if any, is recoverable from the contractor for completion of the part work/ part incomplete work of any item(s) taken out of his hands and execute at the risk and cost of the contractor, the liability of contractor on account of loss or damage suffered by TCIL/Client because of action under this clause shall not exceed 10% of the tendered value of the work.

In determining the amount, credit shall be given to the contractor with the value of work done in all respect in the same manner and at the same rate as if it had been carried out by the original contractor under the terms of his contract, the value of contractor's materials taken over and incorporated in the work and use of plant and machinery belonging to the contractor.

The certificate of the Engineer-in-Charge as to the value of work done shall be final and conclusive against the contractor provided always that action under this clause shall only be taken after giving notice in writing to the contractor. Provided also that if the expenses incurred by the department are less than the amount payable to the contractor at his agreement rates, the difference shall not be payable to the contractor.

Any excess expenditure incurred or to be incurred by TCIL in completing the part work/ part incomplete work of any item(s) or the excess loss of damages suffered or may be suffered by TCIL as aforesaid after allowing such credit shall without prejudice to any other right or remedy available to TCIL in law or per as agreement be recovered from any money due to the contractor on any account, and if such money is insufficient, the contractor shall be called upon in writing and shall be liable to pay the same within 30 days.

If the contractor fails to pay the required sum within the aforesaid period of 30 days, the Engineer-in-Charge shall have the right to sell any or all of the contractors' unused materials, constructional plant, implements, temporary building at site etc. and adjust the proceeds of sale thereof towards the dues recoverable from the contractor under the contract and if thereafter there remains any balance outstanding, it shall be recovered in accordance with the provisions of the contract.

In the event of above course being adopted by the Engineer-in-Charge, the contractor shall have no claim to compensation for any loss sustained by him by reason of his having purchased or procured any materials or entered into any engagements or made any advance on any account or with a view to the execution of the work or the performance of the contract.

4.12 CO-OPERATION WITH OTHER WORKING CONTRACTORS

4.12.1 The Contractor shall cooperate and share the Site with other Contractors, public authorities, utilities, and the Employer between the dates given in the Schedule of Other Contractors, as referred to in the Contract Data. The Contractor shall also provide facilities and services for them as described in the Schedule. The Employer may modify the Schedule of Other Contractors, and shall notify the Contractor of any such modification.

4.12.2 The Contractor should take up the works in convenient reaches as decided by the Engineer to ensure there is least hindrance to the smooth flow of traffic including movement of vehicles and equipment of other Contractors till the completion of the Works.

4.13 Site Office cum Transit Camp & IT Infrastructure:-

A. The Contractor will provide to TCIL at his own cost furnished **Site Office cum Transit Camp** (i.e. office tables, chairs, internet facility, beds, cooler, toilets etc.) with minimum built up area of **600 Sq. Ft.** and suitably equipped with electricity, water-supply, security and **01 (One) Number** Motorcycle with fuel and maintenance, till completion and handing over of the works.

In case the contractor fails to provide necessary facilities to TCIL staff as aforesaid, the Engineer-in-charge shall be at liberty to make arrangement of the facilities and recover the costs incurred on behalf of the contractor from his/its running bills and/or any other dues recoverable under the contract.

B. The successful bidder shall, at its own cost, create the necessary IT infrastructure (on-site and/or off-site) for close monitoring of the project progress i.e. installation & operations of PTZ enabled CCTV camera of required numbers as specified by Engineer-in-charge and other internet & IT facilities.

4.14 Technical Personnel:-

- a) The contractor shall provide and employ at his own cost the following technical staff during the execution of the works till successful completion and handing over of the work to the client.
- b) The minimum requirement of such technical staff and their qualification & experience shall not be lower than that specified as under:-

S. N.	Name of the work	Total Estimated Cost (in Lacs)	Staff requirement	Min. Experience in Building Construction Works	Amount to be recovered in case of default of non-deployment of personnel
1	Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)	Rs. 307.51 Lacs	01 no. Assistant Engineer (AE):- Graduate in Civil Engg. 01 no. Junior Engineer (JE):- Diploma in Civil Engg.	3 Years 3 Years	Rs. 35,000/- per month per person Rs. 25,000/- per month per person

- c) Engineer-in-charge will approve the CV of such engineers to be deployed by the
- d) contractor based on the ability, qualification and experience and any proposed replacement of technical personnel only if their relevant qualifications and abilities are substantially equal to or better than those of the personnel stated in the contract data.
- e) If the Engineer-in-charge asks the Contractor to remove a person who is a member of the Contractor's staff or work force, stating justifiable reasons, the Contractor shall ensure that the person leaves the Site within seven days and has no further connection with the Works in the Contract.
- f) The contractor, in any case, has to deploy minimum 50% of technical staff as mentioned above otherwise suitable action as deemed fit under the contract shall be taken against the contractor by TCIL. For non-deployment of the technical staff, the recovery of amount as mentioned above per month per person shall be made from the contractor's running payments and the amount so deducted on this account shall be final and binding on the contractor. The Engineer-in-charge shall be at liberty to engage suitable staff against the same for the purpose till the successful completion and handing over of the works to the Client
- g) The Contractor shall not employ any retired Gazetted officer who has worked in any Govt. Engineering Department before completing the period of Three Years or as per latest Govt. guidelines/ orders etc. after the date of retirement. The Contractor shall comply with all the relevant laws/ orders/ guidelines etc. of Govt. regarding employment after retirement. Any non-compliance of such law/ order/ guidelines etc. and consequences thereof shall be the sole responsibility of the contractor.

4.15 Employers Risks

The Employer is responsible for the excepted risks which are (a) insofar as they directly affect the execution of the Works in the Employees country , the risks of war , invasion , act of foreign enemies , rebellion , revolution , insurrection or military or usurped power , civil war , riot commotion or disorder (unless restricted to the Contractors employees) , natural calamities and contamination from any nuclear fuel or nuclear waste or radioactive.

4.16 Contractor's Risks

All risks of loss or damage to physical property and of personal injury and death which arise during and in consequence of the performance of the Contract other than the excepted risks are the responsibility of the Contractor .

4.17 Insurance

4.17.1 The Employer shall not be liable in respect of any damages or compensation payable by law in respect or in consequence of any accident or injury to any machine, workman or other person in the employment of the contractor or any third person. The contractor shall indemnify and keep indemnified the Employer against all such damages and compensation, save and except as aforesaid. Contractor shall take Contractor's all risk policy in accordance with the requirement and shall pay all premium at its own. Agency shall take other policy required for all Plant and Equipment/Work Man compensation etc. at this cost for the following events which are due to the contractor's risk.

- a) Loss of or damage to the Works, Plant and Materials;
- b) Loss of or damage to Equipment;
- c) Loss of or damage to property (except the Works, Plant, Materials, and Equipment) in connection with the Contract; and
- d) Personal injury or death.
- e) Any other risk except covered under clause 3.26.

4.18 Site Investigation Reports

4.18.1 The Contractor, in preparing the Bid, may rely on any Site Investigation Reports referred to in the Contract Data, supplemented by any other information available to him, before submitting the bid.

4.19 Queries about the Contract Data

4.19.1 The Engineer will clarify queries on the Contract Data.

4.20 Contractor to Construct the Works

4.20.1 The Contractor shall construct and install and maintain the Works in accordance with the Specifications and Drawings.

4.20.2 The contractor shall construct the works with intermediate technology, i.e. by manual means with medium input of machinery required to ensure the quality of works as per specifications. The contractor shall deploy the equipment and machinery as given in Contract Data.

4.21 The Works to Be Completed by the Intended Completion Date

4.23.1 The Contractor may commence execution of the Works on the Start Date

and shall carry out the Works in accordance with the programs submitted by the Contractor, as updated with the approval of the Engineer, and complete them by the Intended Completion Date.

4.22 Approval by the Project Director

4.22.1 The Contractor shall submit Specifications and Drawings showing the proposed Temporary Works to the Project Director, who is to approve them.

4.22.2 The Contractor shall be responsible for design of Temporary Works.

4.22.3 The Engineer's approval shall not alter the Contractor's responsibility for design of the Temporary Works.

4.22.4 The Contractor shall obtain approval of third parties to the design of the Temporary Works, where required.

4.22.5 All Drawings prepared by the Contractor for the execution of the temporary or permanent Works, are subject to prior approval by the Engineer before their use.

4.23 Safety

4.23.1 The Contractor shall be responsible for the safety of all activities on the Site.

4.24 Possession of the Site

4.24.1 The Employer shall hand over complete or part possession of the site to the Contractor 10 days in advance of construction program. At the start of the work, the employer shall hand over the possession of at least 50% of the site.

4.25 Access to the Site

4.25.1 The Contractor shall allow access to the Site and to any place where work in connection with the Contract is being carried out, or is intended to be carried out to the engineer and any person/persons/agency authorized by:

- a. The Project Director
- b. The Employer
- c. The Owner

4.26 Instructions

4.26.1 The Contractor shall carry out all instructions of the project director, which comply with the applicable laws where the Site is located.

4.27 Extension of the Intended Completion Date

4.27.1 The Engineer shall extend the Intended Completion Date

if a Compensation Event occurs or a Variation is issued which makes it impossible for Completion to be achieved by the Intended Completion Date without the Contractor taking steps to accelerate the remaining Works, which would cause the Contractor to incur additional cost.

- 4.27.2 The Engineer shall decide whether and by how much time to extend the intended Completion Date within 21 days of the Contractor asking the Engineer for a decision upon the effect of a Compensation Event or Variation and submitting full supporting information. If the Contractor has failed to cooperate in dealing with a delay, the delay by this failure shall not be considered in assessing the new Intended Completion Date.

4.28 Delays Ordered by the Engineer:

The Engineer may instruct the Contractor to delay the start or progress of any activity within the Works. Delay/ delay totaling more than 30 days will require prior written approval of the Employer.

4.29 Management Meetings

- 4.29.1 The Engineer may require the Contractor to attend a management meeting. The business of a management meeting shall be to review the plans for the Works.

- 4.29.2 The Engineer shall record the business of management meetings and provide copies of the record to those attending the meeting. The responsibility of the parties for action to be taken shall be decided by the Engineer either at the management meeting or after the management meeting and stated in writing to all those who attended the meeting.

4.30 Identifying Defects

- 4.30.1 The Engineer shall check the Contractor's work and notify the Contractor of any Defects that are found. Such checkings shall not affect the Contractor's responsibilities. The Engineer may instruct the Contractor to search for a Defect and to uncover and test any work that the Engineer considers may have a Defect.

- 4.30.2 The contractor shall be solely responsible for:

- a. Carrying out the mandatory tests prescribed in the Specifications, and
- b. For the correctness of the test results, whether performed in his laboratory or elsewhere.

All the test charges shall be paid by the contractor.

- 4.30.3 If the Engineer instructs the Contractor to carry out a test not specified in the Specification to check whether any work has a Defect and the test shows that it does, the Contractor shall pay for the test and any samples.

4.31 Correction of Defects noticed during the Defect Liability Period of works for one Year.

- 4.31.1 The Engineer shall give notice to the Contractor of any Defects before the end of the Defects Liability Period, which begins at Completion and handing over of the works and ends after one year. The Defects Liability Period shall be extended for as long as Defects remain to be corrected.
- 4.31.2 Every time notice of Defect/Defects is given, the Contractor shall correct the notified Defect/Defects within the duration of times specified by the Engineer's notice.
- 4.31.3 The Contractor shall do the routine maintenance of works to the required standards and in the manner as defined in the document and keep the entire structure in Defect free condition during the entire maintenance period which begins at Completion and handing over of the works and ends after one Year.
- 4.31.4 The routine maintenance standards shall meet the standard minimum requirements.
- 4.31.5 To fulfill the objectives laid down in sub clauses 4.33 & 4.34 above, the Contractor shall undertake detailed inspection of the works at least once in a month. The Engineer can reduce this frequency in case of emergency. The Contractor shall forward to the Engineer the record of inspection and rectification each month.
- 4.31.6 The Engineer may issue notice to the Contractor to carry out maintenance of defects, -if any noticed in his inspection, or brought to his notice. The Contractor shall remove the defects within the periods specified in the notice and submit to the Engineer a compliance report.

4.32 Uncorrected Defects

- 4.32.1 If the Contractor has not corrected a Defect pertaining to the Defect Liability Period under clause 4.32 and of these Conditions of Contract, to the satisfaction of the Engineer, within the times specified in the Engineer's notice, the Engineer will assess the cost of having the Defect corrected, and the Contractor will pay this amount, on correction of the Defect.

4.33 Bill of Quantities

- 4.33.1 The Bill of Quantities shall contain items for the construction, installation, testing, and commissioning and maintaining works, to be done by the Contractor.
- 4.33.2 The Bill of Quantities is used to calculate the Contract Price. The Contractor is paid for the quantity of the work done at the rate in the Bill of Quantities for each item for the construction of works.

4.34 Cash Flow Forecasts

- 4.34.1 When the program is updated, the Contractor shall provide the Engineer with

an updated cash flow forecast.

4.35 Payment Terms:

Payments shall be made subject to the availability of funds from the Client. TCIL shall not be responsible for delay in receipt of funds from the Client. Procedure for payment is as under:

- (i) Running Account (RA) bills shall be submitted by the contractor for the work executed on the basis of recorded measurements, provided it is not less than 10% of Contract Value or Rs 20.00 Lakhs, whichever is less. The RA bills shall be submitted by the contractor on or before the date of every month fixed for the same by the Engineer-in-Charge of TCIL.
- (ii) Payments shall be adjusted for deductions for advance payments, security deposit, other recoveries in terms of the Contract and taxes at source, as applicable under the law. The Engineer will pay the Contractor (on receipt of the corresponding payments from the Client) the amounts he had certified for each bill.
- (iii) The Employer may appoint another authority, as specified in the Contract Data (or any other competent person appointed by the Employer and notified to the contractor) to make payment certified by the Engineer.
- (iv) Items of the Works for which no rate or price has been entered in the Bill of Quantities, will not be paid for by the Employer and shall be deemed covered by other rates and prices in the Contract.
- (v) If the Routine Maintenance part of the contract is not carried out by the Contractor as per this contract, the employer will be free to carry out Routine Maintenance work and the amount required for this work will be recovered from the amount of Security available with the employer and/or from any amounts of the Contractor whatever is due.
- (vi) If the Intended Completion Date is extended after liquidated damages have been paid, the Engineer shall correct any overpayment of liquidated damages by the Contractor by adjusting the next payment.
- (vii) **Payment of Final Bill:-** The final bill shall be submitted by the Contractor in the same manner as specified in interim bills within three months of physical completion of the work or within one month of the date of the final certificate of completion furnished by the Engineer-in-Charge whichever is earlier. No further claims shall be made by the Contractor after submission of the final bill and these shall be deemed to have been waived and extinguished. Payments of those items of the bill in respect of which there is no dispute and of items in dispute, for quantities and rates as approved by Engineer-in-Charge, will be made within six months, the period being reckoned from the date of receipt of the bill by the Engineer-in-Charge or his authorized representative; subject to availability of funds from the Client.
- (viii) No Running Account Bill shall be paid for the work till the applicable labour licenses, registration with EPFO, ESIC and BOCW Welfare Board, whatever applicable are submitted by the contractor to the Engineer-in-Charge.

Notwithstanding anything contained in any other agreement, document, correspondence, arrangement between the parties in respect of subject Works/Projects, the contractor understands, agrees and undertakes:

- (i) that the payments terms are on back to back basis and the payment shall be released to the contractor by TCIL only if and when received by TCIL from the Client and subject to submission of complete documents and invoices etc. by it.
- (ii) that it will not demand or make any claim under any law with respect to the pending payment till the time corresponding payment is received by TCIL from the Client. TCIL shall not be responsible in any manner whatsoever for any delay in releasing the payments or withholding of payments by the Client.
- (iii) the (day) date of delivery of goods and/or rendering of services by the contractor shall be the date of realization of payment from the Client once the goods and/or services are accepted by the client.
- (iv) that if in the instant contract it is acting only trader/reseller/distributor/authorized agents and/or is engaged in a WORKS contract, no benefits under MSME Act 2006 and PPP Policy 2012 as per MSE Guidelines issued by Ministry of MSME would be applicable to it on account of acceptance of back to back payment terms as above.

4.36 Cost of Repairs

- 4.36.1 Loss or damage to the Works or Materials to be incorporated in the Works between the Start Date and the end of the Defects Correction period shall be remedied by the Contractor at this cost if the loss or damage arises from the Contractor's acts or omissions.

4.37 Completion of Construction and Maintenance

- 4.37.1 The Contractor shall request the Engineer to issue a certificate of completion of the construction of the works in whole or in parts, and the Engineer will do so upon deciding that the work is completed.
- 4.37.2 The Contractor shall request the Engineer to issue the certificate of completion of the Routine Maintenance and the Engineer will do so upon deciding that the Routine Maintenance is completed, Where applicable.
- 4.37.3 In case of multiple sites with different components (Project comprises with different locations with different components of a project, completion of any individual site / component shall be acceptable after handing over to the client and submission of as-built drawings & all concerned documents as per contract agreement to TCIL.

In such cases TCIL is liable to issue completion certificate for individual site / component, whatever the case may be, and agency shall be allowed to start Defect Liability period for particular site / components. In such cases TCIL shall release performance security on pro-rata basis after completion of DLP for that site / component i.e. prior to completion of entire project.

Above rule is applicable for (n-1) nos of sites / (n-1) nos of components, if total

no of site/components in a project are 'n' nos.

4.38 Taking Over

4.38.1 The Employer shall take over the works as a whole or in parts (in case of multiple site under one contract) within seven days of the Engineer issuing a certificate of completion of works. The Contractor shall continue to remain responsible for its routine maintenance during the defect liability period.

4.38.2 The employer shall take over the maintained work within 7 days of the Engineer issuing a certificate of completion of the Routine Maintenance.

4.39 Final Account

4.39.1 The Contractor shall supply the Engineer with a detailed account of the total amount that the Contractor considers payable for works under the contract within 21 days of issue of certificate of completion of construction of works. The Engineer shall issue a defect liability certificate and certify any payment that is due to the contractor for works within 42 days of receiving the Contractor's account if it is correct and complete. If the account is not correct or complete, the Engineer shall issue within 42 days a schedule that states the scope of the corrections or additions that are necessary. If the Account is still unsatisfactory after it has been resubmitted, the Engineer shall decide on the amount payable to the Contractor and issue a payment certificate within 28 days of receiving the Contractor's revised account. The payment of final bill for construction of works will be made within 14 days thereafter.

4.39.2 In case of account is not received within 21 days of issue of Certificate of Completion as provided in clause 4.41.1 above, the Engineer shall proceed to finalize the account and issue a payment certificate within 28 days. The payment of final bill for construction of works will be made within 14 days thereafter.

4.39.3 The Contractor shall supply the Engineer with a detailed account of the total amount that the Contractor considers payable under the contract 21 days before the end of the Routine Maintenance Period. The Engineer shall issue a Routine Maintenance Completion Certificate and certify any final payment that is due to the Contractor within 42 days of receiving the Contractor's account if it is correct and complete. If it is not, the Engineer shall issue within 42 days a schedule that states the scope of the corrections or additions that are necessary. If the Final Account is still unsatisfactory after it has been resubmitted, the Engineer shall decide on the amount payable to the Contractor and issue a payment certificate within 28 days of receiving the Contractor's revised account. The payment of final bills for routine maintenance will be made within 14 days thereafter.

4.39.4 In case the account is not received within 21 days of issue of Certificate of Completion as provided in clause 4.41.3 above, the Engineer shall proceed to finalize the account and issue a payment certificate within 28 days.

4.40 Operating and Maintenance Manuals

4.40.1 If "as built" Drawings and/or operating and maintenance manuals are required, the Contractor shall supply them by the dates stated in the document.

4.40.2 If the Contractor does not supply the Drawings and/or manuals by the dates stated in the Contract Data, or they do not receive the Engineer's approval, the Engineers shall withhold the amount stated in the Contract Data from payments due to the Contractor. The clauses shall be applicable in contracts having O&M works.

4.41 Termination/ When Contract can be Determined:**4.41.1:-**

Subject to other provisions contained in this clause, the Engineer-in-Charge may, without prejudice to any other rights or remedy against the contractor in respect of any delay, not following safety norms, inferior workmanship, any claims for damages and/or any other provisions of this contract or otherwise, and whether the date of completion has or has not elapsed, by notice in writing absolutely determine the contract in any of the following cases:

- (i) If the contractor having been given by the Engineer-in-Charge a notice in writing to rectify, reconstruct or replace any defective work or that the work is being performed in an inefficient or otherwise improper or un-workman like manner shall omit to comply with the requirement of such notice for a period of seven days thereafter.
- (ii) If the contractor has, without reasonable cause, suspended the progress of the work or has failed to proceed with the work with due diligence and continues to do so after a notice in writing of fifteen days from the Engineer-in-Charge.
- (iii) If the contractor fails to complete the work or section of work with individual date of completion on or before the stipulated or justified extended date, on or before such date of completion; and the Engineer in Charge without any prejudice to any other right or remedy under any other provision in the contract has given further reasonable time in a notice given in writing in that behalf as either mutually agreed or in absence of such mutual agreement by his own assessment making such time essence of contract and in the opinion of Engineer-in-Charge the contractor will be unable to complete the same or does not complete the same within the period specified.
- (iv) If the contractor persistently neglects to carry out his obligations under the contract and/ or commits default in complying with any of the terms and conditions of the contract and does not remedy it or take effective steps to remedy it within 15 days after a notice in writing is given to him in that behalf by the Engineer-in-Charge.
- (v) If the contractor shall offer or give or agree to give to any person in TCIL service or to any other person on his behalf any gift or consideration of any kind as an inducement or reward for doing or forbearing to do or for having done or forborne to do any act in relation to the obtaining or execution of this or any other contract for TCIL

- (vi) If the contractor shall enter into a contract with TCIL in connection with which commission has been paid or agreed to be paid by him or to his knowledge, unless the particulars of any such commission and the terms of payment thereof have been previously disclosed in writing to the Engineer-in-Charge.
- (vii) If the contractor had secured the contract with TCIL as a result of wrong tendering or other non-bonafide methods of competitive tendering or commits breach of Integrity Agreement.
- (viii) If the contractor being an individual, or if a firm, any partner thereof shall at any time be adjudged insolvent or have a receiving order or order for administration of his estate made against him or shall take any proceedings for liquidation or composition (other than a voluntary liquidation for the purpose of amalgamation or reconstruction) under any Insolvency Act for the time being in force or make any conveyance or assignment of his effects or composition or arrangement for the benefit of his creditors or purport so to do, or if any application be made under any Insolvency Act for the time being in force for the sequestration of his estate or if a trust deed be executed by him for benefit of his creditors.
- (ix) If the contractor being a company shall pass a resolution or the court shall make an order that the company shall be wound up or if a receiver or a manager on behalf of a creditor shall be appointed or if circumstances shall arise which entitle the court or the creditor to appoint a receiver or a manager or which entitle the court to make a winding up order.
- (x) If the contractor shall suffer an execution being levied on his goods and allow it to be continued for a period of 21 days.
- (xi) If the contractor assigns (excluding part(s) of work assigned to other agency(s) by the contractor as per terms of contract), transfers, sublets (engagement of labour on a piece-work basis or of labour with materials not to be incorporated in the work, shall not be deemed to be subletting) or otherwise parts with or attempts to assign, transfer, sublet or otherwise parts with the entire works or any portion thereof without the prior written approval of the Engineer -in-Charge. When the contractor has made himself liable for action under any of the cases aforesaid, the Engineer-in-Charge shall have powers:
 - (a) To determine the contract as aforesaid so far as performance of work by the Contractor is concerned (of which determination notice in writing to the contractor under the hand of the Engineer-in-Charge shall be conclusive evidence). Upon such determination, Security Deposit already recovered, Security deposit payable and Performance Guarantee under the contract shall be liable to be forfeited and shall be absolutely at the disposal of TCIL.
 - (b) After giving notice to the contractor to measure up the work of the contractor and to take such whole, or the balance or part thereof, as shall be un-executed out of his hands and to give it to another contractor to complete the work. The contractor, whose contract is determined as above, shall not be allowed to participate in the tendering process for the balance work including any new items needed to complete the work. In the event of above courses being adopted by the Engineer-in-Charge, the contractor shall have no claim to compensation for any loss sustained by him by reasons of his having purchased or procured any materials or entered into

any engagements or made any advances on account or with a view to the execution of the work or the performance of the contract. And in case action is taken under any of the provision aforesaid, the contractor shall not be entitled to recover or be paid any sum for any work thereof or actually performed under this contract unless and until the Engineer-in-Charge has certified in writing the performance of such work and the value payable in respect thereof and he shall only be entitled to be paid the value so certified.

- (xii) TCIL may at any time terminate the contract by giving written notice to the supplier, without compensation to the supplier, if the supplier becomes bankrupt or otherwise insolvent as declared by the competent court; provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to TCIL.
- (xiii) At any time, in case it comes to the knowledge of TCIL any of wrong information related with eligibility of the bidder or non-compliance to any terms and conditions of tender, then TCIL reserves the right to cancel or reject the bid of such bidder, cancel the tender or take any other action as deemed fit in accordance with tender terms and conditions.

4.41.2 TERMINATION FOR DEFAULT

- a) TCIL may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the supplier, terminate this contract in whole or in part.
 - if the supplier fails to deliver any or all the services/goods within the time period specified in the contract, or any extension thereof granted by TCIL.
 - if the supplier fails to perform any other obligation(s) under the contract;
 - if the supplier, in either of the above circumstances, does not remedy his failure within a period of 15 days (or such longer period as TCIL may authorize in writing) after receipt of the default notice from TCIL.
 - Failure of the successful bidder to comply with the requirement of submission of performance security shall constitute sufficient ground for cancellation of the award of work and forfeiture of the bid security.
- b) In the event TCIL terminates the contract in whole or in part pursuant to above clause, TCIL may procure, upon such terms and in such manner as it deems appropriate, goods/services similar to those undelivered and the supplier shall be liable to TCIL for any excess cost for such similar goods/services. However, the supplier shall continue the performance of the contract to the extent not terminated.

4.41.3 TERMINATION FOR INSOLVENCY :

TCIL may at any time terminate the contract by giving written notice to the supplier, without compensation to the supplier, if the supplier becomes bankrupt or otherwise insolvent as declared by the competent court; provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to TCIL.

4.42 Deleted.

4.43 Payment upon Termination

4.43.1 If the Contract is terminated because of a fundamental breach of Contract by the Contractor, the Engineer shall issue a certificate for value of the work done and materials ordered less liquidated damages, if any, less advance payments received up to the date of the issue of the certificate and less the percentage to apply to the value of the work not completed, as indicated in clause No 4.58 of the document. If the total amount due to the Employer exceeds any payment due to the Contractor, the difference shall be recovered from the security deposit, and performance security. If any amount is still left unrecovered it will be a debt payable to the Employer.

4.43.2 If the Contract is terminated at the Employer's convenience, the Engineer shall issue a certificate for the value of the work done, the reasonable cost of removal of Equipment, repatriation of the Contractor's personnel employed solely on the Works, and the Contractor's costs of protecting and securing the Works and less advance payments received up to the date of the certificate, less other recoveries due in terms of the Contract, and less taxes due to be deducted at source as per applicable law.

4.44 Property

4.44.1 All Materials on the Site, Plant, Equipment, Temporary Works, and Works shall be deemed to be the property of the Employer for use for completing balance construction work if the Contract is terminated because of the Contractor's default, till the Works is completed after which it will be transferred to the Contractor and credit, if any, given for its use.

4.45 Releases from Performance

4.45.1 If the Contractor is frustrated by the outbreak of war or by any other event entirely outside the control of the Employer or the Contractor, the Engineer shall certify that the Contract has been frustrated. The Contractor shall make the Site safe and stop work as quickly as possible after receiving this certificate and shall be paid for all work carried out before receiving it and for any work carried out afterward to which a commitment was made.

4.46 Labour

4.46.1 The Contractor shall, unless otherwise provided in the Contract, make his own arrangements for the engagement of all staff and labour, local or other, and for

their payment, housing, feeding and transport.

- 4.46.2 The Contractor shall, if required by the Engineer, deliver to the Engineer a return in detail, in such form and at such intervals as the Engineer may prescribe, showing the staff and the numbers of these several classes of labour from time to time employed by the Contractor on the Site and such other information as the Engineer may require. CG

4.47 COMPLIANCE WITH LABOUR REGULATIONS

- 4.47.1 During continuance of the Contract the Contractor and his sub-Contractors shall abide at all times by all existing labour enactments and rules made thereunder, regulations, notifications and by laws of the State or Central Government or local authority and any other labour law (including rules), regulations, by laws that may be passed or notification that may be issued under any labour law in future either by the State or the Central Government or the local authority. Salient features of some of the major labour laws that are applicable to construction industry are given in Appendix to Part I General Condition of Contract. The Contractor shall keep the Employer indemnified in case any action is taken against the Employer by the competent authority on account of contravention of any of the provisions of any Act or rules made thereunder, regulations or notifications including amendments. If the Employer is caused to pay or reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated in the notifications/by laws/Acts/Rules/regulations including amendments, if any, on the part of the Contractor, the Engineer/Employer shall have the right to deduct any money due to the Contractor including his amount of performance security. The Employer/Engineers shall also have right to recover from the Contractor any sum required or estimated to be required for making good the loss or damages suffered by the Employer.

- 4.48 The employees of the Contractor and its Sub-Contractors/subagencies (if any) in no cases shall be treated as the employees of the Employer at any point of time.

4.49 Drawings and Photographs of the Works

- 4.49.1 The contractor shall do photography/video photography of the site firstly before the start of the work, secondly mid-way in the execution of different stages of work and lastly after the completion of the work. No separate payment will be made to the contractor for this.
- 4.49.2 The Contractor shall not disclose details of Drawings furnished to him and works on which he is engaged without the prior approval of the Engineer in writing. No photograph of the works or any part thereof or plant employed thereon, except those permitted under clause 4.50.1. 1 shall be taken or permitted by the Contractor to be taken by any of his employees or any employees of his sub-Contractors without the prior approval of the Engineer in writing. No photographs/ Video photography shall be published or otherwise circulated without the approval of the Engineer in writing.

- 4.50 The contractor will have to deploy minimum technical Personnel as mentioned in the tender document.
- 4.51 Deleted
- 4.52 The standard form of Performance Security acceptable to the Employer shall be an unconditional Bank Guarantee of the type as presented in the Bidding Documents.
- 4.53 The date by which "as-built" drawings (in scale as directed) in 2 sets are required is within 45 days of issue of certificate of completion of whole or section of the work, as the case may be.
- 4.54 The period for setting up a field laboratory with the prescribed equipment is 15 days from the date of notice to start work.
- 4.55 The project shall be monitored as per Critical Path Method, PERT Chart which shall be submitted by contractor at the time of signing of Agreement.
- 4.56 Within the total period as aforesaid, the contractor shall take up the work in such a manner as to make available the accommodation or the work constructed for the use in a reasonable and phased manner.
- 4.57 The contractor shall be fully responsible for observation for and compliance with all labour and laws applicable in the matter and shall indemnify and keep indemnified the "OWNER"/ Employer against effect of non observance of and non compliance with any such laws.
- 4.58 The contractor shall send completion report with drawings and maintenance schedules to the office of the "Employer" in writing within 45 days of completion of work.
- 4.59 The contractor will submit C.A.R & workmen compensation policy papers in original to the TCIL in accordance with the NVS requirement and prevailing statutory laws before start of work. Failing which, TCIL shall obtain these policies and recovered the amount from R/A bill of contractor.
- 4.60 The Contractor shall carry out the whole work in the most systematic and workman like manner, strictly as per the architectural drawings (duly approved by NVS), specifications and instructions/ guidelines issued from time to time by the Owner. CPWD specifications 2019- Vol. I & Vol. II & Vol. III with up to date corrections or latest CPWD specifications and latest relevant CPWD specifications for electrical works with up to date correction slips, latest editions of relevant IS Code with up to date correction slips and sound engineering practices should be followed.
- 4.61 The Contractor shall take up the work in such a manner so as to make available the accommodation or the work as per the priority to be fixed by the TCIL/owner at the time of start of the work and complete all buildings with

essential services (internal and external) within the stipulated time of completion.

- 4.62 The Contractor shall arrange to carry out all mandatory tests on construction materials as prescribed in CPWD specifications and BIS Code of practice and maintain all such records of mandatory tests conducted to ensure the quality of work. The Contractor shall produce copy of test reports regularly to TCIL/NVS during inspection of works and whenever desired otherwise also.
- 4.63 The Contractor shall be fully responsible for quality, technical/ structural soundness and effective & efficient construction management of the work. It shall ensure that all drawings issued by the TCIL are thoroughly examined as per the prevailing site conditions before actual execution and any deficiency/ defect and/ or suggestions for improvement to suit the local conditions may be brought to the notice of the TCIL in writing and his approval shall be obtained before execution. No deviation from approved drawings/ designs, specifications etc. shall be carried out without written approval of the TCIL/NVS, HQ. Any deviation from this shall make the Contractor fully responsible to bear the extra cost involved, if any.
- 4.64 The Contractor shall carry out the work of **water proofing treatment** through specialized firm, with minimum **05 years guarantee against leakages/ dampness** on a Rs. 100/- stamp paper to the TCIL as per Performa specified by TCIL/ Client. The guarantee shall include rectification of works within the guarantee period of minimum **05 years free of cost** if leakage/ dampness is reported by the TCIL/ NVS/ Principal or its representatives. Guarantee bond shall be tripartite agreement duly signed by TCIL, Contractor & Principal on stamp paper of Rs. 100/- (in Original). The Contractor shall be responsible to the TCIL for ensuring enforcements of these guarantees.

Further, in addition to the Guarantee bond (as above), the contractor whose tender is accepted shall submit a **Bank Guarantee** (format at Annexure-29) for a sum equivalent to **Fifty percent (50%) of the estimated cost of waterproofing work valid for five years from the expiry of Defects Liability Period.** Security Deposit will be released only after submission of the above mentioned Bank Guarantee and Guarantee Bond.

END OF SECTION 4-

SECTION- 5**SCOPE OF WORK AND TECHNICAL SPECIFICATIONS**

Name of the Work:- “Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)”

Scope of Work:- The scope of work includes demolition of old SP shed quarters and construction of Type -2 Quarters (1 block ,RCC framed structure, G+1) 8 nos. and Guest house (RCC framed structure, G) including development works and external services at JNV Azamgarh.

All works shall be carried out as per the standard technical specifications, BOQ and related details as per instructions of Engineer-in charge of TCIL. The work is to be performed as per the specifications and directives from time to time by the Project Director.

The work under proposal is to be completed in all respects for the successful completion and handing over the completed works to owner. All safety precautions are required to be taken during the construction period. On award of work, the contractor will carry out the Total station survey and initial site levels to ascertain the proper levels of drains and also during execution proper slope and levels to be maintained using level machines, wherever necessary/ as directed by Engineer-in- Charge.

Specifications:

- A. The design and specifications prescribed are those for building, of "National Building Code of India specifications and all related Indian Building Congress manuals and publications", as amended till the date of issue of the notice inviting Tender. Building Materials for use on Building shall also conform to the specifications given in Building & road Manual and the work has to be carried out as per sound engineering practices & codes of building construction engineering.
- B. The GOI, IS Specifications for Urban Building shall be followed in addition to State PWD / CPWD specifications.
- C. For purposes of design, specification and quality control the Building & Manual, IRC publications for Building works including particular specifications shall form part of the Agreement.
- D. For items not covered in Building Manual or IS-specifications for either BIS specification, or State/ District specifications or Sound engineering practice, as determined by the Engineer, in that order should be followed.

Note: The design, drawings, standards and guidelines of the IS Codes / PWD /CPWD/ NVS Circulars (if any) are to be followed for works.

LIST & MAKE OF VARIOUS ITEMS/PRODUCTS TO BE USED: -**A. Civil Works:-**

S.No.	Material /article	Confirming IS code	Manufactures/agencies/brand/make
1.	Cement	IS8112:1989	Ordinary Portland Cement 43 grade (Conforming to IS:8112) from reputed manufactures of cement such as A.C.C., Jaypee Cement, J.K. Cement, Ultratech, Shree Cement, Gujarat Ambuja Cement and Cement Corporation of India etc. as approved by Ministry of Industry, Government of India, and holding license to use ISI certification mark for their product whose name shall be got approved from Engineer-in-charge..
2.	Steel Reinforcement	IS1786:2008	Steel reinforcement bars confirming to relevant BIS codes from main producers as approved by the Ministry of steel, Thermo mechanically treated bars Fe-500 Grade confirming to IS1786:2008 from approved brands like SAIL, TISCO, RINL, Shyam
3.	Structure Steel		SAIL, TISCO, RINL
4.	Corrugated GI Sheet	IS277:2003	TATA, ESSAR, SAIL
5.	Float Glass (transparent)	IS14900:2000	TATA, Modiguard, Saint Gobain
6.	Aluminum extruded Sections	IS733:1983 & IS1285:2002	Jindal, Indal, Hindalco
7.	Aluminum plain sheets	IS733:1983 & IS1285:2002	Jindal, Indal, Hindalco
8.	Prelaminated Particle board	IS12823:1990	GVK, Novopan, Ecoboard, Archid, Century
9.	Block Board	IS1659:2004	Century, Greenply, Archid
10.	Commercial Ply	IS303:1989	Century, Greenply, Archid
11.	Aluminum sliding door bolt	IS2681:1993	Jyoti, Argent, Everest
12.	Aluminum Tower bolt	IS204(Part-1): 1991	Jyoti, Argent, Everest
13.	Aluminum Handles	IS208:1996	Jyoti, Argent, Everest
14.	PVC rigid foam sheet		Rajshri or eq.
15.	Hydraulic floor Spring	IS6315:1992	Hitech, Sandhu, Hardwyn
16.	Pre-cast terrazzo tiles	IS1237:1980	NTC, A-1, GTC

17	PVC pipe	IS4985:2000	Supreme,Finolex,Prince
18	PVC fittings	IS14233:1999	Supreme,Finolex,Prince
19	Ceramic glazed wall tiles	IS13712:1993	HRJohnson,Kazaria,Orient,Soman y

B. ELECTRICAL WORKS:

S. No.	Items	Conforming IS Code	Make
1	FRLS PVC insulated copper conductor	IS 694:1990/IEC 60227-1 to 5 (1979)	Havells/RR Kabels/KEI/Polycab/Skytone
2	PVC / Steel Conduit (duly ISI marked)	IS 9537 (Part 1): 1980/ IEC 60614-1 (1978)	Setia/ AKG/ BEC
3	Piano type switch / socket	IS 3854:1997	Havells/Kinjal/Anchor
4	Phenolic laminated sheet cover		Hylem/Formica/ Skylam
5	MCB Distribution board	IS 2675:1983	Havells/ Legrand/ C&S/ L&T/ Siemens
6	MCB / MCCB	IS 13032:1991	Havells/ Legrand/ C&S/ L&T
7	Brass compression gland/ Thimble		Dowells/ Comet/ Action
8	G.I. Wire/ G.I. strip		Hot dipped galvanized wire
9	Indoor cubical type panel board	IS 5039:1983	Tricolite / Advance Panel & Switchgear Pvt. Ltd/ Neptune/ ASPL/ Risha (All Duly CPRI approved workshop)
10	G,I, Pipe (duly ISI marked)	IS 1239 (Part1)	Jindal Hisar/ ITC/ TATA STEEL
11	Bend, elbow, socket, union, clamp		Duly ISI Marked
12	Indicating LED Lamp	IS 16102 (Part I & II)	L&T /Siemens/ ABB/ Schneider/ Rishab/ Philips
13	Various wattages Energy efficient LED luminaries.	IS 10322 (Part 1) : 1982/ IEC 598-1 (1979)	Crompton/ Havells/ Philips

14	LT armoured power cables- Aluminium conductor	IS 694:1990/IEC 60227-1 to 5 (1979)	Finolex/ Havells/ Universal/ Polycab
15	Inverter system	IS 13314	Sukam/ Microtek/ Luminous
16	Heavy duty ceiling fan/ exhaust fan	IS 374:1979	Almonard/ Crompton/ Havells/ Usha
17	Pressure type fire extinguishers	IS 15683:2006	Lifeguard/ Omex/ Ceasefire
18	Submersible pump set	IS 8034-1989	KSB/ Kirloskar/ Groundfos
19	Copper conductor flat submersible cable	IS 694:1990/IEC 60227-1 to 5 (1979)	Finolex / Havells / Universal / Polycab /Skytone
20	DOL starter	IS 8544 (Part 1): 1977	Havells / L&T / Rishabh / KSB
21	Ammeter/ Voltmeter	IS 1248 (Part 2): 2003/ IEC 60051-2 (1984)	L&T / Rishabh / HPL / Vaishno / AE
22	Overload relay/ Power contactor		L&T/BCH/GE /Havell's / HPL
23	Single phase Preventer		Minilec /L&T/ HPL
24	Lead Acid SMF battery	IS 14257	Exide/ SF/ AMRA RAJA
25	Motor/ Pumps	IS 9542-1980	Kirloskar/ Havells/ Crompton Green/KSB
26	25 KVA DG Set (Air cooled/ water cooled)	Engine- IS 10001 Alternator- IS 13364 (part-1)	Kirloskar / Cummins/Eicher
27	Fluorescent luminaries	IS 10322 (Part1) : 1982/ IEC 598-1 (1979)	Crompton/ Havells/ Philips

Note: Contractor is bound to follow the list of makes/specifications of the various materials along with equivalent Indian make brand. Any change shall be after written approval from Engineer-in charge only.

END OF SECTION-5

Section-6**Annexure-1****BID SUBMISSION FORM**

To
Project Director
Telecommunications Consultants India Limited,
Lucknow(UP)

Dear Sir,

In response to your TenderNo. _____, dated _____ **“Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)”** we hereby submit our offer herewith.

1. Bidder's Name : _____
2. Web site Address : _____
3. Email Address : _____
4. Address for Communication : _____
5. Telephone Number : _____
6. Fax/Telefax Number : _____
7. Authorized Person- Name : _____
Designation : _____
Mobile No. : _____
Email ID : _____
8. Alternate Person- Name : _____
Designation : _____
Mobile No. : _____
Email ID : _____
9. GST Number : _____
TIN Number : _____
State : _____
11. Service Tax Regn. No. : _____
12. ECC Number : _____
13. Beneficiary's complete Bank Details in case payment through LC is approved.
Bank Account No. : _____
IFSC/NEFT Code : _____
Name of the Bank : _____
Address of the Branch : _____

14. Particulars of EMD

Amount :Rs. _____
 Mode of Payment(DD/BG/FDR): _____
 DD/BG/FDR No. : _____
 Date : _____
 Name of the Bank : _____
 Address of the Bank : _____
 Validity of BG/FDR : _____

15. Particulars of Tender Fee

Amount :Rs. _____
 Instrument No. : _____
 Date : _____
 Name of the Bank : _____
 Address of the Bank : _____

16. Turnover on Construction works of the Bidder in last 3 years ending 31.03.2025(Please submit copy of Annual Reports duly signed by Statutory Auditor)

Year	Annual Report attached at Page No.	Turnover on Construction work	Profit/Loss	Net worth
Total				
Average				

17. Details of similar work/order executed during last 7 years from the date of bid submission:

Description of the Work/Order Executed	Value of Work/Order Executed	Name of the Client	Start Date	Completion Date	Doc. Evidence at Page No.

18. Are you a MSME UNIT.?If yes, please furnish Registration Details, Name of the DIC/State.

19.If you are MSME is it owned by SC/ST Entrepreneurs? If Yes ,please specify the Name of

the Owner who is SC or ST.

20. Company's Net-worth as on 31.03.2025 (Rs in Crores): _____

21. Information on current commitments/Ongoing Projects. Work orders are required to be attached for reference.

Sr No	Brief Details of Project/Work Order	Contract Date	Contract Value (Rs in lakhs)	Contract Completion Date	Value of outstanding work(Rs in lakhs)
1					
2					
3					

22. Following Documents are submitted to substantiate other eligibility criteria.

i) _____

ii) _____

iii) _____

DECLARATION

☐ We have read and understood the terms & conditions of the above mentioned tender and comply to all Terms & Conditions of your Tender.

(In case of any deviation the Bidder must attach a separate sheet clearly mentioning the Clause No. of the Tender and Deviation thereto)

☐ We certify that the information mentioned above are true and correct to best of our knowledge.

☐ In case of receipt of order we confirm that payment shall be received through e-Banking/Electronics Transfer.

☐ This offer contains No. of pages including all Annexures and Enclosures.

Place:

Date:

Signature of Authorized Signatory

Name

:

Designation

: Seal:

Annexure –2**Financial Information**

Financial Analysis : Details to be furnished duly supported by figures in Balance Sheet/Profit & Loss Account for the last three years duly certified by the Chartered Accountant, as submitted by the applicant to the Income Tax Department (certified copies to be attached)

	Description	2022-23	2023-24	2024-25	Average annual turnover
		A	B	C	(A+B+C)/3
(i)	Annual turnover on Construction works				
(ii)	Profit/Loss				

Seal and Signature of Applicant

Annexure-3**Details of machineries/equipment available**

S.No.	Name of Equipment	Make/model /capacity	Quantity	Condition	Status (Owned/ Leased/Hired)
1	Concrete mixers / Pump				
2	Transit Mixer				
3	Excavator (JCB)				
4	Steel propping				
5	Shuttering Materials				
6	Bar cutting & bending machine				
7	Needle Vibrators				
8	Tractors, trolley				
9	Welding machine				
9	Plate compactor				
11	Any other				

The list is not exhaustive and any other machinery / equipment required for successful and timely completion of project shall be arranged by the Contractor.

Signature of Applicant

Annexure-4**Details of Man Power available**

S.No.	Name	Designation	Qualification	Experience (Nature and no. of years)

Signature of Applicant

Annexure-5**Details of Similar Works Completed During Last 7 (Seven) Years**

Sr. No	Name of work/ Project & Location	Owner of organization	Value of work in lakhs at completion	Date of commencement as per contract	Stipulated date of completion	Actual date of completion	litigation /arbitration pending/ in progress with details	Name and address/ telephone number of officer to whom reference may be made	Remarks
1	2	3	4	5	6	7	8	9	10

Signature of bidder

Annexure-6**Details of similar works in progress**

Sr. No	Name of work/ Project & Location	Owner of organization	Value of work in lakhs	Date of commencement as per contract	Stipulated date of completion	Name and address/telephone number of officer to whom reference may be made	Remarks
1	2	3	4	5	6	7	8

Signature of applicant

Annexure-7Affidavit

(To be submitted on non-judicial stamp paper of Rs. 100/- duly certified by notary public)

Affidavit of Mr. _____ S/o _____ R/o _____

I, the deponent above named do hereby solemnly affirm and declare under:

1. That I am the Proprietor/Partner/Director/Authorized signatory of M/s. _____ having its Head Office / Registered Office at _____.
2. That the information/documents/Experience certificates submitted by M/s. _____ along with this tender for **“Conversion of SP shed to regular staff quarters including construction of shortfall quarters at JNV Azamgarh(UP)”** in TCIL are genuine and true and nothing has been concealed.
3. I shall have no objection in case TCIL verifies them from issuing authority(ies). I shall also have no objection in providing the original copy of the document(s), in case TCIL demands for verification.
4. I hereby confirm that in case any document, information &/or certificate submitted by me is found to be incorrect/false/fabricated, TCIL at its discretion may disqualify/reject my application for this tender outrightly and also debar me/M/s. _____ from participating in any future tenders.

DEPONENT

I, _____, the proprietor/authorized signatory of M/s. _____, do hereby confirm that the contents of the above Affidavit are true to my knowledge and nothing has been concealed there from and that no part of it is false.

Verified at this day of .

ANNEXURE – 8**D ECLARATION**

(To be submitted on non-judicial stamp paper of Rs. 10/- duly certified by Notary)

I/We have read and examined the bid document, terms and Conditions of bid and other documents and Rules referred to in the bid and all other contents in the bid documents for the construction works.

I/We hereby submit bid for (Name of Work: Repair and Maintenance work at JNV Ayodhya (UP)) within the specified time schedule.

I/We agree to keep the bid open for one hundred twenty (120) days from the date of opening of technical bid thereof not to make any modifications in its terms and conditions.

I/We hereby declare that I/We treat the bid documents, drawings and other records connected with the construction as secret/confidential documents and shall not communicate information/derived there from to any person except to whom I/We may be authorized to communicate the same or use the information in any manner prejudicial to the interest of the company.

If I/We fail to commence the construction works specified, I/We agree that the said TCIL or his successors in office shall, without prejudice to any other right or remedy, be at liberty to forfeit the said Earnest Money Deposit and/or Performance Guarantee absolutely; otherwise the said Earnest Money Deposit and/or Performance Guarantee shall be retained by them towards Security Deposit to render all construction works referred to in the bid documents upon the terms and conditions contained or referred to therein and to carry out such deviations as may be ordered.

Signature of the Bidder
Seal of Bidder

Place:

Date:

ANNEXURE -9
FORM OF AGREEMENT

THE AGREEMENT made on ____ day of _____ 20____ between the
 TELECOMMUNICATIONS CONSULTANTS INDIA LIMITED, NEW DELHI
 (hereinafter called the "TCIL") of one part and M/s

(hereinafter called the "Contractor") of the other part.

Whereas TCIL is desirous that Contractor shall execute the work vide tender No.

NOW THIS AGREEMENT WITNESSETH as follows:

1. In the Agreement, words and expressions have the same meanings as are respectively assigned to them in the conditions of contract thereafter referred to.
2. The following standard documents, in addition to the documents attached with NIT, shall be deemed to form and be read and construed as part of Agreement viz.:
 - (a) Tenderer's offer & corrigendum's.
 - (b) The Conditions and Specifications of the Client.
 - (c) The Letter of Acceptance.
 - (d) Negotiation letter (If any).
3. In consideration of the payments to be made by TCIL to the tenderer, the tenderer hereby covenants with TCIL to execute, complete and maintain the works in conformity in all respects with the provisions of the contract.
4. TCIL hereby covenants to pay the tenderer in consideration of execution, completion and maintenance of the works the contract price at the times and in the manner prescribed by the contract.

IN WITNESS where of the parties have hereunto set their respective hands and seals the day and year first above written.

For & on behalf of the TCIL
 Tenderer

For & on behalf of the

Witness

- 1.
- 2.

- 1.
- 2.

ANNEXURE-10PERFORMANCE SECURITY FORMATA. PERFORMANCE BANK GUARANTEE (PBG) FORMAT

(TO BE ISSUED BY A DELHI BRANCH)

**M/s Telecommunications Consultants India Ltd.,
TCIL Bhawan, Greater Kailash-I
New Delhi – 110 048 (INDIA)**

(With due stamp duty if applicable)

OUR LETTER OF GUARANTEE No: _____

In consideration of TELECOMMUNICATIONS CONSULTANTS INDIA LIMITED, having its office at TCIL Bhawan, Greater Kailash-I, New Delhi – 110 048 (INDIA) (hereinafter referred to as “TCIL” which expression shall unless repugnant to the content or meaning thereof include all its successors, administrators and executors) and having entered into an agreement dated _____/issued Purchase Order No. _____ dated _____ with/on M/s _____ (hereinafter referred to as “The Supplier” which expression unless repugnant to the content or meaning thereof, shall include all the successors, administrators, and executors).

WHEREAS the Supplier having unequivocally accepted to supply the materials/Services as per terms and conditions given in the Agreement dated _____ /Purchase Order No. _____ dated _____ and TCIL having agreed that the Supplier shall furnish to TCIL a Performance Guarantee for the faithful performance of the entire contract, to the extent of 10% (ten percent) of the value of the Purchase Order i.e. for _____.

We, _____ (“The Bank”) which shall include OUR successors, administrators and executors herewith establish an irrevocable Letter of Guarantee No. _____ in your favour for account of _____ (The Supplier) in cover of performance guarantee in accordance with the terms and conditions of the Agreement/Purchase Order.

Hereby, we undertake to pay up to but not exceeding _____ (say _____ only) upon receipt by us of your first written demand accompanied by your declaration stating that the amount claimed is due by reason of the Supplier having failed to perform the Agreement and despite any contestation on the part of above named supplier.

The proceed of performance security shall be payable to TCIL in case of breach of any of the terms and conditions of the contract/PO/tender by the vendor.

This Letter of Guarantee will expire on _____ including 30 days of claim period and any claims made hereunder must be received by us on or before expiry date after which date this Letter of Guarantee will become of no effect whatsoever whether returned to us or not.

Authorized Signature**Manager**

Seal of Bank

Contact details

Note:

Bank Guarantee (BG)/ e-BG in the prescribed format from a SFMS enabled Scheduled Commercial Bank through SFMS Platform. TCIL's bank details are as under:

Name of Beneficiary and its Details	Name	Telecommunications Consultants India Limited
	Address	TCIL Bhawan, Greater Kailash-1, New Delhi-110048
Name of Beneficiary Bank and its Details	Name	ICICI Bank Limited
	Account No	000705005880
	Address	9-A PHELPS Building, Connaught Place, New Delhi- 110001
	Unique Identifier Code	TC503394486 (UID to be mentioned in field 7037 of the BG advising message code)
	IFS Code	ICIC0000007

B. INSURANCE SURETY BOND – PERFORMANCE SECURITY FORMAT

(To be stamped in accordance with Stamp Act of India)

(TO BE ISSUED BY A DELHI BRANCH)

M/s Telecommunications Consultants India Ltd.,
TCIL Bhawan, Greater Kailash-I
New Delhi – 110 048 (INDIA)

Surety Bond No: _____

This BOND is made as a deed AMONG the following parties

The “Supplier” as contractor..... (name and address)

The “Surety Insurer” as guarantor (name and address) and “Purchaser” as Telecommunications Consultants India Limited, (TCIL), TCIL Bhawan, Greater Kailash -I, New Delhi 110048

WHEREAS TELECOMMUNICATIONS CONSULTANTS INDIA LIMITED, having its office at TCIL Bhawan, Greater Kailash-I, New Delhi – 110 048 (INDIA) (hereinafter referred to as “TCIL” which expression shall unless repugnant to the content or meaning thereof include all its successors, administrators and executors) has accepted the bid of the Supplier in relation to the Tender/RFP/EOI Number datedand having entered into an agreement dated _____ / issued Purchase Order No. _____ dated _____ with/on M/s _____ (hereinafter referred to as “The Supplier” which expression unless repugnant to the content or meaning thereof, shall include all the successors, administrators, and executors).

WHEREAS the Supplier having unequivocally accepted to supply the materials and/or Services as per terms and conditions given in the Agreement dated _____ / Purchase Order No. _____ dated _____ and TCIL having agreed that the Supplier shall furnish to TCIL a Surety Bond for the faithful performance of the entire contract, to the extent of xx% (xx percent) of the value of the Purchase Order / Agreement i.e. for Rs _____.

1. We, _____ (“The Surety Insurer”) which shall include OUR successors, administrators and executors irrevocably, unconditionally and without reservation guarantee the due and faithful fulfillment and compliance of the terms and conditions of the said Agreement/PO by the said Supplier and unconditionally and irrevocably undertake to pay forthwith to the TCIL an amount of Rs.*** ** (Rupees *** ** only (hereinafter referred to as the “Surety Bond”) as our primary obligation without any

demur, reservation, recourse, contest or protest and without reference to the Supplier, if the Supplier shall fail to fulfill or comply with all or any of the terms and conditions contained in the said Agreement/PO.

2. Hereby, we undertake to pay up to but not exceeding _____ (say _____ only) upon receipt by us of TCIL's first written demand accompanied by TCIL's declaration stating that the amount claimed is due by reason of the Supplier having failed to perform as per the Purchase Order / Agreement and despite any contestation on the part of above named supplier. Any such written demand made by the TCIL stating that the supplier is in default of the due and faithful fulfillment and compliance with the terms and conditions contained in the Agreement/PO shall be final, conclusive and binding on the surety Insurer, notwithstanding any differences between the TCIL and the Bidder or any dispute pending before any Court, Tribunal, Arbitrator or any other TCIL.
3. TCIL shall have the fullest liberty without affecting in any way the liability of the Surety Insurer under this Surety Bond from time to time to vary any of the terms and conditions in the said Agreement/PO or to extend time for fulfillment and compliance with all or any of the terms and conditions contained in the said Agreement/PO by the said supplier or to postpone for any time and from time to time any of powers exercisable by it against the said supplier and either to enforce or forbear from enforcing any of the terms and conditions contained in the said Agreement/PO, and the Surety Insurer shall not be released from its liability under these presents by any exercise by the TCIL of the liberty with reference to the matters aforesaid or by any change in the constitution of the TCIL or the Supplier or its absorption, merger or amalgamation with any other person or any other matter or thing whatsoever which under the law relating to sureties would but for this provision have the effect or releasing the Surety Insurer from its such liability. In the event of extension of time for performance of the contract, the Surety Insurer shall be liable to extend the validity of the present Insurance Surety Bond without any demur, condition or protest.
4. WE hereby acknowledge and understand that it shall not be necessary for TCIL to proceed against the said supplier before proceeding against the Surety Insurer and the Surety Bond herein contained shall be enforceable against the Surety Insurer, notwithstanding any other security which the TCIL may have obtained from the said supplier or any other person and which shall, at the time when proceedings are taken against the Surety Insurer hereunder, be outstanding or unrealized.
5. We, the Surety Insurer, further undertake not to revoke this Surety Bond during its currency except with the previous express consent of TCIL in writing.
6. The Surety Insurer declares that it has power to issue this Surety Bond and discharge the obligations contemplated herein, the undersigned is duly authorized and has full power to execute this Surety Bond for and on behalf of the Surety Insurer.
7. The Surety Bond shall not be affected by any change in the constitution or winding up of the Bidder or the Surety Insurer or any absorption, merger or amalgamation of the Bidder or the Surety Insurer with any other person.
8. This Surety Bond will expire on _____ including 30 days of claim period and any claims made hereunder must be received by us on or before expiry date after which date this Surety Bond will become of no effect whatsoever whether returned to us or not.
9. The parties acknowledge and agree that neither this Surety Bond nor any obligations hereunder are transferable or assignable.
10. The Surety Insurer declares that this Insurance Surety Bond is issued as per applicable rules and regulations of Insurance Regulatory Development Authority of India (IRDAI).

Authorized Signature

Manager

Seal of Insurer Surety

Contact details

Name & Signature of witness

Signature of the authorized Surety Insurer

Address of witness

Name

Signed in Capacity of

Full address of Branch

Tel No. of Branch

Fax No. / Email of Branch

Notes:

- 1) The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).
- 2) The Insurance Surety Bond should be on non-judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s).
- 3) The executing officer of Surety Bond will indicate his name, designation, and Power of Attorney No. on last page of the Surety Bond

Annexure-11

No-Conviction Certificate

[To be submitted on the Letterhead of the Bidder]

No.

Date:

To,

Project Director (UP)
Telecommunications Consultants India Limited
Lucknow

Sub: Self declaration of not been blacklisted for Tender No. -----dated-----

This is to notify you that our firm / company/organization<provide Name of the firm/company/Organization> intends to submit a proposal in response to NIT No. -----dated-----for-----

In accordance with the above, we declare that:

- a. We are not involved in any major litigation that may have an impact of affecting or compromising the delivery of goods/services as required under this EOI/RFP/NIT.
- b. We are neither banned /debarred /blacklisted/put on holiday list nor action for banning / debarment /black/holiday listing has been initiated by any Central/ State Government/ agency of Central / State Government of India or any other country in the world/ Public Sector Undertaking/ any Regulatory Authorities in India or any other country in the world for any kind of fraudulent activities on any ground including but not limited to indulgence in corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice as on date of submission of the Bid.

Yours Sincerely,

(Signature of the Authorized signatory of the Bidding Organization)

Name:

Designation:

Business Address:

Date:

Seal:

ANNEXURE-12**(On Letter Head)**

“We, M/s _____ understand that it is a mandatory requirement and we hereby undertake that we shall provide formally certified skilled workforce or commitment to the effect that we would ensure that all our workers would be skilled through Recognition of Prior Learning (RPL) within two months from the date of commencement of work under the project, at our own cost. This is in compliance to Ministry of Skill Development and Entrepreneurship (MSDE) D.O dated 12.09.2022.”

Signature & Stamp:-

Name:

ANNEXURE-13

(On Letter Head)

“We, M/s _____ hereby undertake that we are not insolvent, in receivership, bankrupt or being wound up, not have had our business activities suspended and not be the subject of legal proceedings for any of the foregoing.”

Signature & Stamp:-

Name:

ANNEXURE-14

Deleted.

ANNEXURE-15**FINANCIAL DATA**

NAME OF THE BIDDER:-

S. No.	Description	Financial Data for last 7 Financial Years					2019-20	2018-19
		2024-25	2023-24	2022-23	2021-22	2020-21		
1.	Total value of Construction works as per Audited Financial Statements							

NOTE:-

- (i) Attach all copies of Audited Financial Statements of the last seven Financial Years.
- (ii) The Financial data as per above schedule shall be certified by the Chartered Accountant/ Statutory Auditor in original under his signature, stamp and membership number and UDIN no.
- (iii) Historic Financial Statement must be complete, including all notes to the financial statements.
- (iv) In case, the audited Balance Sheet for the last Financial Year is not made available, the bidder shall submit an affidavit certifying that 'the balance sheet has not been audited so far'. In such a case, the Financial Data of previous 6 Financial Years will be taken into consideration for evaluation. If Audited Balance Sheet of any year other than the last year is not submitted, the bid of such bidders will be considered as non-responsive.

ANNEXURE-16**WORKS IN HAND****NAME OF THE BIDDER:-**

Name and brief particulars of the contract	Name of the Client with Telephone, Mob. No. and Email IDs	Contract Value in Rs. (give the value of work assigned to the bidder)	Value of balance works yet to be done in Rs. (as on the day of bid submission)	Date of Completion as per Contract agreement	Expected Completion Date	Delay, if any, with reasons	Value of work to be done in <u>next 09 months</u> w.e.f. (as on the day of bid submission)
						TOTAL	

NOTE:-

The Financial data in above prescribed format shall be certified by Chartered Accountant/ Statutory Auditor in original under his signature, stamp and membership no.& UDIN No.

ANNEXURE-17**Undertaking for Genuineness of Documents***(on Letter Head)*

We, M/s _____ (*name of the bidder*) hereby undertake that all the documents/ certificates/ information submitted by us against this tender are genuine. In case any of the documents/ certificates/ information submitted by us, is found to be false or forged, TCIL shall be at liberty to immediately reject our bid or cancel/ terminate the contract and forfeit bid security/ performance security submitted by us and debar us from participation in future EOIs/tenders of TCIL for a period upto 2 years.

Signature & Stamp:-**Name:**

ANNEXURE-18**Undertaking**
(on Letter Head)

We, M/s _____ (name of the bidder) undertake that 'Vendors, whose Purchase Order(s) for any project of TCIL, was/ were cancelled on risk & cost basis for non-performance or non-submission of performance guarantee in last 2 years, are not eligible to participate in this tender'.

Signature & Stamp:-**Name:**

ANNEXURE-19

Clause-by-Clause compliance / No Deviation Certificate
(on Letter Head)

We, M/s _____ (name of the bidder) undertake that we have read and understood the entire tender document and we comply with all the Terms & Conditions of all the Sections of this tender.

Further, we also hereby certify & declare that No Deviation in tender terms & conditions is applicable on us.

Signature & Stamp:-
Name:

ANNEXURE-20: BID SECURITY BANK GUARANTEE (EMD) FORMAT**A. BANK GUARANTEE (BG) - EMD FORMAT**

Whereas (hereinafter called “the Bidder”) has submitted its bid dated For the supply of Vide Tender No. dated KNOW ALL MEN by these presents that WE OF Having our registered office at (hereinafter called “the Bank”) are bound unto Telecommunications Consultants India Limited (hereinafter called “the Purchaser”) in the sum of Rs. for which payment will and truly to be made of the said Purchaser, the Bank binds itself, its successors and assigns by these present.

THE CONDITIONS of the obligation are:

1. If the Bidder withdraws his bid during the period of bid validity specified by the Bidder on the Bid form or
2. If the Bidder, having been notified of the acceptance of his bid by the Purchaser during the period of bid validity
 - (i) fails or refuses to execute the Contract, if required; or
 - (ii) The successful bidder fails to submit performance security within the prescribed time or
 - (iii) The proceeds of EMD shall be payable to TCIL in case of breach of any of the terms and conditions of the contract / PO / tender by the vendor.

We undertake to pay to the Purchaser up to the above amount upon receipt of its first written demand, without the purchaser having to substantiate its demand, provided that in its demand, the purchaser will note that the amount claimed by it is due to it owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to and including THIRTY (30) days after the Period of bid validity and any demand in respect thereof should reach the Bank not later than the specified date/dates.

Name & Signature of witness

Signature of the Bank Authority

Address of witness

Name

Signed in Capacity of

Full address of Branch

Tel No. of Branch

Fax No. of Branch

B. INSURANCE SURETY BOND – EMD FORMAT

(To be stamped in accordance with Stamp Act of India)

(TO BE ISSUED FROM A DELHI BRANCH)

This BOND is made as a deed AMONG the following parties

The “Bidder” as contractor..... (name and address)

The “Surety Insurer” as guarantor (name and address) and “Purchaser” as Telecommunications Consultants India Limited, (TCIL), TCIL Bhawan, Greater Kailash -I, New Delhi 110048

Whereas (hereinafter called “the Bidder”) has submitted its bid dated for the vide Tender No. dated

KNOW ALL MEN by these presents that We Of Having our registered office at (hereinafter called “the Surety Insurer”) irrevocably, unconditionally and without reservation guarantee the due and faithful fulfilment and compliance of the terms and conditions of the Bidding Documents and the RFP Document by the Bidder and are irrevocably and unconditionally bound unto Telecommunications Consultants India Limited (hereinafter called “the Purchaser”) to the sum of Rs. for which payment will and truly to be made of the said Purchaser, the Surety Insurer binds itself, its successors and assigns by these present.

THE CONDITIONS of the obligation are:

1. If the Bidder withdraws his bid during the period of bid validity specified by the Bidder on the Bid form or
2. If the Bidder, having been notified of the acceptance of his bid by the Purchaser during the period of bid validity
 - i. Fails or refuses to execute the Contract, if required; or
 - ii. The successful bidder fails to submit performance guarantee / security within the prescribed time.
or
 - iii. The proceeds of Surety Bond (EMD) shall be payable to TCIL in case of breach of any of the terms and conditions of the tender by the bidder.

We, the Surety Insurer, undertake to immediately and forthwith pay to the Purchaser up to the above amount upon receipt of its first written demand, without the purchaser having to substantiate its demand, provided that in its demand, the purchaser will note that the amount claimed by it is due to it owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

The Surety Bond shall not be affected by any change in the constitution or winding up of the Bidder or the Surety Insurer or any absorption, merger or amalgamation of the Bidder or the Surety Insurer with any other person.

This Surety Bond will remain in force up to and including THIRTY (30) days after the period of bid validity and any demand in respect thereof should reach the Surety Insurer not later than the

specified date/dates. TCIL shall have the fullest liberty without affecting in any way the liability of the Surety Insurer under this Surety Bond from time to time to vary any of the terms and conditions in the said Bidding Documents or to extend time for submission of the Bids or the bid validity period or the period for fulfillment and compliance with all or any of the terms and conditions contained in the said Bidding Documents by the said Bidder and the Surety Insurer shall not be released from its liability under these presents by any exercise by the TCIL of the liberty as aforesaid or any other matter or thing whatsoever which under the law relating to sureties would but for this provision have the effect or releasing the Surety Insurer from its such liability.

The parties acknowledge and agree that neither this Surety Bond nor any obligations hereunder are transferable or assignable.

The Surety Insurer declares that this Insurance Surety Bond is issued as per applicable rules and regulations of Insurance Regulatory Development Authority of India (IRDAI).

Name & Signature of witness

Signature of the authorized Surety Insurer

Address of witness

Name

Signed in Capacity of

Full address of Branch

Tel No. of Branch

Fax No. / email of Branch

Notes:

- 1) The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).
- 2) The Insurance Surety Bond should be on non-judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s).
- 3) The executing officer of the Surety Bond will indicate his name, designation, and Power of Attorney No. on last page of the Surety Bond.

ANNEXURE-21**Undertaking**
(on Letter Head)

“In reference to the Government of India, Ministry of Finance, Department of Expenditure, Office Memorandum No. F.No. 6/18/2019-PPD, Dated 23-07-2020, I hereby submit that:

“We have read the Clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; We certify that we (in case of Consortium all the Consortium Partners) are not from such a country or their beneficial owner is not from such a country or we will not sub-contract any work to a contractor from such countries, if from such a country, have been registered with the Competent Authority.

We hereby certify that we (in case of Consortium all the Consortium Partners) fulfill all requirements in this regard and are eligible to be considered. [*Where applicable, evidence of valid registration by the Competent Authority shall be attached.*].”.

Signature & Stamp:-
Name:

ANNEXURE-22 MAKE IN INDIA UNDERTAKING**A. Bidder shall furnish following self-certificate on its letter head along with their techno-commercial bid.**

"We M/s _____ (Name of bidder) hereby certify that we meet the mandatory minimum Local Content requirements of the Tender of equal to or more than 50% (for Class-I) / greater than 20% and less than 50% (for Class-II) (in value terms) quoted vide our offer No. _____ dated _____ against TCIL Tender No. ----- dated Given below are the list of items (goods and services) which meets the Local Content Criteria. along with details of the location(s) at which the local value addition is made in respective items (goods and services)"

S#	Description of Items / Products / services	Make	Model	location(s) at which the local value addition is made

B. If value of procurement is more than INR 10 Crore, above undertaking shall be supported by the following certificate from Statutory Auditor or cost auditor of the company (in case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies giving the percentage of local content, on the letter head of such Statutory Auditor.

"We _____ the statutory auditor of M/s. _____ (name of the bidder) hereby certify that M/s. _____ (name of bidder) meet the mandatory Local Content requirements of the Project Work under this Tender i.e. equal to or more than 50% (for Class-I) / greater than 20% and less than 50% (for Class-II) (in value terms) quoted vide offer No. _____ dated _____ against TCIL Tender No. ----- dated ---- by M/s. _____ (Name of the bidder).

(Note: In case of bidder(s) for whom Statutory Auditor is not required as per law, required certificates shall be provided by a practicing Chartered Accountant.)

For Details Govt. of India Order N0. P-45021/2/2017-PP (BE-II) dated 04.06.2020 may be referred.

Annexure-23
to Dispute Resolution Clause

Establishment of a Conciliation & Settlement Mechanism (CSM) for Contractual Disputes under the contract agreements with the Contractors / Concessionaires / Consultants in TCIL.

1. Objective:

The TCIL has been entering into various contract agreements with the Contractors/ Concessionaires/ Consultants for implementing projects and obtaining services in various modes. Several disputes have been arising under these contract agreements. The associated legal costs and diversion of manpower of both parties are enormous. The early resolution/settlement of claim, preferably through an out-of-court settlement process, is in the interest of all the stakeholders.

2. The Standing Operating Procedure (SoP)

The procedure given hereunder will be implemented for resolving disputes through conciliation mechanism:

- 1) If any commercial/contractual dispute arises between TCIL and Bidder/MoU partner/Vendor/Contractor, then any of the party shall send a reference about the dispute containing a written brief identifying the subject of the dispute to the CMD, TCIL along with a copy of such reference to other party for resolution of dispute through conciliation.
- 2) CMD, TCIL or his authorized representative shall, within seven days of receipt of such a reference, nominate an officer of TCIL to act as the conciliator and shall arrange to issue necessary intimation to both the parties.
- 3) Within three days of appointment of conciliator by CMD, TCIL both the parties shall intimate to the conciliator, the name of their respective officer(s) who shall be representing such a party in the conciliation proceedings. The maximum number of such officer(s) shall not be more than three and no legal practitioner/advocate shall be part of such a team.
- 4) Thereafter, both the teams of the parties shall meet on the dates as fixed by the conciliator, discuss the agenda and explore the possibilities of conciliation/settlement. First such meeting shall be held within Seven (7) days of the nomination of the conciliation team by both the parties. The venue for conducting conciliation proceedings will be TCIL Bhawan, Greater Kailash-I, New Delhi 110048.
- 5) The conciliator shall assist the parties in an independent and

impartial manner in their attempt to reach an amicable settlement of their dispute.

- 6) The conciliator shall be guided by principles of objectivity, fairness and justice, giving consideration to, among other things, the rights and obligations of the parties, the usages of the trade concerned and the circumstances surrounding the dispute, including any previous business practices between the parties.
- 7) The conciliator may conduct the conciliation proceedings in such a manner as he considers appropriate, taking into account the circumstances of the case, the wishes the parties may express, including any request by a party that the conciliator hear oral statements, and the need for a speedy settlement of the dispute.
- 8) The conciliator may, at any stage of the conciliation proceedings, make proposals for a settlement of the dispute. Such proposals need not be in writing and need not be accompanied by a statement of the reasons therefor.
- 9) The teams thereafter can meet any number of times under the guidance and supervision of Conciliator and will try to find a solution that is acceptable to both the parties. The conciliation may be successful or partially successful. On the points of dispute or part of a dispute wherein parties have agreed for a common ground, the officers representing each party shall seek approval of their respective company/entity. After that a settlement deed shall be drafted and signed by the authorized representatives of the parties. When the parties sign the settlement agreement, it shall be final and binding on the parties and persons claiming under them respectively and this shall not be challenged by any of the party in any court or under any law. The parties shall unequivocally affirm, declare and confirm in the settlement agreement that they have signed the agreement without any coercion, duress, inducement and were fully competent to sign the said agreement.
- 10) The conciliator shall endorse and authenticate the settlement agreement and furnish a copy thereof to each of the parties.
- 11) The conciliation process shall be concluded within 60 days of nomination of its representatives by the second party. However, the parties, with mutual consent can extend this period and then the conciliation proceedings shall be concluded in this extended period.
- 12) If no settlement is arrived between the parties in the time mentioned in clause 5) above, then the conciliation proceedings shall be deemed to have been failed.
- 13) The conciliator shall intimate the appointing authority the final outcome of the conciliation proceedings.

3. Resort to arbitral or judicial proceedings:

The parties shall not initiate, during the conciliation proceedings, any arbitral or judicial proceedings in respect of a dispute that is the subject-matter of the

conciliation proceedings except that a party may initiate arbitral or judicial proceedings where, in his opinion, such proceedings are necessary for preserving his rights.

4. Admissibility of evidence in other proceedings.

- 1) The parties shall not rely on or introduce as evidence in arbitral or judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the conciliation proceedings,—
 - (a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute;
 - (b) admissions made by the other party in the course of the conciliation proceedings;
 - (c) Proposals made by the parties or conciliator;
 - (d) The fact that the other party had indicated his willingness to accept a proposal for settlement made by the other party.

5. Confidentiality.

Notwithstanding anything contained in any other law for the time being in force, the parties shall keep confidential all matters relating to the conciliation proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement.

6. Termination of conciliation proceedings.

The conciliation proceedings shall be terminated on happening of any of the conditions below:-

- 1) by the signing of the settlement agreement by the parties, on the date of the agreement; or
- 2) by a written declaration of the conciliator, after consultation with the parties, to the effect that further efforts at conciliation are no longer justified, on the date of the declaration; or
- 3) by a written declaration of the parties addressed to the conciliator to the effect that the conciliation proceedings are terminated, on the date of the declaration; or
- 4) by a written declaration of a party to the other party and the conciliator, if appointed, to the effect that the conciliation proceedings are terminated, on the date of the declaration; or
- 5) by the lapse of time or extended time as provided in clause 2(12) above

ANNEXURE:24 Office Memo of Department of Expenditure regarding Rule 144 of GFR 2017

F.No.6/18/2019-PPD
Ministry of Finance
Department of Expenditure
Public Procurement Division

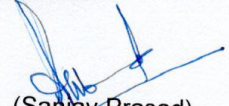
161, North Block,
New Delhi
23rd July, 2020

Office Memorandum

Subject: Insertion of Rule 144 (xi) in the General Financial Rules (GFRs), 2017

Rule 144 of the General Financial Rules 2017 entitled 'Fundamental principles of public buying', has been amended by inserting sub-rule (xi) as under:

Notwithstanding anything contained in these Rules, Department of Expenditure may, by order in writing, impose restrictions, including prior registration and/or screening, on procurement from bidders from a country or countries, or a class of countries, on grounds of defence of India, or matters directly or indirectly related thereto including national security; no procurement shall be made in violation of such restrictions.


(Sanjay Prasad)
Joint Secretary (PPD)
Email ID: js.pfc2.doe@gov.in
Telephone: 011-23093882

To,
(1) Secretaries of All Ministries/ Departments of Government of India
(2) Chief Secretaries/ Administrators of Union Territories/ National Capital Territory of Delhi

F.No.6/18/2019-PPD
Ministry of Finance
Department of Expenditure
Public Procurement Division

161, North Block,
New Delhi
23rd July, 2020

Order (Public Procurement No. 1)

Subject: Restrictions under Rule 144 (xi) of the General Financial Rules (GFRs), 2017

Attention is invited to this office OM no. 6/18/2019-PPD dated 23rd July 2020 inserting Rule 144 (xi) in GFRs 2017. In this regard, the following is hereby ordered under Rule 144 (xi) on the grounds stated therein:

Requirement of registration

1. Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority, specified in **Annex I**.
2. This Order shall not apply to (i) cases where orders have been placed or contract has been concluded or letter/notice of award/ acceptance (LoA) has been issued on or before the date of this order; and (ii) cases falling under **Annex II**.

Transitional cases

3. Tenders where no contract has been concluded or no LoA has been issued so far shall be handled in the following manner: -
 - a) *In tenders which are yet to be opened, or where evaluation of technical bid or the first exclusionary qualificatory stage (i.e. the first stage at which the qualifications of tenderers are evaluated and unqualified bidders are excluded) has not been completed:* No contracts shall be placed on bidders from such countries. Tenders received from bidders from such countries shall be dealt with as if they are non-compliant with the tender conditions and the tender shall be processed accordingly.
 - b) *If the tendering process has crossed the first exclusionary qualificatory stage:* If the qualified bidders include bidders from such countries, the

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F.No.6/18/2019-PPD
Ministry of Finance
Department of Expenditure
Public Procurement Division

161, North Block,
New Delhi
23rd July, 2020

Order (Public Procurement No. 1)

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 - b) *If the tendering process has crossed the first exclusionary qualificatory stage:* If the qualified bidders include bidders from such countries, the

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entire process shall be scrapped and initiated *de novo*. The *de novo* process shall adhere to the conditions prescribed in this Order.

- c) As far as practicable, and in cases of doubt about whether a bidder falls under paragraph 1, a certificate shall be obtained from the bidder whose bid is proposed to be considered or accepted, in terms of paras 8, 9 and 10 read with para 1 of this Order.

Incorporation in tender conditions

4. In tenders to be issued after the date of this order, the provisions of paragraph 1 and of other relevant provisions of this Order shall be incorporated in the tender conditions.

Applicability

5. Apart from Ministries / Departments, attached and subordinate bodies, notwithstanding anything contained in Rule 1 of the GFRs 2017, this Order shall also be applicable
- to all Autonomous Bodies;
 - to public sector banks and public sector financial institutions; and
 - subject to any orders of the Department of Public Enterprises, to all Central Public Sector Enterprises; and
 - to procurement in Public Private Partnership projects receiving financial support from the Government or public sector enterprises/ undertakings.
 - Union Territories, National Capital Territory of Delhi and all agencies/ undertakings thereof

Definitions

6. "Bidder" for the purpose of this Order (including the term 'tenderer', 'consultant' 'vendor' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process.
7. "Tender" for the purpose of this Order will include other forms of procurement, except where the context requires otherwise.
8. "Bidder from a country which shares a land border with India" for the purpose of this Order means

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- a) An entity incorporated, established or registered in such a country; or
- b) A subsidiary of an entity incorporated, established or registered in such a country; or
- c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
- d) An entity whose *beneficial owner* is situated in such a country; or
- e) An Indian (or other) agent of such an entity; or
- f) A natural person who is a citizen of such a country; or
- g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

9. "Beneficial owner" for the purpose of paragraph 8 above will be as under:

- (i) In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other means.

Explanation—

- a. "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five per cent of shares or capital or profits of the company;
- b. "Control" shall include the right to appoint the majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

- (ii) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership or entitlement to more than fifteen percent of capital or profits of the partnership;

- (iii) In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

- (iv) Where no natural person is identified under (i) or (ii) or (iii) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

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(v) In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

10. "Agent" for the purpose of this Order is a person employed to do any act for another, or to represent another in dealings with third persons.

Sub-contracting in works contracts

11. In works contracts, including turnkey contracts, contractors shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority. The definition of "contractor from a country which shares a land border with India" shall be as in paragraph 8 above. This shall not apply to sub-contracts already awarded on or before the date of this Order.

Certificate regarding compliance

12. A certificate shall be taken from bidders in the tender documents regarding their compliance with this Order. If such certificate given by a bidder whose bid is accepted is found to be false, this would be a ground for immediate termination and further legal action in accordance with law.

Validity of registration

13. In respect of tenders, registration should be valid at the time of submission of bids and at the time of acceptance of bids. In respect of supply otherwise than by tender, registration should be valid at the time of placement of order. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.

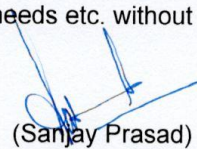
Government E-Marketplace

14. The Government E-Marketplace shall, as soon as possible, require all vendors/ bidders registered with GeM to give a certificate regarding compliance with this Order, and after the date fixed by it, shall remove non-compliant entities from GeM unless/ until they are registered in accordance with this Order.

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Model Clauses/ Certificates

15. Model Clauses and Model Certificates which may be inserted in tenders / obtained from Bidders are enclosed as **Annex III**. While adhering to the substance of the Order, procuring entities are free to appropriately modify the wording of these clauses based on their past experience, local needs etc. without making any reference to this Department.


(Sanjay Prasad)
Joint Secretary (PPD)
Email ID: js.pfc2.doe@gov.in
Telephone: 011-23093882

To

- (1) Secretaries of All Ministries/ Departments of Government of India for information and necessary action. They are also requested to inform these provisions to all procuring entities.
- (2) Secretary, Department of Public Enterprises with a request to immediately reiterate these orders in respect of Public Enterprises.
- (3) Secretary DPIIT with a request to initiate action as provided under Annex I
- (4) Chief Secretaries/ Administrators of Union Territories/ National Capital Territory of Delhi

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Annex I: Competent Authority and Procedure for Registration

- A. The Competent Authority for the purpose of registration under this Order shall be the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade (DPIIT)*.
- B. The Registration Committee shall have the following members*:
- i. An officer, not below the rank of Joint Secretary, designated for this purpose by DPIIT, who shall be the Chairman;
 - ii. Officers (ordinarily not below the rank of Joint Secretary) representing the Ministry of Home Affairs, Ministry of External Affairs, and of those Departments whose sectors are covered by applications under consideration;
 - iii. Any other officer whose presence is deemed necessary by the Chairman of the Committee.
- C. DPIIT shall lay down the method of application, format etc. for such bidders as stated in para 1 of this Order.
- D. On receipt of an application seeking registration from a bidder from a country covered by para 1 of this Order, the Competent Authority shall first seek political and security clearances from the Ministry of External Affairs and Ministry of Home Affairs, as per guidelines issued from time to time. Registration shall not be given unless political and security clearance have both been received.
- E. The Ministry of External Affairs and Ministry of Home Affairs may issue guidelines for internal use regarding the procedure for scrutiny of such applications by them.
- F. The decision of the Competent Authority, to register such bidder may be for all kinds of tenders or for a specified type(s) of goods or services, and may be for a specified or unspecified duration of time, as deemed fit. The decision of the Competent Authority shall be final.
- G. Registration shall not be granted unless the representatives of the Ministries of Home Affairs and External Affairs on the Committee concur*.
- H. Registration granted by the Competent Authority of the Government of India shall be valid not only for procurement by Central Government and its agencies/ public enterprises etc. but **also for procurement by State Governments and their agencies/ public enterprises etc. No fresh registration at the State level shall be required.**

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- I. The Competent Authority is empowered to cancel the registration already granted if it determines that there is sufficient cause. Such cancellation by itself, however, will not affect the execution of contracts already awarded. Pending cancellation, it may also suspend the registration of a bidder, and the bidder shall not be eligible to bid in any further tenders during the period of suspension.
- J. For national security reasons, the Competent Authority shall not be required to give reasons for rejection / cancellation of registration of a bidder.
- K. In transitional cases falling under para 3 of this Order, where it is felt that it will not be practicable to exclude bidders from a country which shares a land border with India, a reference seeking permission to consider such bidders shall be made by the procuring entity to the Competent Authority, giving full information and detailed reasons. The Competent Authority shall decide whether such bidders may be considered, and if so shall follow the procedure laid down in the above paras.
- L. Periodic reports on the acceptance/ refusal of registration during the preceding period may be required to be sent to the Cabinet Secretariat. Details will be issued separately in due course by DPIIT.

[*Note:

- i. In respect of application of this Order to procurement by/ under State Governments, all functions assigned to DPIIT shall be carried out by the State Government concerned through a specific department or authority designated by it. The composition of the Registration Committee shall be as decided by the State Government and paragraph G above shall not apply. However, the requirement of **political and security clearance as per para D shall remain and no registration shall be granted without such clearance.**
- ii. Registration granted by State Governments shall be valid only for procurement by the State Government and its agencies/ public enterprises etc. and shall not be valid for procurement in other states or by the Government of India and their agencies/ public enterprises etc.]

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Annex II: Special Cases

- A. Till 31st December 2020, procurement of medical supplies directly related to containment of the Covid-19 pandemic shall be exempt from the provisions of this Order.
- B. *Bona fide* procurements made through GeM without knowing the country of the bidder till the date fixed by GeM for this purpose, shall not be invalidated by this Order.
- C. *Bona fide* small procurements, made without knowing the country of the bidder, shall not be invalidated by this Order.
- D. In projects which receive international funding with the approval of the Department of Economic Affairs (DEA), Ministry of Finance, the procurement guidelines applicable to the project shall normally be followed, notwithstanding anything contained in this Order and without reference to the Competent Authority. Exceptions to this shall be decided in consultation with DEA.
- E. This Order shall not apply to procurement by Indian missions and by offices of government agencies/ undertakings located outside India.

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Annex III**Model Clause /Certificate to be inserted in tenders etc.**

(While adhering to the substance of the Order, procuring entities and GeM are free to appropriately modify the wording of the clause/ certificate based on their past experience, local needs etc.)

Model Clauses for Tenders

- I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.
- II. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
- III. "Bidder from a country which shares a land border with India" for the purpose of this Order means: -
 - a. An entity incorporated, established or registered in such a country; or
 - b. A subsidiary of an entity incorporated, established or registered in such a country; or
 - c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - d. An entity whose *beneficial owner* is situated in such a country; or
 - e. An Indian (or other) agent of such an entity; or
 - f. A natural person who is a citizen of such a country; or
 - g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above
- IV. The *beneficial owner* for the purpose of (iii) above will be as under:
 1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.
Explanation—
 - a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent. of shares or capital or profits of the company;

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- b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;
2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
 4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
 5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
- V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.
- VI. *[To be inserted in tenders for Works contracts, including Turnkey contracts]* The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.

Model Certificate for Tenders (for transitional cases as stated in para 3 of this Order)

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I hereby certify that this bidder is not from such a country and is eligible to be considered."

Model Certificate for Tenders

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the

"/s/

Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model Certificate for Tenders for Works involving possibility of sub-contracting

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model Certificate for GeM:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this vendor/ bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this vendor/ bidder fulfills all requirements in this regard and is eligible to be considered for procurement on GeM. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

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**ANNEXURE-25 Office Memo of DOT regarding amendment to Unified License for
procurement of Telecommunication equipment**

File No. 20-271/2010 AS-I (Vol-III)
Government of India
Ministry of Communications
Department of Telecommunications
(Access Services Wing)
20, Ashoka Road, New Delhi – 110001

Dated 10th March, 2021

To,

All Unified Licensees

Subject: Amendment to the Unified License for procurement of Telecommunication equipment- reg.

In pursuance to Condition 5.1, the Licensor hereby amends the Unified License Agreement and appends the following sub-clause number 39.7.1 in Security Conditions, Chapter-VI of Part-I as under:

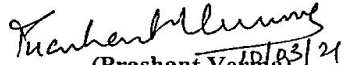
"39.7.1. The Government through the Designated Authority will have the right to impose conditions for procurement of Telecommunication Equipment on grounds of Defence of India, or matters directly or indirectly related thereto, for national security. Designated Authority for this purpose shall be National Cyber Security Coordinator. In this regard, the licensee shall provide any information as and when sought by the Designated Authority.

Designated Authority shall notify the categories of equipment for which the security requirement related to Trusted Sources are applicable. For the said categories of equipment, Designated Authority shall notify the Trusted Sources along with the associated Telecommunication Equipment (Trusted Products). The Designated Authority may also notify a list of Designated Sources from whom no procurement can be done. Procedure for inclusion of Telecommunication Equipment in the list of Trusted Sources will be issued by the Designated Authority.

With effect from 15th June 2021, the licensee, shall only connect Trusted Products in its network and also seek permission from Designated Authority for upgradation of existing Network utilizing the Telecommunication Equipment not designated as Trusted Products. However, these directions will not affect ongoing Annual Maintenance Contracts (AMC) or updates to existing equipment already inducted in the network as on date of effect.

The licensees shall comply with the Guidance for Enhanced Supervision and Effective Control of Telecommunication Networks, as per guidelines to be issued by the licensor."

2. This amendment shall be part and parcel of the Unified License Agreement and all others Terms & Conditions shall remain unchanged.


(Prashant Verma) 10/03/21

Assistant Director General (AS-I)
For and on behalf of the President of India
Ph. No. 23036580

Copy to:

1. Chairman, TRAI.
2. DG (T) HQ, DoT HQ.
3. CMD (BSNL)/ CMD (MTNL).
4. Advisor (Economics)/ Sr. DDG (TEC)/ Wireless Advisor/ DDG (LFP)/ DDG (LFA)/ DDG (WPF)/ DDG (SA)/ DDG (SPPI)/ CVO, DoT.
5. DDG (CS)/ DDG (DS)/ DDG (Satellite)/DDG (A/C) DoT HQ.
6. Director (IT) may kindly arrange to upload this letter on the website of DoT.
7. All Directors of AS Division.

ANNEXURE-26
UNDERTAKING BY BIDDER IN RESPECT OF BACK-TO-BACK PAYMENT TERMS
(On letter head)

1. I/we,....., have perused the Tender/EOI/RFP of Client and/or the arrangement of TCIL with its Client,..... and have also examined scope of work and the payment terms therein.
2. I/we,....., have clearly understood the scope of work which TCIL is intending to award under the present Tender/RFP/EOI/PO/LOI/LOA and the terms of payments mentioned therein.
3. I/we,....., completely understand and agree that the work to be executed through undersigned by TCIL is on behalf of the client wherein the eligibility for payment depends solely upon acceptance of the undersigned's work, certification of the bill and payment of the certified bill by the said client. The date of delivery of such service/supply under the scope of work for entitlement of payment shall be the date on which the corresponding payments have been received by TCIL from its client. Undersigned's entitlement for payment regarding the bill raised in respect of a particular work would only arise within a reasonable time of 15 working days upon acceptance of the work and release of corresponding payment by the client to TCIL.
4. I/we,....., completely understand and agree that in the event client certifies the work for lesser amount, undersigned's entitlement would be only for the certified value of work by the client minus the statutory and contractual deductions as per our contract with TCIL.
5. I/we,....., also completely understand and agree that TCIL will make reasonable efforts to secure acceptance and certification of the work and release of the payment by the client. However, any delay on the part of the client in certification and acceptance of the work and release of the payment will not entitle undersigned to raise claim regarding the same against TCIL.

Signed by..... (Authorized Representative of)

Date....

Place.....

ANNEXURE-27
AUTHORIZATION LETTER

Format for Authorization letter to be submitted by Bidder

Know all men by these presents that we (name of Company) _____, incorporated in India under the Companies Act, 1956 and having its Registered Office at _____. (India) ("Hereinafter called the Company") DOTH hereby nominate, constitute and appoint (Name, Designation) _____, S/o _____ to be true and lawful authorized signatory in fact and at law of the Company for and in the name and on behalf of the Company, to do, execute and perform all or any of the following acts, deeds, matters and things namely:-

1. To represent the Company to all intents and purposes in connection with the matters pertaining to signing & submission of (EOI No, EOI Date, EOI Description) _____, _____ and all affairs ancillary or incidental thereto.
2. AND the Company hereby agrees that all acts, deeds and things lawfully done by the said authorized signatory shall be construed as acts, deeds and things done by the Company itself and the Company hereby undertakes to ratify and confirm all and whatever its authorized signatory shall lawfully do or cause to be done for and on behalf of the Company by virtue of the powers hereby given.

In witness whereof (Name , Designation) _____, _____ of the Company acting for and on behalf of the Company under the authority conferred by the Board of Directors of the Company in its _____ meeting held on (Date) _____ has signed this Authorization Letter at (place) _____ on this (Date) _____.

The signatures of (Name, Designation) _____ given below are hereby certified.

Signature: _____
 Signature of (Name, Designation) _____
CERTIFIED
 Signature: _____

WITNESS:

Signature: _____

(Name, Designation): _____

ANNEXURE-28

PRICE BID SCHEDULE

To: [Head of Department]

Dear Sir,

We, the undersigned, offer to provide the [Insert title of assignment] against your NIT No. [Insert NIT No.] dated [Insert Date]. Our attached Financial Proposal is for the sum of [Insert amount(s) in words and figures1].

Yours sincerely,

Authorized Signature [*In full and initials*]: _____

Name and Title of Signatory: _____

Name of Firm: _____

Address: _____

[Price Bid format attached below]

Note 1: The bidder to provide un-priced Price-Bid along with Technical bid.

Notes2:

- a) Lowest Bid will be on the basis of Grand Total.
- b) Bidder shall mandatorily mention the applicable HSN/SAC codes (at least 6-digits) against all the quoted items.
- c) In case of change in rate due to change in Taxes/Duties the rate shall be applicable on pro-rata basis based on actual nos. of applicable days.
- d) Before submitting their duly filled “Price Bid Schedule & BOQ” the bidders should ensure that they do not enter any comments such as ‘As per Actuals’, ‘Will be Intimated Later’. ‘Extra’ etc. If bidder uses these types of comments in their price bid, or if the charges for any item is left blank, then the charges for the such items shall be considered as “Zero” and the same shall be a binding on the bidder.
- e) The bidder must specify the make of each product / line items of the BOQ in the price bid.
- f) The requirements/ quantity mentioned above are indicative & may vary as per the actual requirements.

:SECTION-6: